THE NATIONAL ASSEMBLY	THE SOCIALIST REPUBLIC OF VIETNAM
	Independence-Freedom-Happiness
Law No. 59/2020/QH14	

LAW
ON ENTERPRISES

Pursuant to the Constitution of the Socialist Republic of Vietnam;

The National Assembly promulgates the Law on Enterprises.

Chapter I
GENERAL PROVISIONS

Article 1. Scope of regulation

This Law prescribes the establishment, management organization, reorganization and dissolution of, and activities related to, enterprises, including limited liability companies, joint stock companies, partnerships and private enterprises; and prescribes corporate groups.

Article 2. Subjects of application

1. Enterprises.

2. Agencies, organizations and individuals involved in the establishment, management organization, reorganization and dissolution of, and activities related to, enterprises.

Article 3. Application of the Law on Enterprises and other laws

In case other law contains particular provisions on the establishment, management organization, reorganization and dissolution of, and activities related to, enterprises, such law must prevail.

Article 4. Interpretation of terms

In this Law, the terms below shall be construed as follows:

1. *Copy* means paper copied from original register or authenticated from original by competent agencies, organizations or compared with original.

2. *Foreign individual* means person who carries the papers identifying foreign nationality.

3. *Shareholder* means an individual or organization that holds at least one share of a joint stock company.

4. *Founding shareholder* means a shareholder that holds at least one common share and signs in the list of founding shareholders of a joint stock company.

5. *Dividend* means an amount of net profit distributed to each share in cash or in the form of other assets.

6. *Companies* includes limited liability companies, joint stock companies and partnerships.

7. *Limited liability companies* include single-member limited liability companies and limited liability companies with two or more members.

8. *National enterprise registration portal* means an electronic portal used to make online enterprise registration and access to information on enterprise registration.

9. *National enterprise registration database* means a collection of data on enterprise registration nationwide.

10. *Enterprise* means an organization that has its own name, assets and a transaction office,

11. *State enterprises* include enterprises of which the State holds over 50% of charter capital, total number of voting shares according to Article 88 of this Law.

12. *Vietnamese enterprise* means an enterprise that is established or registered for establishment according to Vietnamese regulations and has its head office in Vietnam.

13. *Contact address* means the registered address of the head office of an organization; permanent residence address or the workplace or another address of an individual which has been registered by such individual with an enterprise as the contact address.

14. *Market price of the contributed capital amount or shares* means the transaction price on the market at the previous time, or the price agreed between the seller and the buyer, or the price determined by a valuation organization.

15. *Enterprise registration certificate* is a paper or electronic document containing enterprise registration information granted by a business registration agency.

16. *Legal document of individual* is one of the following documents: Citizen or people's Identity card, Passport or other valid personal identification papers.

17. *Legal document of organization* is one of the following documents:

Establishment decision, enterprise registration certificate or other equivalent documents of the organizations.

18. *Capital contribution* means the contribution of assets to make up a company's charter capital, including capital contribution for the establishment of a new company or additional contribution of charter capital of an existing company.

19. *National enterprise registration information system* consists of the national enterprise registration portal, the national enterprise registration database, related database and their technical infrastructure.

20. *Valid dossier* means a dossier comprising all papers as required by this Law which contain all information as required by law.

21. *Business* means the continuous performance of one, several or all of the stages of the process, from investment, production to sale of products or provision of services in the market for profits.

22. *Person who has family relationships* includes: Spouse, natural father, natural mother, adoptive father, adoptive mother, father-in-law, mother-in-law, natural children, adopted children, son-in-law, daughter-in-law, siblings, brothers-in-law, sisters-in-law and siblings of spouse.

23. *Affiliated person* means an organization or individual that has direct or indirect relations with an enterprise in the following cases:

a) The parent company, its' managers and at-law representatives and persons competent to appoint managers of the parent company;

b) The subsidiary company, its' managers and at-law representatives;

c) Individual, organization or a group of individual, organization capable of controlling operations of an enterprise through owning or taking over shares, contributed capital amounts or making decision of the company;

d) Managers of the enterprise, at-law representatives, Supervisors;

dd) Spouse, natural father, natural mother, adoptive father, adoptive mother, father-in-law, mother-in-law, natural children, adopted children, son-in-law, daughter-in-law, siblings, brothers-in-law, sisters-in-law of managers of the company, at-law representatives, Supervisors, of any member and shareholder holding a controlling capital contribution amount or controlling shares;

e) An individual who is authorized representative of companies, organizations defined at Points a, b and c of this Clause;

g) An enterprise in which the individuals, companies, organizations defined at Points a, b, c, d, dd, and e of this Clause possess holdings to a level that they can control the decision-making process of such enterprise;

24. *Managers of an enterprise* means managers of a private enterprise

and managers of a company, including owner of a private enterprise, general partner, chairperson of the Members' Council, member of the Members' Council, president of a company, chairperson of the Board of Directors, member of the Board of Directors, director or general director and persons holding other managerial positions in accordance with the company charter.

25. *Enterprise founder* means an individual or organization that establishes or contributes capital to establish an enterprise.

26. *Foreign investor* means an individual or organization according to the Law on Investment.

27. *Contributed capital amount* means the total value of assets paid or committed to be paid by a member to a limited liability company or partnership. The capital contribution ratio means the ratio of the contributed capital amount of a member to the charter capital of a limited liability company or partnership.

28. *Public products and services* are those essential to the socio-economic well-being of the country, localities or communities that the State needs to ensure for the sake of common interests or national defense and security, and whose production and provision under the market mechanism are hardly self-financing.

29. *Company member* means an individual or organization that holds part or the whole of charter capital of a limited liability company or partnership.

30. *Partner in a partnership* means a general partner or limited partner.

31. *Reorganization of an enterprise* means the division, splitting, consolidation, merger or transformation of an enterprise.

32. *Foreign organization* means an organization established in a foreign country under that foreign country's laws.

33. *Voting capital* means the contributed capital amount or share entitling the holder to vote on matters which fall under the deciding competence of the Members' Council or the General Meeting of Shareholders.

34. *Charter capital* means the total value of assets paid in or committed to be paid in by members, owner of a company upon establishment of a limited liability company or partnership; means the total par value of shares sold or registered to be purchased at the time of establishment of a joint stock company.

Article 5. State guarantee for enterprises and enterprise owners

1. The State shall recognize the long-term existence and development of the types of enterprise defined in this Law; ensure equality before law among enterprises, regardless of their form of ownership and economic sector; and recognize the lawful profit-making nature of business operations.

2. The State shall recognize and protect the property ownership, investment capital, income and other lawful rights and interests of enterprises

and enterprise owners.

3. Lawful assets and investment capital of enterprises and enterprise owners may be neither nationalized nor confiscated by administrative measures. In case an enterprise's assets are compulsorily purchased or requisitioned by the State, the enterprise shall be paid or compensated according to regulations of compulsory purchase or requisition of property. The payment or compensation must ensure the interests of the enterprise with no discrimination among different types of enterprise.

Article 6. Political organizations, socio-political organizations and grassroots-level employees' representative organizations in enterprises

1. Political organizations, socio-political organizations and grassroots-level employees' representative organizations in enterprises shall operate in accordance with the Constitution, laws and their statutes.

2. Enterprises are obliged to respect and not to obstruct and cause difficulties to the establishment of political organizations, socio-political organizations employees' representative organizations in enterprises, and not to obstruct and cause difficulties to employees in participating in their operations.

Article 7. Rights of enterprises

1. To enjoy freedom of enterprise in the sectors and trades that are not banned by law.

2. To enjoy business autonomy and select forms of business organization; to take the initiative in selecting sectors and trades, locations and forms of business; to take the initiative in adjusting the scope and sectors and trades of business.

3. To select forms and methods of capital raising, distribution and use.

4. To enjoy freedom of seeking markets and customers and entering into contracts.

5. To conduct import and export business.

6. To recruit, hire and employ employees according to labor regulations.

7. To take the initiative in applying science and technology to raise business effectiveness and competitiveness; to be protected intellectual property rights according to the regulations of intellectual property.

8. To possess, use and dispose of their assets.

9. To reject requests of agencies, organizations, individuals for resources supply made not in accordance with law.

10. To lodge complaints, participate in legal proceedings in accordance with law.

11. Other rights as prescribed by laws.

Article 8. Obligations of enterprises

1. To fully meet all business conditions when conducting business in sectors and trades subject to business investment conditions; sectors and trades subject to market access conditions and to fully maintain such business investment conditions throughout the course of business operation.

2. To fully and timely perform the obligations related to enterprise registration, registration for changes in enterprise registration contents, publicization of information on establishment and operations of enterprises, reporting and other obligations in accordance with this Law.

3. To be responsible for the truthfulness and accuracy of information declared in enterprise registration dossiers and reports; to correct and add in a timely manner the information upon detecting any declared or reported inaccurate or incomplete information.

4. To organize accounting work, pay taxes and perform other financial obligations as prescribed by law.

5. To ensure lawful and legitimate rights and interests of employees in accordance with laws; not to discriminate and offend the honor and human dignity of employees in enterprises; not to maltreat employees, practice forced labor or Illegally use minor employees; to assist and create favorable conditions for employees to participate in training to improve their professional qualifications and job skills; to pay social insurance, unemployment insurance, health insurance and other insurance premiums for employees in accordance with laws.

6. Other obligations as prescribed by laws.

Article 9. Rights and obligations of enterprises engaged in provision of public products or services

1. The rights and obligations of enterprises specified in Articles 7 and 8 and other relevant provisions of this Law.

2. To account and offset costs at prices prescribed by the law on bidding, or collect charges for provision of services in accordance with regulations of competent state agencies.

3. To be guaranteed an appropriate period for supply of products or provision of services in order to recover its investment capital and gain reasonable profits.

4. To supply products or provide services in sufficient quantity and proper quality and on time as committed at prices or charge rates stipulated by competent state agencies.

5. To ensure equitable and favorable conditions for customers.

6. To be held responsible before law and customers for quantity, quality, terms of supply and prices, charges for supplied products or provided services.

Article 10. Criteria for and rights and obligations of social enterprises

1. A social enterprise must meet the following criteria:

a) Being registered for establishment in accordance with this Law;

b) Operating for the purpose of solving social and environmental issues in the interest of the community;

c) Using at least 51% of its annual total after-tax profit for reinvestment to achieve the registered objectives.

2. In addition to the rights and obligations of enterprises prescribed in this Law, social enterprises have the following rights and obligations:

a) Owners and managers of social enterprises shall be considered, provided with favorable conditions and supported in the grant of related licenses and certificates in accordance with law;

b) To mobilize and receive financial assistance from Vietnamese and foreign individuals, enterprises, non-governmental organizations and other organizations to cover their management expenses and operation expenses;

c) To maintain their objectives and conditions prescribed at Points b and c, Clause 1 of this Article throughout the course of operation;

d) Not to use mobilized funds for objectives other than covering management and operation expenses to solve social and environmental issues already registered by themselves;

dd) Social enterprises that receive incentives and supports shall annually report on their operations to competent agencies.

3. Social enterprises must announce to competent agencies termination of operation for solving social and environmental issues or non-use after-tax profit for reinvestment as prescribed at Points b and c, Clause 1 of this Article.

4. The State shall adopt policies to encourage, support and promote the development of social enterprises.

5. The Government shall detail this Article.

Article 11. Document preservation regime of enterprises

1. Depending on its form, an enterprise shall preserve the following documents:

a) Company charter; internal management regulation of the company; and register of members or register of shareholders;

b) Industrial property rights protection titles; quality registration certificates of product, merchandise, services; licenses and other certificates;

c) Documents and papers certifying ownership of company assets;

d) Votes in proportion, minutes of counting of votes, minutes of meetings of the Members' Council, the General Meeting of Shareholders and the Board of Directors; decisions of the enterprise;

dd) Prospectus for offering or listing of securities;

e) Reports of the Supervisory Board, conclusions of inspection agencies and conclusions of audit organizations;

g) Accounting books, accounting documents and annual financial statements.

2. An enterprise shall preserve the documents specified in Clause 1 of this Article at its head office or other locations indicated in the company charter for a time limit prescribed by laws.

Article 12. At-law representatives of enterprises

1. The at-law representative of an enterprise means an individual who represents the enterprise to exercise the rights and perform the obligations arising from transactions of the enterprise, and represents the enterprise in the capacity as requester or the settlement of a civil matter, plaintiff, respondent or person with related interests and obligations before the arbitration or court, and other rights and obligations as prescribed by law.

2. Limited liability companies and joint stock companies may have one or more than one at-law representative. The company charter must specify the number, managerial titles and rights, obligations of at-law representatives of the enterprise. If there is more than one at-law representative, the company charter must specify the number, managerial titles and rights, obligations of each at-law representative. If rights and obligations division among at-law representatives is not prescribed clearly in the company charter, each at-law representative shall fully competent representative of enterprise to a third party; all at-law representative shall be jointly liable for damage causing for enterprise under civil and other relevant regulations.

3. An enterprise shall ensure that at least one at-law representative resides in Vietnam. In case an enterprise has only one at-law representative residing in Vietnam, the at-law representative shall, upon leaving Vietnam, authorize in writing another person residing in Vietnam to exercise the rights and perform the obligations of the at-law representative. In this case, the at-law representative shall remain responsible for the exercise and performance of the authorized rights and obligations.

4. In case the term of authorization under Clause 3 of this Article expires but the at-law representative of an enterprise has not returned to Vietnam and no

other authorization is made, the following provisions shall be complied with:

a) The authorized person shall continue to exercise the rights and perform the obligations of the at-law representative of a private enterprise until its at-law representative returns to work in the enterprise;

b) The authorized person shall continue to exercise the rights and perform the obligations of the at-law representative of a limited liability company, joint stock company or partnership until its at-law representative returns to work in the company or until the company owner, Members' Council or Board of Directors decides to appoint another person to act as the at-law representative of the enterprise.

5. Except the case prescribed in Clause 6 of this Articles, if the enterprise has only one at-law representative who is absent from Vietnam for more than 30 days without authorizing any other person to exercise the rights and perform the obligations for the enterprise's at-law representative or is dead, missing, examined for penal liability, held in temporary detention, serving their imprisonment penalty, administrative handling measures at compulsory drug rehabilitation establishment or compulsory education establishment, has his/her civil act capacity limited or lost, has difficulty in perceiving and controlling their acts, is prohibited by court from holding certain positions or prohibited from practicing certain professions or performing certain jobs, the company owner, Members' Council or Board of Directors shall appoint another person to act as the at-law representative of the company.

6. For a limited liability company with two members, if an individual member acting as the company's at-law representative is dead, missing, examined for penal liability, held in temporary detention, serving their imprisonment penalty, administrative handling measures at compulsory drug rehabilitation establishment or compulsory education establishment, escaping from residence place, has his/her civil act capacity limited or lost, has difficulty in perceiving and controlling their acts, is prohibited by court from holding certain positions or prohibited from practicing certain professions or performing certain jobs, the other member shall naturally act as the company's at-law representative until a new decision on the company's at-law representative is issued by the Members' Council.

7. A court or anther agency with proceeding conducting competence have the right to appoint an at-law representative in legal proceedings according to regulations.

Article 13. Responsibilities of at-law representatives of enterprises

1. The at-law representative of an enterprise has the following responsibilities:

a) To exercise vested rights and perform assigned obligations in an honest, prudent and best manner in order to protect the lawful interests of the enterprise;

b) To be faithful to the interests of the enterprise; not to abuse his/her title, position and not to use the business information, know-how, opportunities and other assets of the enterprise for personal purposes or for the interests of other organizations or individuals;

c) To notify to the enterprise in a timely, sufficient and accurate manner enterprises of which they and their affiliated persons are owners or in which they have shares or contributed capital amounts as prescribed in this Law;

2. The at-law representative of an enterprise must be personally liable for damage caused to the enterprise by breaches of the obligations specified in Clause 1 of this Article.

Article 14. Authorized representatives of institutional owners, members or shareholders

1. The authorized representative of an institutional owner, member or shareholder must be an individual authorized in writing by such owner, member or shareholder to exercise or perform in the latter's name the rights or obligations prescribed by this Law.

2. Except for other regulations provided by the company charter, the appointment of an authorized representative must comply with the following provisions:

a) An organization that is a member of a limited liability company with two or more members holding at least 35% of its charter capital may authorize a maximum of three representatives;

b) An organization that is a shareholder of a joint stock company holding at least 10% of the total number of ordinary shares may authorize a maximum of three representatives.

3. In case an institutional owner, member or shareholder appoints more than one authorized representative, the specific contributed capital amount or number of shares represented by each representative shall be specified. In case the owner or member or shareholder does not specify the contributed capital amount or number of shares represented by each authorized representative, the contributed capital amount or number of shares shall be evenly distributed to the number of appointed authorized representatives.

4. The document appointing the authorized representative shall be notified to the company and only be effective to the company from the date the company receives the document. The document appointing the authorized representative must have the following principal contents:

a) Name, enterprise identification number and head office address of the owner, member or shareholder;

b) Number of authorized representatives and ratio of shares or contributed capital amount represented by each authorized representative;

c) Full name, contact address, citizenship, serial number of legal document of individual of each authorized representative;

d) Term of authorization of each authorized representative, specifying the starting date of representation;

dd) Full names and signatures of the at-law representative of the owner, member or shareholder and of the authorized representatives.

5. An authorized representative must meet the following qualifications and conditions:

a) Not being subjects prescribed in Clause 2 Article 17 of this Law;

b) A member or shareholder that is state enterprise prescribed at Point b Clause 1 Article 88 of this Law may not appoint person who has family relationship of a manager of the company and of a person with competence to appoint managers of the company to act as the authorized representative of another company;

c) Other qualifications and conditions provided by the company charter.

Article 15. Responsibilities of authorized representatives of institutional owners, members and shareholders

1. An authorized representative shall, in the name of the owner, member or shareholder, exercise the rights and perform the obligations of the owner, member or shareholder at the Members' Council or General Meeting of Shareholders in accordance with this Law. All restrictions of the owner, member or shareholder with regard to his/her authorized representative in exercising the rights and performing the obligations of the respective owner, member or shareholder at the Members' Council or General Meeting of Shareholders are not valid to a third party.

2. An authorized representative shall attend all the meetings of the Members' Council or General Meeting of Shareholders; exercise the authorized rights and perform the authorized obligations in an honest, prudent and best manner and protect the lawful interests of the owner, member or shareholder appointing the authorized representative.

3. An authorized representative must be responsible to the owner, member or shareholder appointing the authorized representative for any breaches of the obligations provided in this Article. The owner, member or shareholder appointing the authorized representative must be responsible to third parties for the arising liabilities related to the rights and obligations exercised or performed by the authorized representative.

Article 16. Prohibited acts

1. Granting or refusing to grant enterprise registration certificates against the provisions of this Law; requesting enterprise founders to provide additional papers that are not required in this Law; causing any delay to, troubling, obstructing or hassling enterprise founders and enterprises' business operations.

2. Obstructing owners, members or shareholders of enterprises in exercising the rights and performing the obligations provided by this Law and the company charter.

3. Conducting business in the form of an enterprise without registration, or continuing to conduct business after having the enterprise registration certificate revoked or when being in temporary cessation duration of the conducting business.

4. Declaring untruthfully or inaccurately the contents of the enterprise registration dossiers and dossiers to register changes in the enterprise registration contents.

5. Wrongly declaring charter capital, failing to sufficiently pay in the charter capital as registered; intentionally valuing the assets used for capital contribution not at their real value.

6. Conducting business in banned sectors or trades; conducting business in sectors or trades not yet accessed for foreign investors; conducting conditional businesses without satisfying all the business conditions prescribed by regulations or failing to maintain all business conditions in the course of operation.

7. Committing fraud, laundering money, financing terrorism.

Chapter II

ENTERPRISE ESTABLISHMENT

Article 17. Right to establish, contribute capital, purchase shares and contributed capital amounts and manage enterprises

1. Organizations and individuals have the right to establish and manage enterprises in Vietnam in accordance with this Law, except the cases specified in Clause 2 of this Article.

2. The following organizations and individuals may not establish and manage enterprises in Vietnam:

a) State agencies, units of people's armed forces using state assets to establish business enterprises to make profits for their own agencies or units;

b) Cadres, civil servants and public employees as prescribed by the Law on Cadres and Civil Servants and the Law on Public Employees;

c) Officers, non-commissioned officers, career army men, national defense workers and public employees in agencies and units of the Vietnam People's Army; officers, career non-commissioned officers, People's Public Security worker in agencies and units of the People's Public Security, except those who are appointed to act as authorized representatives to manage the State-contributed capital amounts in the enterprises or to manager in the state enterprises;

d) Managers and professional managers in state enterprises prescribed at Point a Clause 1 Article 88 of this Law, except those appointed to be authorized representatives to manage the state-contributed capital amounts in other enterprises;

dd) Minors; persons whose civil act capacity is limited or lost; persons with difficulty in perceiving and controlling their acts; organizations without legal person status;

e) Persons being examined for penal liability, held in temporary detention, serving the imprisonment penalty or administrative handling measures at compulsory drug rehabilitation establishment or compulsory education establishment or prohibited by court from holding certain positions or prohibited from practicing certain professions or performing certain jobs; other cases prescribed by the Law on Bankruptcy and the Anti-Corruption Law.

If requested by the business registration agency, enterprise founding registrants shall submit their judicial record cards to the business registration agency.

g) An organization being commercial legal person prohibited from doing business in certain areas or prohibited from operating in certain areas prescribed in the Penal Code.

3. Organizations and individuals have the right to contribute capital to, purchase shares or contributed capital amounts of, joint stock companies, limited liability companies and partnerships in accordance with this Law, except:

a) State agencies, units of people's armed forces using state assets to contribute capital to enterprises to make profits for their own agencies and units;

b) Those who may not contribute capital to enterprises as prescribed by the Law on Cadres and Civil Servants, the Law on Public Employees, the Anti-Corruption Law;

4. Making profits for their own agencies or units referred to at Point a, Clause 2, and Point a, Clause 3, of this Article means the use of any income gained from business operations, from capital contribution or purchase of shares

or contributed capital amounts for one of the following purposes:

a) Distributing in any forms among a number of or all persons specified at Points b and c, Clause 2 of this Article;

b) Supplementing the operational budget of the agency or unit against regulations on the state budget;

c) Setting up a fund or supplementing a fund to serve the agency's or unit's own interests.

Article 18. Contracts prior to enterprise registration

1. Founders of an enterprise may sign contracts to serve the establishment and operation of the enterprise prior to and during the course of enterprise registration.

2. If the enterprise registration certificate is granted, the enterprise shall continue exercising the rights and performing the obligations arising from the signed contracts referred to in Clause 1 of this Article and parties must transfer to the ward the rights and obligations according to the contract as prescribed in the Civil Code, unless otherwise agreed between the parties to the contracts

3. If the enterprise registration certificate is not granted, the person who signed the contract under Clause 1 of this Article must be liable for performing such contract; if other people participate in the enterprise establishment, they must be jointly liable for performing such contract.

Article 19. Registration dossiers for private enterprises

1. Enterprise registration application.

2. Copy of legal document of individual for owner of a private enterprise.

Article 20. Registration dossiers for partnerships

1. Enterprise registration application.

2. Partnership charter.

3. List of partners.

4. Copy of legal document of individual for partners.

5. Copy of the investment registration certificate for foreign investors as prescribed by the Law on Investment.

Article 21. Registration dossiers for limited liability companies

1. Enterprise registration application.

2. Company charter.

3. List of members.

4. Copies of the following documents:

a) Legal document of individual for individual members, at-law representatives;

b) Legal document of organization for organization members and document appointing the authorized representative; legal document of individual for authorized representatives of organization members.

For a member being a foreign organization, the copy of legal document of organization shall be consularly legalized;

c) Investment registration certificate, for foreign investors as prescribed by the Law on Investment.

Article 22. Registration dossiers for joint stock companies

1. Enterprise registration application.

2. Company charter.

3. List of founding shareholders; list of foreign shareholders.

4. Copies of the following documents:

a) Legal document of individual for founding shareholders and foreign shareholders being individuals, at-law representatives;

b) Legal document of organization for organization shareholders and document appointing the authorized representative; legal document of individual for authorized representatives of founding shareholders and foreign shareholders being organizations.

For a member being a foreign organization, the copy of legal document of organization shall be consularly legalized;

c) Investment registration certificate, for foreign investors as prescribed by the Law on Investment.

Article 23. Contents of an enterprise registration application

An enterprise registration application must contain the following principal details:

1. Names of the enterprise;

2. Address of the head office of the enterprise; telephone number, facsimile number, email address (if any);

3. Business line;

4. Charter capital; investment capital of the private enterprise owner;

5. Types of shares, par value of each type of shares and total number of shares of each type which may be offered, for a joint stock company;

6. Tax registration information;

7. Tentative number of employees;

8. Full name, signature, contact address, citizenship, and information of legal document of individual, for private enterprise owners or general partners of partnerships;

9. Full name, signature, contact address, citizenship, and information of legal document of individual, for the at-law representative of limited liability companies or joint stock companies.

Article 24. Company charter

1. The company charter includes the charter upon enterprise registration and the charter that is amended and supplemented in the course of operation.

2. A company charter must include the following principal content:

a) Name and head office address of the company; name(s) and address(es) of branch(es) and representative office(s), if any;

b) Business line;

c) Charter capital; total number of shares, types of shares and par value of shares of each type, for joint stock companies;

d) Full names, contact addresses, citizenships of general partners, for partnerships; of the company owner or members, for limited liability companies; of founding shareholders, for joint stock companies. Contributed capital amount and its value of each member, for limited liability companies or partnerships; number of shares, types of shares, par value of shares of each type of founding shareholders, for joint stock companies;

dd) Rights and obligations of members, for limited liability companies and partnerships; of shareholders, for joint stock companies;

e) Management and organizational structure;

g) Number, managerial titles and rights, obligations of at-law representatives of the enterprise; rights and obligations division among at-law representativesif there is more than one at-law representative;

h) Procedures for adoption of company decisions; principles for settlement of internal disputes;

i) Bases and method of determining wages, remuneration, and bonuses for managers and supervisors;

k) Circumstances in which a member or a shareholder may request the company to redeem his/her/its contributed capital amount, for limited liability companies, or his/her/its shares, for joint stock companies;

l) Principles of distribution of after-tax profits and handling of losses in business;

m) Cases of dissolution, procedures for dissolution and procedures for liquidation of company assets;

n) Procedures for revision of the company charter.

3. The company charter upon enterprise registration must bear full names and signatures of:

a) General partners, for partnerships;

b) Individual company owner or at-law representative of the institutional company owner, for single-member limited liability companies;

c) Individual members and at-law representatives or authorized representatives of institutional members, for limited liability companies with two or more members;

d) Individual founding shareholders and at-law representatives or authorized representatives of institutional founding shareholders, for joint stock companies.

4. The amended and supplemented charter must bear full names and signatures of:

a) Chairperson of the Members' Council, for partnerships;

b) Owner, at-law representative of the owner or at-law representative for single-member limited liability companies;

c) At-law representatives, for member limited liability companies with two or more members and joint stock companies.

Article 25. List of members of a limited liability company or partnership, list of founding shareholders and of foreign shareholders of a joint stock company

The list of members of a limited liability company or partnership, the list of founding shareholders and foreign shareholders of a joint stock company must contain the following principal details:

1. Full names, signatures, citizenships, contact addresses of individual members, for limited liability companies and partnerships; or of individual founding shareholders and foreign shareholders, for joint stock companies;

2. Names and enterprise identification numbers and head office addresses of institutional members, for limited liability companies and partnerships; or of institutional founding shareholders and foreign shareholders, for joint stock companies;

3. Full names, signatures, citizenships, contact addresses of at-law representatives or authorized representatives of institutional members, for limited liability companies; or of institutional founding shareholders and foreign shareholders, for joint stock companies;

4. Contributed capital amount, its value, ratio of capital contribution ownership, type of assets, quantity of assets, value of each type of asset contributed as capital, schedule for capital contribution by each member, for limited liability companies and partnerships; number of shares, types of shares, ratio of share ownership, types of assets, quantity of assets, value of each asset contributed as capital, schedule for capital contribution by each founding shareholder and foreign shareholder, for joint stock companies.

Article 26. Order and procedures for enterprise registration

1. Enterprise founder or person authorized enterprise registration shall submit enterprise registration to the business registration agency as the following modes:

a) Direct enterprise registration at the business registration agency;

b) Enterprise registration via postal service;

c) Enterprise registration via portal;

2. Enterprise registration via portal means that enterprise founder submits an enterprise registration dossier via portal in the national enterprise registration portal. An enterprise registration dossier via portal includes the data prescribed in this Law and presented in electronic form. An enterprise registration dossier via portal has the same legal validity as a paper enterprise registration dossier.

3. Organizations and individuals may use digital signatures according to the regulations on e-transactions or use business registration accounts for enterprise registration via portal.

4. Business registration accounts is an account created by the National enterprise registration information system, granted to individual for enterprise registration via portal. Individuals granted business registration accounts shall be held responsible before law for registration to be granted and for using business registration accounts for enterprise registration via portal.

5. Within 03 working days after receiving the dossier, the business registration agency shall examine the validity of the enterprise registration dossier and grant the enterprise registration certificate; if the dossier is not valid, the business registration agency must notify in writing to the enterprise founder contents need to be amended and supplemented. In case of enterprise registration refusal, it shall notify in writing to the enterprise founder and clearly state the reason.

6. The Government shall stipulate the dossier, order and procedures, inter-agency coordination in the enterprise registration.

Article 27. Grant of enterprise registration certificates

1. An enterprise shall be granted an enterprise registration certificate when fully meeting the following conditions:

a) Its business line to be registered is not banned;

b) Its name complies with Articles 37, 38, 39 and 41 of this Law;

c) It has a valid enterprise registration dossier;

d) It has paid in full the enterprise registration fee in accordance with the law on charges and fees.

2. In case its enterprise registration certificate is lost, damaged or otherwise destroyed, an enterprise shall be re-granted the enterprise registration certificate and shall pay a fee therefor in accordance with the law on charges and fees.

Article 28. Contents of an enterprise registration certificate

An enterprise registration application must contain the following principal details:

1. Enterprise name and identification number of the enterprise;

2. Head office address of the enterprise;

3. Full name, contact address, citizenship, serial number of legal document of individual for the at-law representative of limited liability companies and joint stock companies; for the general partners of partnerships; for the enterprise owner of private enterprises; Full name, contact address, citizenship, serial number of legal document of individual for each individual member; name, enterprise identification number and its head office address of each institutional member, for limited liability companies;

4. Charter capital for company; investment capital of the private enterprise owner.

Article 29. Identification number of an enterprise

1. Identification number of an enterprise is a sequence of numbers created by the national enterprise registration information system, granted to the enterprise upon establishment and recorded on its enterprise registration certificate. A single identification number shall be granted to an enterprise and may not be re-used for another enterprise.

2. Identification numbers of enterprises shall be used for the fulfillment of tax obligations, administrative procedures and other rights and obligations.

Article 30. Registration of changes in contents of enterprise registration certificates

1. An enterprise that wishes to change the contents of its enterprise registration certificate specified in Article 28 of this Law shall register with the business registration agency.

2. The enterprise shall register the changes in the contents of the

enterprise registration certificate within 10 days after making the changes.

3. Within 03 working days after receiving the dossier, the business registration agency shall examine the validity of the dossier and grant the new enterprise registration certificate; if the dossier is not valid, the business registration agency must notify in writing to the enterprise contents need to be amended and supplemented. In case of new enterprise registration refusal, it shall notify in writing to the enterprise and clearly state the reason.

4. Registration of changes in the contents of an enterprise registration certificate according to a court decision or an arbitration award must comply with the following order and procedures:

a) The requester for registration of a change in the contents of an enterprise registration certificate shall send the request for change registration to a competent business registration agency within 15 days after the date the judgment or decision of court or arbitration award takes effect. The registration request shall be enclosed with a copy of the judgment or decision of court or arbitration award being effective;

b) Within 3 working days after receiving the registration request prescribed at Point a of this Clause, the business registration agency shall consider and grant a new enterprise registration certificate according to the contents of the effective judgment or decision of court or effective arbitration award; in case of invalid dossier, the business registration agency must notify in writing to the registration requester contents need to be amended and supplemented. In case of new enterprise registration certificate refusal, it shall notify in writing the change registration requester and state clearly the reason.

5. The Government shall stipulate the order and procedures for registration of changes in contents of enterprise registration certificates.

Article 31. Notification of changes in contents of enterprise registration

1. An enterprise shall notify the business registration agency when changing one of the following contents:

a) Business line;

b) Founding shareholder and foreign shareholder for joint stock companies, except for listed companies;

c) Other contents in the enterprise registration dossier.

2. The enterprise shall notify the changes in the contents of enterprise registration within 10 days from making the changes.

3. Within 10 days after there is a change in shareholders being foreign investors registered in the register of shareholders of the joint stock company, the company shall notify such change in writing to the business registration

agency of the place where its head office is located. The notice must at least include:

a) Name, enterprise identification number and head office address;

b) With regard to foreign shareholders transferring their shares: name and head office address of the institutional shareholder; full name, citizenship and contact address of the individual shareholder; number of shares, type of shares, his/her current ratio of share ownership in the company; number of shares and type of the transferred shares;

c) With regard to foreign shareholders receiving transferred shares: name and head office address of the institutional shareholder; full name, citizenship and contact address of the individual shareholder; number of shares, types of shares transferred; number of shares, type of shares, and his/her/its ratio of share ownership in the company;

d) Full name and signature of the company's at-law representative.

4. Within 03 working days after receiving the notification, the business registration agency shall examine the validity and change the contents of enterprise registration; if the dossier is invalid, the business registration agency must notify in writing to the enterprise contents need to be amended and supplemented. In case of refusal to amend and supplement information in the notification of changes in enterprise registration contents, it shall notify in writing to the enterprise and state clearly the reason.

5. Notification of changes in contents of enterprise registration according to a court decision or an arbitration award must comply with the following order and procedures:

a) The organization, individual requesting for changes in contents of enterprise registration shall send a notification of change registration content to a competent business registration agency within 10 days from the date the judgment or decision of court or arbitration award takes effect. The notification shall be enclosed with a copy of the judgment or decision of court or arbitration award being effective;

b) Within 03 working days after receiving the notification, the business registration agency shall consider and change the contents of enterprise registration according to the contents of the effective judgment or decision of court or effective arbitration award; in case of invalid dossier, the business registration agency must notify in writing to the registration requester contents need to be amended and supplemented. In case of refusal to amend and supplement information in the notification of changes in enterprise registration contents, it shall notify in writing to the registration requester and state clearly the reason.

Article 32. Announcement of contents of enterprise registration

1. After being granted an enterprise registration certificate, an enterprise shall publicly announce the enterprise registration on the national enterprise registration portal and pay a charge as prescribed by laws. The contents to be announced include the contents of the enterprise registration certificate and the following information:

a) Business line;

b) List of founding shareholders; list of foreign shareholders, for joint stock companies (if any).

2. In case of a change in the contents of enterprise registration, such change shall be publicly announced on the National Enterprise Registration Portal.

3. The time limit for public announcement of enterprises' information prescribed in Clauses 1 and 2 of this Article is 30 days from the starting date of announcement.

Article 33. Provision of information on contents of enterprise registration

1. Organizations, individuals may request state management agencies of business registration and the business registration agency to provide information archived in the national enterprise registration information system and pay a charge as prescribed by laws.

2. State management agencies of business registration and the business registration agency is obliged to timely provide sufficient information prescribed in Clause 1 of this Article.

3. The Government shall detail this Article.

Article 34. Assets contributed as capital

1. Assets contributed as capital shall be in the form of Vietnam dong, freely convertible foreign currencies, gold, and use rights, intellectual property rights, technologies, technical know-how and other assets that can be valued in Vietnam dong.

2. Only individuals and organizations that are lawful owners or have lawful use right of above-mentioned assets prescribed in Clause 1 of this Article may use such assets for capital contribution according to the regulations.

Article 35. Transfer of ownership of assets contributed as capital

1. Members of a limited liability company or partnership and shareholders of a joint stock company shall transfer ownership of assets contributed as capital to the company according to the following provisions:

a) For assets with registered ownership or land use rights, the capital contributor shall carry out the procedures to transfer the ownership of such assets or the land use rights to the company as prescribed by laws. The transfer of ownership of assets, land use rights contributed as capital is not subject to registration fee;

b) For assets the ownership of which is not subject to registration, except through account, capital contribution shall be made by handing over assets contributed as capital, certified with a minutes.

2. The minutes of handover of assets contributed as capital must have the following principal contents:

a) Name and head office address of the company;

b) Full name, contact address, serial number of legal document of individual, serial number of legal document of organization of the capital contributor;

c) Type of assets and number of units of assets contributed as capital; total value of assets contributed as capital and percentage of the total value of such assets in the charter capital of the company;

d) Date of handover; signatures of the capital contributor or his/her authorized representative and the at-law representative of the company.

3. The capital contribution shall be considered having been contributed only when the lawful ownership of the assets contributed as capital has been transferred to the company.

4. In case an asset is used for business operations of the owner of a private enterprise, it is not required to carry out the procedures for the transfer of its ownership to the enterprise.

5. Payments for the purchase, sale and transfer of shares and contributed capital amounts, receipt of dividends and emittance of profit abroad for foreign investors shall be made through accounts according to the regulations on foreign exchange control, except for payment in assets and other forms that are not in cash.

Article 36. Valuation of assets contributed as capital

1. Assets contributed as capital which are not Vietnam dong, a freely convertible currency or gold shall be valued by the members, founding shareholders or a valuation organization and denominated in Vietnam dong.

2. Assets contributed to an enterprise upon its establishment shall be valued by its members or founding shareholders on the principle of consensus or by a valuation organization. If these assets are valued by a valuation organization, the value of the assets contributed as capital shall be accepted by more than 50% of members or founding shareholders.

If assets contributed as capital are overvalued compared with their actual value at the time of capital contribution, the members or founding shareholders shall jointly make additional capital contribution equal to the difference between the assessed value and the actual value of the assets contributed as capital at the time of completion of the valuation; and at the same time must be jointly responsible for the damage caused by their intentional overvaluation of assets.

3. Assets contributed as capital in the course of operation shall be valued on the basis of agreement between the owner or Members' Council, for limited liability companies and partnerships, the Board of Directors, for joint stock companies, and the capital contributor or by a valuation organization. If a valuation organization conducts the valuation, the value of the assets contributed as capital shall be agreed by the capital contributor and the owner or Members' Council or the Board of Directors.

In case the assets contributed as capital are overvalued compared with their actual value at the time of capital contribution, the capital contributor, owner or members of Members' Council, for limited liability companies or partnerships, members of the Board of Directors, for joint stock companies, shall jointly make additional capital contribution equal to the difference between the assessed value and the actual value of the assets contributed as capital at the time of completion of the valuation; and at the same time must be jointly responsible for the damage caused by their intentional overvaluation of assets.

Article 37. Names of the enterprise

1. The name in Vietnamese of an enterprise must include two components in the following order:

a) Type of enterprise;

b) Proper name.

2. The type of enterprise shall be written as "cong ty trach nhiem huu han" (limited liability company) or "cong ty TNHH", for a limited liability company; as "cong ty co phan" (joint stock company) or "cong ty CP," for a joint stock company; as "cong ty hop danh" (partnership) or "cong ty HD," for a partnership; as "doanh nghiep tu nhan" (private enterprise), "DNTN" or "doanh nghiep TN" for a private enterprise;

3. The proper name must be written in letters in the Vietnamese alphabet, the letters F, J, Z, W, numerals and symbols.

4. The name of an enterprise shall be attached at the head office, branches, representative offices and business locations of the enterprise. The name of an enterprise shall be printed or written on transaction papers, documents, materials and printed matters issued by the enterprise.

5. Pursuant to this Article and Articles 38, 39 and 41 of this Law, the business registration agency may reject the proposed names for registration of

enterprises.

Article 38. Prohibited acts in naming enterprises

1. Using names which are identical or confusingly similar to the name of a registered enterprise as prescribed in Article 41 of this Law.

2. Using the name of a state agency, people's armed forces unit, political organization, socio-political organization, socio-politico-professional organization, social organization or socio-professional organization as the whole or part of the proper name of an enterprise, unless it is consented to by such agency, unit or organization.

3. Using words, phrases and symbols which contravene national historical traditions, culture, ethics and fine customs.

Article 39. Names of enterprises written in foreign languages and abbreviated names of enterprises

1. The name of an enterprise written in a foreign language is the name which is translated from Vietnamese into a foreign language of the Latin script system. When translated into a foreign language, the proper name of an enterprise may be kept unchanged or translated according to its meaning.

2. In case an enterprise has its name in a foreign language, its name in foreign language shall be printed or written in a font size smaller than that of its Vietnamese name at the head office, branches, representative offices and business locations of the enterprise or on transaction papers, documents, materials and printed matters issued by the enterprise.

3. The abbreviated name of an enterprise may be an abbreviation of its Vietnamese name or its name in a foreign language.

Article 40. Names of branches, representative offices and business locations

1. Names of branches, representative offices and business locations must be in letters in the Vietnamese alphabet, the letters F, J, Z, W, numerals and symbols.

2. Name of a branch, representative office or business location must start with "Chi nhanh" (branch) for branches, or "Van phong dai dien" (representative office) for representative offices or "Dia diem kinh doanh" (business location) for business locations.

3. Names of branches, representative offices and business locations shall be written or attached at head offices of these branches, representative offices and business locations. The name of a branch or representative office shall be printed or written in a font size smaller than that of the enterprise's Vietnamese name on transaction papers, documents, materials and printed matters issued by the branch or representative office.

Article 41. Identical names and confusingly similar names

1. Identical name means a Vietnamese name of an enterprise requesting registration that is written completely identical to a Vietnamese name of a registered enterprise.

2. The cases that shall be regarded names which are confusingly similar to the name of a registered enterprise, are:

a) The Vietnamese name of an enterprise requesting registration is pronounced the same as the name of a registered enterprise;

b) The abbreviated name of an enterprise requesting registration is identical to the abbreviated name of a registered enterprise;

c) The foreign-language name of an enterprise requesting registration is identical to the foreign-language name of a registered enterprise;

d) The proper name of an enterprise requesting registration is different from the name of a same-type registered enterprise only by a cardinal number, ordinal number, or a letter in Vietnamese alphabet, the letters F, J, Z, W written following the proper name of such enterprise with space or not;

dd) The proper name of an enterprise requesting registration is different from the proper name of a same-type registered enterprise only by a symbol "&", "va" (and), ".", ",", "+", "-" or "_";

e) The proper name of an enterprise requesting registration is different from the proper name of a same-type registered enterprise only by the word "tan" (new) immediately preceding or the word "moi" (new) following or preceding the proper name of registered enterprise with space or not;

g) The proper name of an enterprise requesting registration is different from the proper name of a same-type registered enterprise only by a phrase "the North", "the South", "the Central", "the West" or "the East";

h) The proper name of an enterprise requesting registration is identical to the proper name of a registered enterprise.

3. The cases prescribed at Points d, dd, e, g and h, Clause 2 of this Clause shall not apply to subsidiaries of a registered enterprise.

Article 42. Head offices of enterprises

The head office of an enterprise that is located in the territory of Vietnam, is the contact address of the enterprise, defined according to the administrative boundaries; has telephone and facsimile numbers and email address (if any).

Article 43. Seals of enterprises

1. Seals include the seal that is made in establishments engraving seals and the one in the form of digital signature in accordance with regulations on e-transactions.

2. An enterprise may decide on the type, quantity, appearance and content of its seal and the seal of its branches, representative offices and other units.

3. The management and preservation of the seal must comply with the company charter or a regulation issued by the enterprise or its branches, representative offices or other units having the seal. Enterprise shall use the seal in transactions prescribed by law.

Article 44. Branches, representative offices and business locations of an enterprise

1. A branch is a dependent unit of the enterprise, having the task of performing all or a number of the functions of the enterprise, including the function of authorized representation. The business lines of the branch must be those of the enterprise.

2. A representative office is a dependent unit of the enterprise, having the task of representing under authorization the interests of the enterprise and protecting such interests. A representative office shall not perform the business function of the enterprise.

3. A business location is the location where the enterprise carries out specific business operations.

Article 45. Operation registration of branches and representative offices of an enterprise; notification of business locations

1. An enterprise may establish branches and representative offices in Vietnam and overseas. An enterprise may establish one or more than one branch and representative office in one locality by administrative boundary.

2. An enterprise that wishes to establish a branch or representative office in Vietnam shall send a dossier for operation registration of the branch or representative office to the competent business registration agency of the locality where its branch or representative office is located. A dossier must comprise:

a) Notification of branch or representative office establishment;

b) Copies of the establishment decision of the branch or representative office of the enterprise and the minutes of the meeting on the establishment; copy of individual legal document of the head of the branch or representative office.

3. Within 03 working days after receiving the dossier, the business registration agency shall consider the validity of the dossier and grant the operation registration certificate of the branch or representative office; if the dossier is invalid, the business registration agency must notify in writing to the enterprise contents need to be amended and supplemented. If refusal to grant the operation registration certificate of the branch or representative office, it shall

notify its refusal in writing to the enterprise and state clearly the reason.

4. The enterprise shall register changes in the contents of operation registration certificates of branches and representative offices within 10 days after such changes are made.

5. Within 10 days from the date of business locations decision, the enterprise must notify business locations to the business registration agency.

6. The Government shall detail this Article.

Chapter III
LIMITED LIABILITY COMPANIES

Section 1
LIMITED LIABILITY COMPANIES WITH TWO OR MORE MEMBERS

Article 46. Limited liability companies with two or more members

1. A limited liability company with two or more members is an enterprise that has between 02 and 50 members being organizations or individuals. Members must be liable for the debts and other property obligations of the enterprise within the amount of capital contributed to the enterprise, except the case specified in Clause 4, Article 47 of this Law; the contributed capital amount of each member may only be transferred in accordance with Articles 51, 52 and 53 of this Law.

2. A limited liability company with two or more members has the legal person status from the date it is granted the enterprise registration certificate.

3. A limited liability company with two or more members may not issue its shares, except the issuing is for transfer to a joint stock company.

4. A limited liability company with two or more members may issue bonds according to this Law and other relevant regulations; the private placement of bonds shall comply with Articles 128 and 129 of this Law.

Article 47. Capital contribution for company establishment and grant of capital contribution certificates

1. Charter capital of a limited liability company with two or more members at the time of enterprise registration is the total amount of capital the members commit to contributing to the company and is stated in the company charter.

2. Members shall make capital contribution to the company sufficiently

and with the right types of assets as committed at the time of registering the enterprise establishment within 90 days after the enterprise registration certificate is granted, not including the time of transporting, importing assets contributed as capital and performing administrative procedures to transfer the ownership of assets. Within this time limit, the members have the rights and obligations in proportion to their respective committed capital contribution ratios. Company members may only make capital contribution to the company with assets other than the types of assets committed if it is agreed by more than 50% of remaining members.

3. If a member fails to contribute or fails to contribute in full the committed amount of capital after the time limit prescribed in Clause 2 of this Article expires, this case shall be handled as follows:

a) The member who fails to contribute capital as committed naturally ceases to be a member of the company;

b) The member who fails to contribute in full the capital amount as committed has the rights in proportion to the paid-in capital amount;

c) The unpaid capital amount of the member shall be offered for sale under a resolution or decision of the Members' Council.

4. In case a member fails to contribute or fails to contribute in full the committed capital amount, the company shall register for the adjustment of the charter capital and capital contribution ratios of the members according to the paid-in capital amount within 30 days from the last date for sufficient capital contribution under Clause 2 of this Article. The members who fail to contribute capital or fail to contribute in full capital amounts as committed must be liable with their committed capital amounts for the financial obligations of the company arising before the date the company registers for for the adjustment of the charter capital and capital contribution ratios of the members.

5. Except the cases specified in Clause 2 of this Article, a capital contributor shall become the company member after the time a member contributes capital amount and information about the capital contributor prescribed at Points b, c, dd, Clause 2, Article 48 of this Law is fully recorded in the register of members. At the time a member contributes in full the capital amount, the company shall issue a capital contribution certificate to the member specifying the value of the contributed capital amount.

6. A capital contribution certificate must contain the following principal details:

a) Name, enterprise identification number and head office address of the company;

b) Charter capital of the company;

c) Full name, contact address, citizenship, serial number of legal document of individual for each individual member; name, enterprise identification number or serial number of legal document of organization and its head office address for each institutional member;

d) Contributed capital amounts, contributed capital ratios of members;

dd) Serial number and date of grant of the capital contribution certificate;

e) Full name and signature of the at-law representative of the company.

7. In case a capital contribution certificate is lost, damaged, burnt or otherwise destroyed, the member shall be granted another capital contribution certificate by the company according to the order and procedures provided in the company charter.

Article 48. Register of members

1. A register of members shall be made by the company immediately after the enterprise registration certificate is granted. It may be paper document, electronic data recording capital contribution ownership of members of the company.

2. A register of members must contain the following principal details:

a) Name, enterprise identification number and head office address of the company;

b) Full name, contact address, citizenship, serial number of legal document of individual for each individual member; name, enterprise identification number or serial number of legal document of organization and its head office address for each institutional member;

c) Contributed capital amount, capital contribution ratio, time of contribution; types of asset contributed as capital, quantity and value of each type of asset contributed as capital of each member;

d) Signatures of individual members or at-law representatives of institutional members;

dd) Serial number and date of the capital contribution certificate of each member.

3. According to the request of relevant members, the company must update promptly member changes in the register of members under the company charter.

4. The register of members shall be kept at the head office of the company.

Article 49. Rights of members in the Members' Council

1. Members of the Members' Council has the following rights and obligations:

a) To attend meetings of the Members' Council, to discuss, make recommendations and vote on matters falling within the competence of the Members' Council;

b) To have the number of votes in proportion to their contributed capital amounts, except the case specified in Clause 2, Article 47 of this Law;

c) To be distributed with profits in proportion to their contributed capital amounts after the company has fully paid all taxes and fulfilled all other financial obligations in accordance with law;

d) To be distributed with the remaining value of assets of the company in proportion to their contributed capital amounts upon dissolution or bankruptcy of the company;

dd) To be given priority in making additional capital contributions to the company upon increase of charter capital of the company;

e) To dispose of their contributed capital amounts by transferring, donating or otherwise giving away part or the whole of such amounts in accordance with law and the company charter;

g) To sue in its name or in the name of the company for civil liability the chairperson of the Members' Council, director or director general, at-law representative and other managers in accordance with Article 72 of this Law;

h) Other rights provided in this Law and the company charter.

2. Besides the rights specified in Clause 1 of this Article, a member or a group of members holding 10 or more percent of the charter capital or a smaller percentage as provided in the company charter or in Clause 3 of this Article shall have the following additional rights:

a) To request to convene a meeting of the Members' Council to deal with issues within its competence;

b) To check, examine and look up the recording books and monitor the transactions, accounting books and annual financial statements;

c) To check, examine, look up and copy the register of members, meeting minutes, resolutions, decisions of the Members' Council, and other documents of the company;

d) To request a court to revoke a resolution or decision of the Members' Council within 90 days after the conclusion of the meeting of the Members' Council, if the order, procedures, conditions of the meeting or the contents of such resolution, decision are incompliant or inconsistent with this Law and the company charter.

3. If a member of the company holds more than 90% of the charter capital and the company charter does not stipulate a smaller percentage as provided in Clause 2 of this Article, the group of remaining members naturally has the right

as provided in Clause 2 of this Article.

Article 50. Obligations of members in the Members' Council

1. To contribute in full and on time the capital amounts as committed and to be liable for the debts and other property obligations of the company within the amount of contributed capital, except the cases specified in Clauses 2 and 4, Article 47 of this Law.

2. Not to withdraw their contributed capital amounts from the company in any form, except the cases provided in Articles 51, 52, 53 and 68 of this Law.

3. To comply with the company charter.

4. To observe resolutions and decisions of the Members' Council.

5. To bear personal responsibility when performing the following acts in the name of the company:

a) Illegal acts;

b) Conducting business or other transactions not for the interest of the company and causing damage to other persons;

c) Paying premature debts when the company is likely to be in financial danger.

6. Other obligations as prescribed by laws.

Article 51. Redemption of contributed capital amounts

1. A member may request the company to redeem its contributed capital amount if such member votes against a resolution or a decision of the Members' Council on the following issues:

a) Amendments and supplementations to the company charter relating to the rights and obligations of members and of the Members' Council;

b) Reorganization of the company;

c) Other cases provided in the company charter.

2. A request for redemption of contributed capital amount shall be made in writing and sent to the company within 15 days after a resolution or decision specified in Clause 1 of this Article is adopted.

3. Within 15 days after receiving member's request prescribed in Clause 1 of this Article, the company shall redeem the contributed capital amount of such member at the market price or at the price calculated under the principle in the company charter unless the parties have an agreement on price. Payment may only be made if, after the full payment for such redeemed contributed capital amount is made, the company is still able to pay all debts and other property obligations.

4. In case the company does not redeem the contributed capital amount

under the request for redemption of contributed capital amount under Clause 3 of this Article, such member has the right to freely transfer his/her/its contributed capital amount to another member or a non-member.

Article 52. Transfer of contributed capital amounts

1. Except the cases specified in Clause 4, Article 51, and Clauses 6 and 7, Article 53, of this Law, a member of a limited liability company with two or more members has the right to transfer part or the whole of his/her/its contributed capital amount to other persons in accordance with the following provisions:

a) Having to offer to sell such contributed capital amount to other members in proportion to their contributed capital amounts in the company under the same offering conditions;

b) Transferring to non-members under the same offering conditions applicable to remaining members provided at Point a of this Clause only when the remaining members of the company do not purchase or do not purchase in full the contributed capital amounts within 30 days from the offering date.

2. The transferring member still has the rights and obligations toward the company in proportion to his/her/its relevant contributed capital amount until the purchaser's information specified at Points b, c, and dd, Clause 2, Article 48 of this Law is fully recorded in the register of members.

3. In case the transfer of or change in the contributed capital amounts of the members results in the fact that there remains only one member in the company, the company shall organize its operations in the form of a single-member limited liability company and register the change in the contents of enterprise registration within 15 days after completing the transfer.

Article 53. Handling of contributed capital amounts in some special cases

1. In case an individual member dies, his/her testamentary or at-law heir shall become member of the company.

2. In case an individual member is declared missing by a court, his/her rights and obligations in the company shall be exercised and performed by the manager of such member's property as prescribed by the civil law.

3. In case a member has limited or lost civil act capacity or has difficulty in perceiving and controlling their acts, his/her rights and obligations in the company shall be exercised and performed by his/her representative.

4. The contributed capital amount of a member shall be redeemed by the company or transferred in accordance with Articles 51 and 52 of this Law in the following cases:

a) His/her heir does not wish to become a member;

b) The recipient as prescribed in Clause 6 of this Article is not approved by the Members' Council to become a member;

c) The member being an organization is dissolved or goes bankrupt.

5. In case an individual member dies without any heir or his/her heir disclaims the inheritance or his/her right to inherit is deprived, such contributed capital amount shall be handled in accordance with the civil law.

6. In case a member donates part or the whole of his/her contributed capital amount in the company to other persons, the recipient shall become a member of the company according to the following provisions:

a) If the recipient is at-law heir under the Civil Code, the recipient shall naturally become a member of the company;

b) If the recipient is not the subject under Point a of this Clause, the recipient shall only become a member of the company upon approval of the Members' Council.

7. In case a member uses its contributed capital amount to pay a debt, the payee may use such contributed capital amount in either of the two following forms:

a) To become a member of the company upon approval of the Members' Council;

b) To offer for sale and transfer such contributed capital amount under Article 52 of this Law.

8. In case an individual member of the company is being held in temporary detention, serving their imprisonment penalty, administrative handling measures at compulsory drug rehabilitation establishment or compulsory education establishment, such member must to authorize another person to exercise and perform several or the whole of his/her rights and obligations in the company.

9. In case an individual member of the company is prohibited by a court from practicing certain professions or performing certain jobs, or a company's member being commercial legal person is prohibited by a court from doing business or operating in certain areas in business line of the company, such member shall not practice such professions or perform such jobs in the company or the company must to suspend or terminate business of relevant sectors and trades under a decision of a court.

Article 54. The organizational and management structure of companies

1. A limited liability company with two or more members must have a Members' Council, a chairperson of the Members' Council and a director or director general.

2. A limited liability company with two or more members being state enterprises according to Point b Clause 1 Article 88 of this Law and subsidiary companies of state enterprises according to Clause 1 Article 88 of this Law must form a Supervisory Board; other cases decided by the company.

3. At least one at-law representative of the company is chairperson of the Members' Council and director or director general. If it is not provided in the company charter, the chairperson of the Members' Council shall act as the at-law representative of the company.

Article 55. The Members' Council

1. The Members' Council is the highest decision-making body of the company, shall be composed of all members being individuals and authorized representatives of organization members of the company. The company charter must make specific provisions on meeting sessions of the Members' Council, but the Members' Council shall meet at least once a year.

2. The Member's Council has the following rights and obligations:

a) To decide on development strategies and annual business plans of the company;

b) To decide on the increase or reduction of the charter capital and on the timing and method of raising additional capital, on issue of bonds;

c) To decide on development investment projects of the company; solutions for market development, marketing and technology transfer;

d) To approve loan agreements, contracts for sale of assets and other contracts as provided in the company charter which are valued at 50 or more percent of the total value of assets recorded in the latest financial statement of the company or a smaller percentage or value as provided in the company charter;

dd) To elect, relieve of duty or remove from office the chairperson of the Members' Council; to decide on the appointment, relief of duty, removal from office, signing and termination of contracts with the director or director general, chief accountant, supervisor and other managers provided in the company charter;

e) To decide on wages, remuneration, bonus and other benefits for the chairperson of the Members' Council, the director or director general, chief accountant and other managers provided in the company charter;

g) To approve annual financial statements, plans for use and distribution of profits or plans for dealing with losses of the company;

h) To decide on the organizational and management structure of the company;

i) To decide on the establishment of subsidiaries, branches and representative offices;

k) To make amendments and supplements to the company charter;

l) To decide on reorganization of the company;

m) To decide on dissolution or to request bankruptcy of the company;

n) Other rights and obligations provided in this Law and in the company charter.

Article 56. Chairperson of the Members' Council

1. The Members' Council shall elect a member to be its chairperson. The chairperson of the Members' Council may concurrently work as the director or director general of the company.

2. The chairperson of the Members' Council has the following rights and obligations:

a) To prepare working programs and plans of the Members' Council;

b) To prepare programs, agenda and documents for meetings of the Members' Council or for collecting opinions of members;

c) To convene, preside over and chair meetings of the Members' Council or to organize the collection of opinions of members;

d) To supervise, or to organize the supervision of the implementation of resolutions or decisions of the Members' Council;

dd) To sign resolution, decisions of the Members' Council on behalf of the Members' Council;

e) Other rights and obligations provided in this Law and the company charter.

3. The term of office of the chairperson of the Members' Council is prescribed in the company charter but must not exceed 5 years and the chairperson of the Members' Council may be re-elected for an unlimited number of terms.

4. In his/her absence or incapacity to perform his/her rights and obligations, the chairperson of the Members' Council shall authorize in writing a member to exercise the rights and perform the obligations of the chairperson of the Members' Council on the principles provided in the company charter. If no member is authorized or the chairperson of the Members' Council is dead, missing, held in temporary detention, examined for penal liability, serving their imprisonment penalty, administrative handling measures at compulsory drug rehabilitation establishment or compulsory education establishment, absconds from his/her place of residence, has his/her civil act capacity limited or lost, has difficulty in perceiving and controlling their acts, is prohibited by court from holding certain positions or prohibited from practicing certain professions or

performing certain jobs, one of the members of the Members' Council shall convene a meeting of the remaining members to elect by simple majority one person from the members to temporarily work as the chairperson of the Members' Council until a new decision of the Members' Council.

Article 57. Convening meetings of the Members' Council

1. A meeting of the Members' Council may be convened at the request of the chairperson of the Members' Council or of a member or a group of members as provided in Clauses 2 and 3, Article 49 of this Law. If the chairperson of the Members' Council does not convene a meeting of the Members' Council at the request of a member or group of members within 15 days after receiving such request, such member or group of members shall convene a meeting of the Members' Council. Reasonable expenses for convening and conducting a meeting of the Members' Council shall be reimbursed by the company.

2. The chairperson of the Members' Council or the convenor shall prepare programs, agenda and documents and convene, preside and chair meetings of the Members' Council. A member has the right to recommend in writing additions to the agenda. A recommendation must contain the following principal details:

b) Full name, contact address, citizenship, serial number of legal document of individual for individual member; name, enterprise identification number or serial number of legal document of organization and its head office address for institutional member; full name and signature of the convenor or his/her authorized representative;

b) The capital contribution ratio, serial number and date of grant of the capital contribution certificate;

c) Recommendations to be included in the agenda;

d) Reason for the recommendation.

3. The chairperson of the Members' Council or the meeting convenor shall approve a recommendation and make additions to the agenda of a meeting of the Members' Council if such recommendation contains all the details as required at Clause 2 of this Article and is sent to the head office of the company at least 01 working day before the date of the meeting of the Members' Council; in case a recommendation is submitted immediately prior to a meeting, it shall be approved if a majority of the members attending the meeting so agree.

4. The invitation to a meeting of the Members' Council may be in the form of letter of invitation, telephone call, fax, telex or other electronic means provided in the company charter and shall be sent directly to each member of the Members' Council. The meeting invitation must specify the time, venue and agenda of the meeting.

5. The agenda and documents for a meeting shall be sent to members of

the company prior to the meeting. Documents to be used in a meeting relating to decisions on amendments and supplementations to the company charter, approval of the development direction of the company, approval of annual financial statements, reorganization or dissolution of the company shall be sent to members at least 7 working days prior to the date of the meeting. The deadlines for sending other documents shall be provided in the company charter.

6. If it is not provided in the company charter, the request to convene a meeting of the Members' Council under Clause 1 of this Article must be in writing and contain the following principal details:

b) Full name, contact address, citizenship, serial number of legal document of individual for individual member; name, enterprise identification number or serial number of legal document of organization and its head office address for institutional member; capital contribution ratio, serial number and date of grant of the capital contribution certificate of each requesting member;

b) Reason for the request to convene a meeting of the Members' Council and issues to be resolved;

c) Tentative agenda of the meeting;

d) Full name and signature of each requesting member or his/her/its authorized representative.

7. In case a request to convene a meeting of the Members' Council does not contain all the details specified in Clause 6 of this Article, the chairperson of the Members' Council shall notify in writing the member or group of members concerned of no meeting within 7 working days after receiving the request. In other cases, the chairperson of the Members' Council must convene a meeting of the Members' Council within 15 days after receiving the request.

8. In case the chairperson of the Members' Council does not convene a meeting of the Members' Council specified in Clause 7 of this Article, he/she shall bear personal responsibility for any damage to the company and the related members of the company.

Article 58. Conditions and procedures for conducting meetings of the Members' Council

1. A meeting of the Members' Council shall be conducted when the attending members own at least 65% of the charter capital; the specific percentage shall be provided in the company charter.

2. If the first meeting of the Members' Council does not take place because the conditions provided in Clause 1 of this Article are not satisfied and unless otherwise provided in the company charter, the convening of a meeting of the Members' Council shall be carried out as follows:

a) The meeting invitation for the second time must be sent within 15 days after the intended date of the first meeting. The second meeting of the Members' Council shall be conducted if the attending members own at least 50% of the charter capital;

b) If the second meeting of the Members' Council does not take place because the conditions provided in Point a of this Clause are not satisfied, the meeting invitation for the third time must be sent within 10 days after the intended date of the second meeting. In this case, the third meeting of the Members' Council shall be conducted irrespective of the number of attending members and of the amount of charter capital represented by attending members.

3. A member or an authorized representative of a member shall attend and vote at meetings of the Members' Council. The procedures for conducting meetings of the Members' Council and the voting method shall be provided in the company charter.

4. In case the agenda of a meeting satisfying the relevant conditions provided in this Article cannot be completed within the projected time, the meeting time may be extended but must not exceed 30 days, counting from the opening date of such meeting.

Article 59. Resolutions and decisions of the Members' Council

1. The Members' Council shall adopt resolutions, decisions within its competence by voting at meetings, collecting written opinions or other forms as provided in the company charter.

2. Unless otherwise provided in the company charter, resolutions, decisions on the following issues shall be passed by voting at meetings of the Members' Council:

a) Amendment and supplement to the company charter;

b) Decisions on the development orientation of the company;

c) Election, relief of duty and removal from office of the chairperson of the Members' Council; appointment, relief of duty and removal from office of the director or director general;

d) Adoption of annual financial statements;

dd) Reorganization or dissolution of the company.

3. Unless other proportion provided by the company charter, a resolution or decision of the Members' Council shall be adopted in a meeting in the following cases:

a) It is approved by the number of votes representing at least 65% of the aggregate contributed capital amount of the attending members, except the case provided at Point b of this Clause;

b) For a decision relating to the sale of assets valued at 50 or more percent of the total value of assets recorded in the latest financial statement of the company, or a smaller percentage or value as provided in the company charter, the amendment and supplementation to the company charter, the reorganization or dissolution of the company, it is approved by a number of votes representing at least 75% of the total contributed capital amount of the attending members.

4. A member is considered attending and voting at a meeting of the Members' Council in the following cases:

a) Attending and directly voting at the meeting;

b) Authorizing another to attend and vote at the meeting;

c) Attending and voting by video conferencing, electronic voting or another electronic form;

d) Sending the votes to the meeting by mail, fax or e-mail.

5. A resolution or decision of the Members' Council shall be adopted by collection of written opinions if it is approved by members owning at least 65% of the charter capital; the specific percentage shall be provided in the company charter.

Article 60. Minutes of meetings of the Members' Council

1. All meetings of the Members' Council shall be recorded in minutes and may be voice-recorded or recorded and stored in other electronic forms.

2. The minutes of each meeting of the Members' Council shall be approved immediately before the closing of the meeting. A minutes must contain the following principal details:

a) Time and venue of the meeting; purposes and agenda of the meeting;

b) Full name, capital contribution ratio, serial number and date of the capital contribution certificate of each member and authorized representative attending the meeting; full name, capital contribution ratio, serial number and date of the capital contribution certificate of each member and authorized representative not attending the meeting;

c) Matters discussed and voted upon; summary of opinions of members on each of the matter discussed;

d) Total numbers of valid and invalid votes; votes for, against or abstention on each matter voted upon;

dd) The decisions passed and their respective percentages of votes;

e) Full name, signature and opinions of attendees who don't approve the meeting minutes (if any);

g) Full name, signature of the minute's recorder and chairperson of the meeting, except the case prescribed in Clause 3 of this Article.

3. In case chairperson of the meeting, minutes recorder refuse to sign the meeting minutes, the meeting minutes shall be effective if it is signed by all remaining attending member of the Members' Council and has sufficient content as prescribed at Points a, b, c, d, dd, and e, Clause 2 of this Article. The meeting minutes shall record clearly the signing refusal of the chairperson of the meeting, minute's recorder. The signers of the meeting must be jointly liable for the accuracy and truthfulness of the meeting minutes of the Members' Council.

Article 61. Procedures for approval of resolutions, decisions of the Members' Council by collection of written opinions

Unless otherwise provided in the company charter, the competence and procedures for collection of written opinions from members to adopt a resolution, decision shall be carried out as follows:

1. The chairperson of the Members' Council shall decide on collection of written opinions from members of the Members' Council to pass resolutions, decisions within competence;

2. The chairperson of the Members' Council shall organize the preparation and sending of reports and submission papers on the issues to be decided upon, draft resolution, decision and opinion collection form to members of the Members' Council;

3. The written opinion form must contain the following principal details:

a) Name, enterprise identification number and head office address;

b) Full name, contact address, citizenship, serial number of legal document of individual, the capital contribution ratio of a member in the Members' Council;

c) Issues on which opinions are collected and corresponding responses in the order of for, against and abstention;

d) Deadline for sending the opinion collection form to the company;

dd) Full name and signature of the chairperson of the Members' Council:

4. An opinion collection form that contains full details and the signature of a member in the Members' Council and is sent to the company within the provided time limit shall be considered valid. The chairperson of the Members' Council shall organize the counting of opinions, prepare a report thereon and notify the results thereof and the passed decision or resolution to members within 7 working days after the deadline for members to send their opinions to the company. The report on voting results is as valid as the meeting minutes of the Members' Council and must contain the following principal details:

a) Purposes and contents of opinion collection;

b) Full name, capital contribution ratio, serial number and date of the capital contribution certificate of each member who has submitted a valid opinion collection form; full name, capital contribution ratio, serial number and date of the capital contribution certificate of each member who has not submitted the opinion collection form or has submitted an invalid one;

c) The matters on which opinions are sought and voted upon; summary of the opinions of members on each of such matters (if any);

d) Total numbers of valid and invalid opinion collection forms and forms not received; numbers of valid votes for, against and abstention on each matter voted upon;

dd) The decisions, resolutions passed and their respective percentages of votes;

e) Full names and signatures of the vote counters and chairperson of the Members' Council. The vote counters and chairperson of the Members' Council must be jointly liable for the completeness, accuracy and truthfulness of the report on voting results.

Article 62. Effect of resolutions, decisions of the Members' Council

1. Unless otherwise provided by the company charter, a resolution or decision of the Members' Council shall become effective on the date of its adoption or the date stated in such resolution or decision.

2. Resolutions, decisions of the Members' Council adopted by 100% of the total number of voting shares shall be valid and become effective even when the order and procedures for passing such resolutions or decisions fail to comply with the regulations.

3. In case a member or a group of members requests the court or arbitration to cancel a resolution or decision which has been adopted, such resolution, decision must still be effective as prescribed in Clause 1 of this Article until the court decision or arbitral award on cancellation takes effect, except the application of provisional urgent measures according to the competent agency's decision.

Article 63. Director or director general

1. The director or director general of a company is the person who manages day-to-day business operations of the company and is responsible to the Members' Council for the exercise of his/her rights and performance of his/her obligations.

2. The director or director general has the following powers and obligations:

a) To organize the implementation of the resolutions, decisions of the Members' Council;

b) To decide on all matters related to day-to-day business operations of the company;

c) To organize the implementation of business plans and investment plans of the company;

d) To issue the internal management regulation of the company, unless otherwise provided in the company charter;

dd) To appoint, relieve of duty and remove from office managers in the company, except those falling within the competence of the Members' Council;

e) To sign contracts in the name of the company, except cases falling within the competence of the chairperson of the Members' Council;

g) To make recommendations on the organizational structure of the company;

h) To summit annual financial statements to the Members' Council;

i) To make recommendations on the plan for use and division of profits or handling of losses in business;

k) To recruit employees;

l) Other rights and obligations provided in the company charter, in the resolution or decision of the Members' Council or in the labor contract.

Article 64. Criteria and conditions for acting as director or director general

1. Not being subjects prescribed in Clause 2 Article 17 of this Law.

2. Having professional qualifications and experience in business administration of the company and other conditions provided in the company charter.

3. For the State company prescribed at Point b, Clause 1, Article 88 of this Law, and subsidiary company prescribed in Clause 1, Article 88 of this Law, director or director general must meet criteria and conditions prescribed in Clauses 1 and 2 of this Article and not be person who has family relationships of managers, Supervisors of the company and the parent company; the person representing the company's capital, the person representing the state capital in the company and the parent company.

Article 65. The Supervisory Board and supervisors

1. The Supervisory Board shall have from 01 to 5 supervisors. The term of office of a supervisor must not exceed 05 years; a supervisor may be re-appointed for an unlimited number of terms. In case the Supervisory Board has only 1 supervisor, such supervisor shall work simultaneously as the head of the Supervisory Board and must meet conditions of the head of the Supervisory Board.

2. The Supervisory Board, supervisors must meet respective criteria and conditions as prescribed in Clause 2, Article 168 and Article 169 of this Law.

3. Rights, obligations, responsibilities, relief of duty, removal from office and working regulations of the Supervisory Board and supervisors shall be performed respectively according to Articles 106, 170, 171, 172, 173 and 174 of this Law.

4. The Government shall detail this Article.

Article 66. Wages, remuneration, bonus and other benefits of the chairperson of the Member' Council, director or director general and other managers

1. Wages, remuneration, bonus and other benefits of the chairperson of the Member' Council, director or director general and other managers are paid by the company according to the business results and efficiency of the company.

2. Wages, remuneration, bonus and other benefits of the chairperson of the Member' Council, director or director general and other managers shall be included in business expenses in accordance with the law on enterprise income tax and other relevant laws, and be recorded as a separate item in annual financial statements of the company.

Article 67. Contracts and transactions subject to approval by the Members' Council

1. A contract or transaction between the company and the following parties shall be approved by the Members' Council:

a) A member, the authorized representative of a member, the director or director general or the at-law representative of the company;

b) An affiliated person of the persons specified at Point a of this Clause;

c) A manager of the parent company, the person with competence to appoint managers of the parent company;

d) An affiliated person of the persons specified at Point c of this Clause.

2. The person entering into a contract or transaction in the name of the company shall notify members of the Members' Council and supervisors of the parties and benefits related to such contract or transaction; accompanied by the draft of such contract or the main contents of the transaction intended to conduct. Unless otherwise provided in the company chapter, the Members' Council shall decide on approval of the contract or transaction or not within 15 days after receiving the notice and performed under Clause 3, Article 59 of this Law. The members of the Members' Council related to the parties of such contract or transaction shall not be included in the voting.

3. A contract or transaction that is entered into at variance with Clauses 1

and 2 of this Article shall be invalidated under a decision of a court and handled in accordance with law. The person entering into such contract or transaction, concerned member and the affiliated persons of such member who participate in such contract or transaction shall compensate for any damage arising and return to the company any benefits gained from the performance of the contract or transaction.

Article 68. Increase or decrease of charter capital

1. A company may increase its charter capital in the following cases:

a) Increasing the contributed capital of members;

b) Raising contributed capital from new members.

2. In case of increasing contributed capital of members, the to-be-additionally contributed capital shall be allocated to each member in proportion to his/her/its contributed capital amount in the charter capital of the company. Members may transfer their rights of capital contribution to others in accordance with Article 52 of this Law. In case one or some members don't make additional capital contribution or make partly additional capital contribution, the rest of to-be-additionally contributed capital amount of such member shall be divided among other members in proportion to their respective contributed capital amounts in the charter capital of the company unless otherwise agreed by the members.

3. A company may reduce its charter capital in the following forms:

a) Returning part of the contributed capital to members in proportion to their respective capital contribution ratios in the charter capital of the company if the company’s business operation has been carried out continuously for two years or more from the date of enterprise registration and at the same time ensuring that all debts and other property obligations shall be fully paid after returning part of the contributed capital to members;

b) The company redeems the members’ contributed capital amounts as provided in Article 51 of this Law;

c) The charter capital has not been paid in sufficiently and timely in accordance with Article 47 of this Law.

4. Within 10 days after completing the payment for increase or decrease of charter capital, the company shall notify such in writing to the business registration agency, except the case as prescribed at Point c, Clause 3 of this Article. The notice must contain the following principal details:

a) Name, head office address and enterprise identification number;

b) Charter capital; the increased or reduced capital amount;

c) Time and form of increase or decrease of capital;

d) Full name and signature of the at-law representative of the enterprise.

5. The notification prescribed at Clause 4 of this Article shall be accompanied by the resolution, decision and minutes of the meeting of the Members' Council; in case of decreasing the charter capital prescribed at Points a and b, Clause 3 of this Article, the notification shall be accompanied additionally by the latest financial statement.

6. Within 03 working days after receiving the notification, the business registration agency shall update information on the increase or decrease in the charter capital.

Article 69. Conditions for distribution of profits

A company may only distribute profits to its members when it has fulfilled its tax obligations and other financial obligations in accordance with law and ensures that all debts and other property obligations may be fully paid after distribution of profits.

Article 70. Recovery of returned contributed capital amounts or distributed profits

In case part of contributed capital is returned because the reduction of charter capital is made not in accordance with Clause 3, Article 68 of this Law or profits are distributed to members not in accordance with Article 69 of this Law, all members shall return to the company the amount of money or other assets they received or must be jointly liable for all the debts and other property obligations of the company until they all return the amount of money or other assets they received which are equal to the unpaid amount of money or assets.

Article 71. Responsibilities of the chairperson of the Members' Council, director or director general and other managers, at-law representative, supervisors

1. The chairperson of the Members' Council, director or director general and other managers, at-law representative, supervisors of the company have the following responsibilities:

a) To exercise the assigned rights and perform the assigned obligations in an honest, prudent and best manner in order to best protect the lawful interests of the company;

b) To be faithful to the interests of the company; not to abuse his/her title, position and not to use the business information, know-how, opportunities and other assets of the company for personal purposes or for the interests of other organizations or individuals;

c) To notify the company in a timely, sufficient and accurate manner of the enterprises of which they and their affiliated persons are owners, co-owners or in which they have individually controlling shares or contributed capital amounts;

d) Other cases provided by law and the company charter.

2. The director or director general are not entitled to wage raise and bonuses when the company is no longer capable of fully repaying due debts.

3. A written notification prescribed at Point c, Clause 1 of this Article must contain the following details:

a) Name, identification number and head office address of the enterprise in which they are owners or they own a contributed capital amount or shares, percentage and time of being owner or owning such contributed capital amount or shares;

b) Name, identification number and head office address of the enterprise in which their affiliated persons own or own jointly or individually controlling shares or contributed capital amount.

4. The notification provided in Clause 3 of this Article shall be carried out within 05 working days, after arising or having related changes. The company shall compile and update the list of subjects prescribed in Clause 3 of this Article and their contracts and transactions with the company. This list shall be kept at the head office of the company. All the members, managers and supervisors of the company and their authorized representatives have the right to look up, extract and copy part or the whole information provided in Clause 3 of this Article during working hours according to the order and procedures provided in the company charter.

Article 72. Initiation of lawsuits against managers

1. A company member may act on his/her own or in the name of the company to initiate a civil lawsuit against the chairperson of the Members' Council, director or director general, at-law representative and other managers violating the rights, obligations and responsibilities of the managers in the following cases:

a) Violating the provisions of Article 71 of this Law;

b) Failing to perform or properly and sufficiently perform or perform against the law or the company charter, the resolutions, decisions of the Members' Council for assigned rights and obligations;

c) Other cases provided by law and the company charter.

2. The order and procedures for initiating lawsuits must comply with the civil procedure law.

3. Legal costs in the case of initiating lawsuits in the name of the company shall be included in the company expenses, except when the lawsuits are rejected.

Article 73. Information disclosure

Limited companies with two or more members prescribed at Point b Clause 1 Article 88 of this Law shall disclose information according to Points a, c, dd, g, Clause 1, Article 109 and Article 110 of this Law.

Section 2

SINGLE-MEMBER LIMITED LIABILITY COMPANIES

Article 74. Single-member limited liability companies

1. A single-member limited liability company is an enterprise owned by one organization or individual (below referred to as company owner). The company owner must be liable for all debts and other property obligations of the company within the amount of the charter capital of the company.

2. A single-member limited liability company has legal entity status from the date it is granted an enterprise registration certificate.

3. A single-member limited liability company may not issue its shares, except the issuing is for transfer to a joint stock company.

4. A single-member limited liability company may issue bonds according to this Law and other relevant regulations; the private placement of bonds shall comply with Articles 128 and 129 of this Law.

Article 75. Capital contribution for company establishment

1. Charter capital of a single-member limited liability company at the time of enterprise registration is the total value of assets committed to be contributed by the owner and recorded in the company charter.

2. Members shall make capital contribution to the company sufficiently and with the right types of assets as committed at the time of registering the enterprise establishment within 90 days after the enterprise registration certificate is granted, not including the time of transporting, importing assets contributed as capital and performing administrative procedures to transfer the ownership of assets. Within this time limit, the owner shall have the rights and obligations in proportion to his/her/its committed contributed capital amount.

3. In case of failing to contribute sufficient charter capital within the time limit specified in Clause 2 of this Article, within 30 days from the last day the charter capital was due to be contributed in full, the owner of the company shall register for adjustment of charter capital to equal the contributed capital amount. In this case, the owner must be liable in proportion to the committed contributed capital amount for financial obligations of the company arisen before the last day the company registers for a change in charter capital as prescribed in this

Clause.

4. The company owner shall be held liable with all of his/her/its assets for financial obligations of the company and any damage caused by failure to contribute charter capital or to contribute sufficient charter capital amount on time prescribed in this Article.

Article 76. Rights of the company owner

1. The institutional owner of a company has the following rights:

a) To decide on the contents of the company charter and amendments and supplementations thereto;

b) To decide on development strategies and annual business plans of the company;

c) To decide on the organizational and managerial structure of the company, to appoint, relieve of duty and remove from office managers, supervisors of the company;

d) To decide on development investment projects;

dd) To decide on market development, marketing and technology solutions;

e) To approve loan agreements, contracts for sale of assets and other contracts as provided in the company charter which are valued at 50 or more percent of the total value of assets recorded in the latest financial statement of the company or a smaller percentage or value as provided in the company charter;

g) To approve financial statements of the company;

h) To decide on the increase of the charter capital of the company; on the transfer of part of the whole of the charter capital of the company to other organizations or individuals; on issue of bonds;

i) To decide on the establishment of subsidiaries or on capital contribution to other companies;

k) To organize supervision and assessment of the company's business operations;

l) To decide on the use of profits after fulfilling tax obligations and other financial obligations of the company;

m) To decide on reorganization, dissolution and request for bankruptcy of the company;

n) To recover all of the value of assets of the company after the company completes the dissolution or bankruptcy process;

o) To perform other rights provided in this Law and the company charter.

2. The individual owner of a company has rights provided in Points a, h, l, m, n and o Clause 1 of this Article; rights of deciding on investment, business and internal management of the enterprise, unless otherwise provided by the company charter.

Article 77. Obligations of the company owner

1. To contribute the company's charter capital in full and on time.

2. To comply with the company charter.

3. To identify and separate assets of the company owner from those of the company. An individual owner shall separate his/her personal expenditures and expenditures for his/her family from expenditures for him or her as the president and director or director general of the company.

4. To comply with the law on contracts and relevant laws in the purchase, sale, borrowing, lending, lease or rent and other contracts and transactions between the company and the company owner.

5. A company owner may only withdraw capital by transfer of part or the whole of the charter capital to other organizations and individuals; in the case of withdrawal of part or the whole of his/her/its contributed charter capital from the company in another form, the company owner and related individuals and organizations must be jointly liable for the debts and other property obligations of the company.

6. A company owner may not withdraw profits of the company in case the company has not paid in full all debts and other property obligations which become due.

7. To perform other obligations provided by this Law and the company charter.

Article 78. Exercise of the rights of the company owner in some special cases

1. In case a company owner transfers or donates part of charter capital to one or more organizations or individuals or the company admits a new member, the company shall organize its management in the correlative form of enterprise and register for the change in the enterprise registration contents within 10 days after completing the transfer or donation or admission of the new member.

2. In case the individual company owner is being held in temporary detention, serving their imprisonment penalty, administrative handling measures at compulsory drug rehabilitation establishment or compulsory education establishment, he/she must to authorize another person to exercise and perform several or the whole of his/her rights and obligations of the company owner.

3. In case the individual owner of a company dies, his/her heir by testament or by law shall become the company owner or a member of the

company. The company shall organize its management in the corresponding form of enterprise and register for the change in the contents of enterprise registration within 10 days after since the inheritance settlement is completed. In case the individual owner of a company dies without any heir or his/her heir disclaims the inheritance or is deprived of the right to inherit, the owner's contributed capital amount shall be handled in accordance with the civil law.

4. In case the individual owner of a company is missing, the owner's contributed capital amount shall be handled in accordance with the civil law.

5. In case the individual owner of a company has limited or lost civil act capacity or has difficulty in perceiving and controlling their acts, the rights and obligations of the company owner shall be exercised and performed by his/her representative.

6. In case the institutional owner of a company is dissolved or goes bankrupt, the transferee of the contributed capital amount of the owner shall become the owner or a member of the company. The company shall organize its management in the corresponding form of enterprise and register for the change in the enterprise registration contents within 10 days after the transfer is completed.

7. In case the individual owner of a company is prohibited by a court from practicing certain professions or performing certain jobs, or the institutional owner of a company being commercial legal person is prohibited by a court from doing business or operating in certain areas in business line of the enterprise, such individual shall not practice such professions or perform such jobs in the company or the company must to suspend or terminate business of relevant sectors and trades under a decision of a court.

Article 79. The organizational and managerial structure of single-member limited liability companies of institutional owners

1. A single-member limited liability company of an institutional owner shall be organized and operate after either of the following two models:

a) Company president, director or director general;

b) Members' Council, director or director general.

2. In case the company owner is state enterprise according to Clause 1, Article 88 of this Law, the company must establish a Supervisory Board; other cases decided by the company. Organizational structure, working regulations, criteria, conditions, relief of duty, removal from office, rights, obligations, responsibilities of the Supervisory Board and supervisors shall be performed respectively according to Articles 65 of this Law;

3. At least one at-law representative of the company is chairperson of the Members' Council, company president, director or director general. If it is not provided in the company charter, the chairperson of the Members' Council or

the company president shall act as the at-law representative of the company.

4. Unless otherwise provided in the company charter, the organizational structure, operation, functions, rights and obligations of the Members' Council, the company president, the director or director general and supervisors must comply with this Law.

Article 80. The Members' Council

1. The Board of Directors must have between three and eleven members. Members of the Members' Council shall be appointed or relieved of duty by the company owner with terms not exceeding 05 years. The Members' Council shall exercise the rights and perform the obligations of the company owner in the name of the company owner; exercise the rights and perform the obligations of the company in the name of the company, except the rights and obligations of the director or director general; be responsible before law and the company owner for the exercise of the assigned rights and performance of the assigned obligations in accordance with the company charter, this Law and other relevant laws.

2. Rights, obligations and working regulations of the Members' Council shall comply with the company charter, this Law and other relevant laws.

3. The chairperson of the Members' Council shall be appointed by the company owner or elected by members of the Members' Council on the majority principle and according to the order and procedures provided in the company charter. Unless otherwise provided in the company charter, the term of office, rights and obligations of the chairperson of the Members' Council must comply with Article 56 and other relevant regulations of this Law.

4. The competence and methods to convene meetings of the Members' Council must comply with Article 57 of this Law.

5. A meeting of the Members' Council shall be conducted when there are at least two- thirds of total members of the Members' Council attending. Unless otherwise provided in the company charter, each member of the Members' Council has an equal vote. The Members' Council may pass a resolution or decision by collection of written opinions.

6. A resolution, decision of the Members' Council shall be adopted when approved by over 50% of the attending members or by members owning over 50% of the total votes. Any amendment or supplementation to the company charter, reorganization of the company, transfer of part or the whole of the charter capital of the company shall be approved by at least 75% of the attending members or by members owning 75 or more percent of the total votes. A resolution or decision of the Members' Council takes effect on the date of adoption or the date indicated in the resolution, unless otherwise provided by the company charter.

7. All meetings of the Members' Council shall be recorded in minutes, sound-recorded or recorded and stored in other electronic forms. The minutes of meetings of the Members' Council must comply with Clause 2 Article 60 of this Law.

Article 81. The company president

1. The company president shall be appointed by the company owner. The company president shall exercise the rights and perform the obligations of the company owner in the name of the company owner; exercise the rights and perform the obligations of the company in the name of the company, except the rights and obligations of the director or director general; be responsible before law and the company owner for the exercise of the assigned rights and performance of the assigned obligations in accordance with the company charter, this Law and other relevant laws.

2. Rights, obligations and working regulations of the company president shall comply with the company charter, this Law and other relevant laws.

3. A decision of the company president concerning the exercise of the rights and performance of the obligations of the company owner must take effect on the date of approval by the company owner, unless otherwise provided in the company charter.

Article 82. Director or director general

1. The Members' Council or the company president may appoint or hire a director or director general for terms not exceeding 05 years each to manage day-to-day business operations of the company. The director or director general must be responsible before law and the Members' Council or the company president for the exercise of his/her rights and performance of his/her obligations. The chairperson of the Members' Council, another member of the Members' Council or the company president may concurrently act as the director or director general, unless otherwise provided by law or the company charter.

2. The director or director general has the following powers and obligations:

a) To organize the implementation of resolutions, decisions of the Members' Council or the company president;

b) To decide on all matters related to day-to-day business operations of the company;

c) To organize the implementation of business plans and investment plans of the company;

d) To issue the internal management regulation of the company;

dd) To appoint, relieve of duty and remove from office managers of the company, except titles falling within the competence of the Members' Council or the company president;

e) To sign contracts in the name of the company, except cases falling within the competence of the chairperson of the Members' Council or the company president;

g) To make recommendations on the organizational structure of the company;

h) To submit annual financial statements to the Members' Council or the company president;

i) To make recommendations on the plan for use of profits or handling of losses in business;

k) To recruit employees;

l) Other rights and obligations provided in the company charter and in the labor contract.

3. A director or director general must meet the following criteria and conditions:

a) Not being subjects prescribed in Clause 2, Article 17 of this Law;

b) Having professional qualifications and experience in business administration of the company and other conditions provided in the company charter.

Article 83. Responsibilities of members of the Members' Council, the company president, director or director general and supervisors

1. To comply with the law, the company charter and decisions of the company owner in the exercise of assigned rights and performance of assigned obligations.

2. To exercise assigned rights and perform assigned obligations in an honest, prudent and best manner to ensure the maximum lawful interests of the company and the company owner.

3. To be faithful to the interests of the company and the company owner; not to abuse his/her title, position and not to use the business information, know-how, opportunities and other assets of the company for personal purposes or for the interests of other organizations or individuals.

4. To notify the company owner in a timely, sufficient and accurate manner of the enterprises of which they are owners, or in which they have controlling shares or contributed capital amounts and of the enterprises of which their affiliated persons are owners, co-owners or in which they have individually controlling shares or contributed capital amounts. The notice shall be kept at the head office of the company.

5. To perform other obligations provided by this Law and the company charter.

Article 84. Wages, remuneration, bonus and other benefits of managers of the company and supervisors

1. Managers of the company and supervisors are entitled to wages, remuneration, bonus and other benefits according to the business results and efficiency of the company.

2. The company owner shall decide on the levels of wages, remuneration, bonus and other benefits of members of the Members' Council, the company president and supervisors. Wages, remuneration, bonus and other benefits of managers of the company and supervisors shall be included in business expenses in accordance with the law on enterprise income tax and other relevant laws, and be recorded as a separate item in annual financial statements of the company.

3. Wages, remuneration, bonus and other benefits of supervisors may be directly paid by the company owner as provided in the company charter.

Article 85. Organizational and managerial structure of single-member limited liability companies of individual owners

1. A single-member limited liability company of an individual owner must have a company president and director or director general.

2. The company owner shall be the company president and may work concurrently or hire another person to work as the director or director general.

3. The rights and obligations of directors or directors general shall be provided in the company charter or labor contracts.

Article 86. Contracts and transactions of the company with affiliated persons

1. Unless otherwise provided in the company charter, contracts and transactions between a single-member limited liability company of an institutional owner with the following parties shall be approved by the Members' Council or the company president, director or director general and supervisors:

a) The company owner and affiliated persons of the company owner;

b) A member of the Members' Council, the company president, director or director general or supervisor;

c) An affiliated person of a person specified at Point b of this Clause;

d) A manager of the company owner, the person with competence to appoint such manager;

dd) An affiliated person of a person specified at Point d of this Clause.

2. The person who enters into a contract in the name of the company shall notify the Members' Council or the company president, director or director general and supervisors of the persons and benefits related to such contract or transaction, accompanied by the draft contract or main contents of such transaction.

3. Unless otherwise provided by the company charter, members of the Members' Council or the company president, director or director general and supervisors must decide on the approval of the contract or transaction within 10 days after receiving the notification on the principle of majority with one vote for each person; persons related the parties are not entitled to vote.

4. The contract or transaction provided in Clause 1 of this Article may only be approved if satisfying the following conditions:

a) The parties to the contract or transaction are independent legal entitles with separate rights, obligations, assets and interests;

b) The price used in the contract or transaction is the market price at the time the contract is entered into or the transaction is performed;

c) The company owner complies with the obligations provided in Clause 4, Article 77 of this Law.

5. A contract or transaction that is entered into at variance with Clauses 1, 2, 3 and 4 of this Article shall be invalidated under a decision of a court and handled in accordance with law. The person signing the contract or transaction and the parties of the contract or transaction must be jointly liable for any damage arising and return to the company any benefits gained from the performance of such contract or transaction.

6. A contract or transaction between a single-member limited liability company of an individual owner with the company owner or an affiliated person of the company owner shall be recorded and preserved as a separate dossier of the company.

Article 87. Increase or decrease of charter capital

1. A single-member limited liability company may increase its charter capital by the company owner making additional capital contribution or raising additional capital contributed by other people. The company owner may decide on the form and level of increase of the charter capital.

2. In case the charter capital is increased by raising additional capital contributed by other people, the company may organize its management in the form of a limited liability company with two or more members or a joint stock company. The management organization of the company shall be performed as follows:

a) If organizing its management in the form of limited liability company with two or more members; the company shall notify the change in the enterprise registration contents within 10 days after completing the change in charter capital;

b) If transferring to a joint stock company, the company must comply with Article 202 of this Law.

3. A single-member limited liability company may decrease its charter capital in the following cases:

a) Returning part of the contributed capital to the company owner if the company's business operation has been carried out continuously for two years or more from the date of enterprise registration and at the same time ensuring that all debts and other property obligations shall be fully paid after returning part of the contributed capital to the company owner;

b) The charter capital has not been paid in sufficiently and on time by the owner in accordance with Article 75 of this Law.

Chapter IV

STATE ENTERPRISES

Article 88. State enterprises

1. State enterprises shall be organized and managed in the form of limited liability companies and joint stock company, including:

a) Enterprises with 100% State-owned charter capital;

b) Enterprises of which the State holds over 50% of charter capital or total number of voting shares, except for enterprises specified in Point a, Clause 1 of this Article.

2. Enterprises with 100% State-owned charter capital prescribed at Point a, Clause 1 of this Article include:

a) Single-member limited liability companies with 100% State-owned charter capital that are parent companies of State economic groups, parent companies of State corporations or parent companies in parent company - subsidiary groups;

b) Single-member limited liability companies that are independent companies with 100% State-owned charter capital.

3. Enterprises of which the State holds 50% of charter capital or more or holds 50% of total number of voting shares or more as prescribed at Point b, Clause 1 of this Article include:

a) Liability companies with two or more members, joint stock companies of which the State holds over 50% of charter capital or total number of voting shares that are parent companies of economic groups, parent companies of State corporations or parent companies in parent company - subsidiary groups;

b) Liability companies with two or more members, joint stock companies that are independent companies of which the State holds over 50% of charter capital or total number of voting shares.

4. The Government shall detail regulations of this Article.

Article 89. Application of provisions to State enterprises

1. Enterprises with 100% State-owned charter capital specified in Point a, Clause 1, Article 88 of this Law shall be organized and managed in the form of single-member limited liability company according to this Chapter and other relevant regulations of this Law. If there is any difference among regulations of this Law, then provisions stipulated in this Chapter shall be applied.

2. Enterprises of which the State holds over 50% of charter capital prescribed at Point b, Clause 1, Article 88 of this Law shall be organized and managed in the form of liability company with two or more members according to Section 1, Chapter III or the form of joint stock company according to Chapter V of this Law.

Article 90. Organizational and managerial structure of the enterprise

The agency representing the owner may decide on the organization and management for a State enterprise in the form of limited liability company after ether of the two models as follows:

1. Company president, director or director general and Supervisory Board;

2. Members' Council, director or director general and Supervisory Board.

Article 91. The Members' Council

1. The Members' Council shall, in the name of the company, exercise the rights and perform the company's obligations according to this Law and other relevant laws.

2. The Members' Council must comprise the chairperson and other members with the total number not exceeding 07. Members of the Members' Council shall be appointed, relieved of duty and removed from office, rewarded and disciplined by the agency representing the owner.

3. The term of office of the chairperson and other members of the Members' Council must not exceed 05 years. Members of the Members' Council may be re-appointed. A member of the Members' Council may be re-appointed but the total number of terms must not exceed 02 at a company, except for the case that he/she has been continuously working for such company for more than 15 years before his/her initial appointment.

Article 92. Rights and obligations of the Members' Council

1. The Members' Council shall, in the name of the company, exercise the rights and perform the obligations of the owner, shareholder or member toward companies in which its company acts as the owner or owns shares or contributed capital amount.

2. The Member's Council has the following rights and obligations:

a) To decide on contents as prescribed by the Law on Management and Use of State Capital Invested in Production and Business in Enterprises;

b) To decide on the establishment, reorganization or dissolution of branches and representative offices and other dependent cost-accounting units;

c) To decide on annual production and business plans and orientations for the market development, marketing and technologies of the company;

d) To organize the internal audit and decide on the establishment of the internal audit unit of the company;

dd) Other rights and obligations according to the company charter, this Law and other regulations of relevant laws.

Article 93. Criteria and conditions of members of the Members' Council

1. Not being a person specified in Clause 2, Article 17 of this Law.

2. Possessing professional qualifications and experience in business administration or in the business line of the enterprise.

3. Not being a person in family relationship with the head or a deputy head of the agency representing the owner; a member of the Members' Council; the director or director general, deputy director or deputy director general or the chief accountant; a supervisor of the company.

4. Not being the manager of the member enterprise.

5. Except for Chairperson of the Members' Council, other members of the Members' Council may concurrently act as the director or director general of such company or another company other than the member enterprise under the decision of the agency representing the owner.

6. Having never been dismissed from the post of chairperson of the Members' Council, member of the Members' Council, or company president, director or director general deputy director or deputy director general in a State enterprise.

7. Other criteria and conditions provided in the company charter.

Article 94. Relief of duty, dismissal of members of the Members' Council

1. The chairperson or other members of the Members' Council shall be relieved of duty in the following cases:

a) No longer satisfying the criteria and conditions provided in Article 93 of this Law;

b) Submitting a resignation letter which is approved in writing by the agency representing the owner;

c) Having a decision on transfer, assignment to another job or retirement;

d) Possessing insufficient qualifications and capability to assume the assigned position;

dd) Being no longer physically fit or prestigious to hold the position of member of the Members' Council.

2. The chairperson or other members of the Members' Council shall be dismissed in the following cases:

a) The company fails to fulfill the annual planned objectives and targets, not being able to preserve and develop the investment capital as required by the agency representing the owner without any objective causes or the explanation of the causes is not accepted by the agency representing the owner;

b) Being convicted by the court and the court judgment or decision has been legally effective;

c) Not being truthful in exercising his/her rights and performing his/her obligations or abusing his/her position and title, using company's assets to gain their own personal benefits or for the benefits of other organizations and individuals; to untruthfully report on the financial conditions and production and business results of the company.

3. Within 60 days after the decision on relief of duty or dismissal of a chairperson and other members of the Members' Council is issued, the agency representing the owner shall consider and decide on the recruitment and appointment of a replacement.

Article 95. Chairperson of the Members' Council

1. The chairperson of the Members' Council shall be appointed by the agency representing the owner according to law provisions. The chairperson of the Members' Council may not concurrently act as the director or director general of the company and other enterprises.

2. The chairperson of the Members' Council has the following rights and obligations:

a) To make quarterly and annual working plans of the Members' Council;

b) To prepare programs, agenda and documents for meetings of the Members' Council or for collecting opinions from members of the Members'

Council;

c) To convene, assume the prime responsibility for, and chair meetings of the Members' Council or organizing to collect opinions from the members of the Members' Council;

d) To organize the implementation of decisions of the agency representing the owner and resolutions of the Members' Council;

dd) To organize the supervision, to directly supervise and assess the implementation of the strategic objectives, results of the company's operation and management and administration of the director or director general of the company;

e) To organize the public disclosure of information on the company according to law; to be responsible for the completeness, timeliness, accuracy, truthfulness and systematicity of the disclosed information.

3. In addition to the cases prescribed in Article 94 of this Law, the chairperson of the Members' Council may be relieved of duty or dismissed if he/she fails to fulfill the rights and obligations specified in Clause 2 of this Article.

Article 96. Rights and obligations of members of the Members' Council

1. To attend meetings of the Members' Council and to discuss, propose, and vote on matters within the competence of the Members' Council.

2. To check, examine, look up, copy, extract the transaction and contract-recording and -monitoring book, accounting books, financial statements and meeting minute book of the Members' Council, and other papers and documents of the company.

3. Other rights and obligations according to the company charter, this Law and other provisions of relevant laws.

Article 97. Responsibilities of the chairperson and other members of the Members' Council

1. To comply with the company charter, the company owner's decisions and legal regulations.

2. To exercise their rights and perform their obligations in an honest, prudent and best manner in order to best protect the lawful interests of the company and the State.

3. To be faithful to the interests of the company and the State; not to abuse their positions and titles, not to use business information, know-how and opportunities, and other assets of the company for their own personal benefits or for the benefits of other organizations or individuals.

4. To notify the enterprise in a timely, sufficient and accurate manner about enterprises that they own or have controlling shares or contributed capital amounts and enterprises that their affiliated persons own, jointly own or individually own shares or contributed capital amount. This notice shall be collected and kept at the company's head office.

5. To abide by resolutions of the Members' Council.

6. To bear personal responsibility when performing the following acts:

a) Taking advantage of the company name to commit other illegal acts;

b) Conducting business or other transactions not for the company's interests and causing damage to other organizations and persons;

c) Paying premature debts when the company is likely to be in financial danger.

7. If it is detected that a member of the Members' Council commits acts of violation during the exercise of his/her assigned rights and performance of his/her assigned obligations, other members of the Members' Council shall be responsible for reporting it in writing to the agency representing the owner; requesting the violator to cease the violation and take measures to remedy any consequences.

Article 98. Working regime, conditions and procedures for conducting meetings of the Members' Council

1. The Members' Council shall work on a collective basis; meet at least once every quarter to consider, decide on matters within the scope of its rights and obligations. For matters that require no discussion, the Members' Council may solicit members' written opinions according to the company charter. The Members' Council may hold extraordinary meetings to solve urgent matters at the company owner's request, at the proposal of the chairperson of the Members' Council, or of more than 50 percent of total members of the Members' Council, or of the director or director general.

2. The chairperson of the Members' Council or the member authorized by the chairperson of the Members' Council shall prepare the agenda, document contents, convene, assume the prime responsibility for and chair a meeting of the Members' Council. Members of the Members' Council have the right to make written proposals on the agenda. The meeting contents and documents shall be sent to the members of the Members' Council and the invited participants at least 03 working days before the date of the meeting. Meeting documents relating to the proposals to the agency representing the owner to amend and supplement the company charter, approval of the company's development orientation, approval of annual financial statements, reorganization or dissolution of the company shall be sent to the members at least 05 working days before the date of the meeting.

3. The invitation to a meeting of the Members' Council may be sent in the form of letter of invitation, telephone call, fax, telex, electronic means or other means provided in the company charter and shall be sent directly to each member of the Members' Council and invited participants. The meeting invitation must specify the time, venue and agenda of the meeting. Video conferencing may be used when necessary.

4. A meeting of the Members' Council is valid when it is attended by at least two-thirds of total members of the Members' Council. Resolutions of the Members' Council shall be approved when they are voted for by more than half of the number of attending members; when the number of votes for and against are equal, the content gaining the vote for of the chairperson of the Members' Council or the person authorized by the chairperson of the Members' Council to chair the meeting is the approved content. Members of the Members' Council have the right to reserve their opinions and send their proposals to the agency representing the company owner.

5. In case written opinions of members of the Members' Council are solicited, resolutions of the Members' Council shall be approved when they are approved by more than half of the total members of the Members' Council. Resolutions may be approved by using copies of the same document if each copy contains at least a signature of a member of the Members' Council.

6. Depending on the meeting contents and agenda, if finding it necessary, the Members' Council shall invite competent representatives of related agencies and organizations to attend and discuss specific matters in the agenda. Representatives of the agencies and organizations invited to the meeting may express their opinions but not vote. Opinions expressed by the invited representatives shall be fully recorded in the meeting minutes.

7. Contents of the matters discussed, the opinions expressed, voting results, resolutions approved by the Members' Council and conclusions of the meetings of the Members' Council shall be recorded in minutes. The chairperson and secretary of the meeting must be jointly liable for the accuracy and truthfulness of the meeting minutes of the Members' Council. The minutes of a Members' Council meeting shall be approved prior to the closing of the meeting. The minutes must include the following principal details:

a) Time and venue of the meeting; purposes and agenda of the meeting; list of attending members; matters discussed and voted upon; summary of opinions of members and invited representatives on each matter discussed;

b) The numbers of votes for and against in case abstentions are not accepted; the numbers of votes for, against, or abstentions in case abstentions are accepted;

c) The adopted decisions;

d) Full names and signatures of the members attending the meeting.

8. Members of the Members' Council have the right to request the director or director general, deputy directors or deputy directors general; chief accountant and managers in the company, subsidiaries in which the company holds 100% of charter capital, and representatives of the contributed capital of the company in other enterprises to provide information and documents on the financial situation and operations of the enterprises under the information regulations issued by the Members' Council or according to a resolution of the Members' Council. The person requested to provide information shall provide information and documents in a timely, full and accurate manner as requested by the members of the Members' Council, unless otherwise decided by the Members' Council.

9. The Members' Council shall use the managerial and executive apparatus, a supporting unit of the company to perform his/her obligations.

10. Operating expenses of the Members' Council, including wages, allowances and remuneration, shall be included in the management expenses of the company.

11. If necessary, the Members' Council may organize the solicitation of opinions of domestic and foreign consultants before making decisions on important matters falling within the competence of the Members' Council. Expenses for consultant opinions shall be provided in the company's financial management regulations.

12. Resolutions of the Members' Council must take effect on the date of approval or the date written in the resolutions, unless approval by the agency representing the owner is required.

Article 99. The company president

1. The company president shall be appointed by the agency representing the owner according to law. The term of the company president must not exceed 05 years, and the company president may be re-appointed. A person shall be appointed for a maximum of 02 terms, except for the case that such person has been continuously working for such company for more than 15 years before his/her initial appointment. The criteria and conditions and cases of relief of duty and dismissal of the company president must comply with Articles 93 and 94 of this Law.

2. The company president shall exercise the rights and perform the obligations of the representative of the owner directly in the company according to the Law on Management and Use of State Capital Invested in Production and Business at Enterprises; and other rights, obligations and responsibilities

provided in Articles 92 and 97 of this Law.

3. Wages, allowances and remuneration of a company president shall be counted into the expense for managing company.

4. The company president shall use the managerial and executive apparatus, a supporting unit of the company to exercise his/her rights and perform his/her obligations. If necessary, the company president may organize the solicitation of opinions of domestic and foreign consultants before making decisions on important matters falling within the company president's competence. Expenses for consultant opinions shall be provided in the company's financial management regulations.

5. Decisions falling within the competence specified in Clause 2 of this Article shall be made in writing, signed with the title of company president even in the case the company president concurrently acts as the director or director general.

6. Decisions of the company president shall take effect on the date of its signing or the date indicated in these decisions, unless approval by the agency representing the owner is required.

7. In case the company president exits from Vietnam for more than 30 days, a number of rights and obligations of the company president shall be authorized in writing to another person; the authorization shall be timely notified to the agency representing the owner. Other cases of authorization shall be carried out according to the company's internal management regulations.

Article 100. Director, director general and deputy directors, deputy directors general

1. The director or director general shall be appointed or hired by the Members' Council or company president under the personnel plan approved by the agency representing the owner.

2. The director or director general must be in charge of running the company's day-to-day operations, and has the follow rights and obligations:

a) To organize and assess the implementation of the company's business and investment plans;

b) To organize and assess the implementation of resolutions and decisions of the Members' Council, of the company president and of the agency representing the company owner;

c) To decide on the company's day-to-day matters;

d) To issue the company's internal management regulations which have been approved by the Members' Council or the company president;

dd) To appoint, hire, relieve of duty, dismiss or terminate labor contracts with managers in the company, except for those falling within the competence of the Members' Council or the company president;

e) To sign contracts and carry out transactions in the name of the company, except cases falling within the competence of the chairperson of the Members' Council or the company president;

g) To prepare and submit to the Members' Council or company president quarterly or annual reports on results of implementation of business plan objectives; financial statements;

h) To make recommendations on the distribution and use of after-tax profits or other financial obligations of the company;

i) To recruit employees;

k) To make recommendations on the plan of company re-organization;

l) Other rights and obligations provided by law and the company charter.

3. A company shall has one or a number of deputy director(s) or deputy director(s) general. The number of deputy director(s) or deputy director(s) general, competence to appoint deputy director(s) or deputy director(s) general shall be provided in the company charter. The rights and obligations of deputy directors or deputy directors general shall be provided in the company charter, labor contracts.

Article 101. Criteria and conditions of a director, director general

1. Not being a person specified in Clause 2, Article 17 of this Law.

2. Possessing professional qualifications and experience in business administration in the business lines of the company.

3. Not being a person in family relationship with the head or a deputy head of the agency representing the owner; a member of the Members' Council; company president; the deputy director or deputy director general or the chief accountant of the company; a supervisor of the company.

4. Having never been dismissed from the post of chairperson of the Members' Council, member of the Members' Council, company president, director or director general, deputy director or deputy director general of another company or State enterprise.

5. Not concurrently acting as the director or director general of another enterprise.

6. Other criteria and conditions provided in the company charter.

Article 102. Relief of duty, dismissal of the director or director general and other managers of the company, chief accountant

1. The director or director general shall be relieved of duty in the following cases:

a) No longer satisfying the criteria and conditions provided in Article 101 of this Law;

b) Having submitted an application for work cessation.

2. The director or director general shall be consider to dismiss in the following cases:

a) The enterprise fails to preserve its capital as prescribed by law;

b) The enterprise fails to achieve annual planned business objectives;

c) The enterprise violates the law;

d) Having insufficient qualifications and capability to meet the requirements of the new development strategy and business plan of the enterprise;

dd) Violating one of the rights, obligations and responsibilities of managers provided in Articles 97 and 100 of this Law;

e) Other cases provided in the company charter.

2. Within 60 days after the relief of duty or dismissal decision is issued, the Members' Council or the company president shall consider and decide on the recruitment and appointment of a replacement.

3. The cases of relief of duty or dismissal of deputy with a deputy director general, deputy director, other company manager or the chief accountant shall be provided in the company charter.

Article 103. The Supervisory Board and supervisors

1. Based on the company scale, the agency representing the owner shall decide to establish a Supervisory Board with 01 supervisor to 05 supervisors, including the head of the Supervisory Board. The term of office of supervisors must not exceed 05 years and each supervisor may be re-appointed for not more than 02 consecutive terms at such company. If there is only 01 supervisor in a Supervisory Board, then such supervisor shall be the head of the Supervisory Board at the same time and must satisfy the criteria of a head of the Supervisory Board.

2. A person may be concurrently appointed to be the head of a Supervisory Board and a supervisor for no more than 04 State enterprises.

3. A head of the Supervisory Board, a supervisor must meet the following criteria and conditions:

a) Possessing a university or higher degree in any of the following majors: economy, finance, accounting, audit, law, business administration or specialized majors in conformity with business activities of such enterprise and having at least 03 years of working experience. The head of the Supervisory Board must have at least 05 years of working experience;

b) Not being the company manager or the manager in another company; not being a supervisor of the company other than a State enterprise; not being an employee of the company;

c) Not being a person in family relationship with the head or a deputy head of the agency representing the owner; a member of the Members' Council; the company president; the director or director general; the deputy director or deputy director general; the chief accountant; other supervisor of the company;

d) Other criteria and conditions provided in the company charter.

4. The Government shall detail regulations of this Article.

Article 104. Obligations of the Supervisory Board

1. The Supervisory Board has the following obligations:

a) To supervise the organization of implementation of the development strategy and business plan;

b) To supervise assess the real situation of business operations and financial situation of the company;

c) To supervise and assess the exercise of rights and performance of obligations of members of the Members' Council and the Members' Council, the company president, the director or director general of the company;

d) To supervise and assess the effectiveness and degree of compliance with the internal auditing regulations, risk management and prevention regulations, reporting regulations and other internal management regulations of the company;

dd) To supervise the legality, systematicity and truthfulness in accounting works, accounting books, financial statements, appendices and relevant documents;

e) To supervise contracts and transactions of the company with related parties;

g) To supervise the implementation of big investment projects, purchase and sale transactions and other business contracts and transactions with large scale; abnormal business contracts and transactions of the company;

h) To prepare and send evaluating reports and recommendations on the issues specified at Points a, b, c, d, dd, e and g of this Clause to the agency representing the owner and the Members' Council;

i) To perform other obligations requested by the agency representing the owner and provided in the company charter.

2. Wages, allowances, bonuses and other interests of supervisors shall be decided and paid by the agency representing the owner.

3. The Government shall detail regulations of this Article.

Article 105. Rights of the Supervisory Board

1. To attend meetings of the Members' Council, formal and informal consultations and discussions between the agency representing the owner and the Members' Council; to question the Members' Council, members of the Members' Council, the company president and the director or director general on development investment plans, projects, programs and other decisions in the management and running of the company.

2. To examine accounting books, reports, contracts, transactions and other documents of the company; to examine the management and direction of the Members' Council, members of the Members' Council, the company president and the director or director general when finding it necessary or requested by the agency representing the owner.

3. To request the Members' Council, members of the Members' Council, the company president, the director, deputy directors or director general, deputy directors general, chief accountant and other managers to report or provide information falling within the scope of management and investment or business operations of the company.

4. To request the company manager to report on the real financial situation and results of business of subsidiaries when finding it necessary to perform duties provided by law and the company charter.

5. To request the agency representing the owner to set up a unit in charge of auditing to advice and directly assist the Supervisory Board in exercising its assigned rights and performing its obligations.

6. Other rights provided in the company charter.

Article 106. Working regime of the Supervisory Board

1. The head of the Supervisory Board shall make monthly, quarterly and annual work plans of the Supervisory Board; and assign specific tasks and jobs to each supervisor.

2. Members of the Supervisory Board shall independently and proactively carry out the assigned tasks and jobs; when finding it necessary to propose and recommend on the implementation of supervisory tasks and jobs other than those included in the plan or beyond the scope of their assigned work.

3. The Supervisory Board shall meet at least once a month to review, assess and approve the report on supervision results in the month for submission to the agency representing the owner; to discuss and approve the subsequent work plan of the Supervisory Board.

4. A decision of the Supervisory Board shall be passed when it is approved by a majority of the attending members. Opinions different from the

contents of the passed decision shall be fully and accurately recorded and reported to the agency representing the owner.

Article 107. Responsibilities of supervisors

1. To comply with law, the company charter, decisions of the agency representing the owner and professional ethics in exercising the rights and performing the obligations of supervisors.

2. To exercise the assigned rights and perform the assigned obligations in an honest, prudent and best manner in order to protect the State and company's interests and lawful interests of the parties in the company.

3. To be loyal to the interests of the State and the company; not to abuse their positions and titles and use business information, know-how and opportunities, other assets of the company for their own personal benefits or for the benefits of other organizations or individuals.

4. In the case of violating the responsibility specified in this Article and causing damage to the company, supervisors shall bear personal or joint responsibility for compensating for such damage; depending on the nature and seriousness of violations and damages, they may be disciplined, administratively sanctioned or examined for penal liability as prescribed by law; return all income and interests gained by violating their responsibilities as prescribed in this Article.

5. To promptly report to the agency representing the owner and concurrently request the supervisor for terminating acts of violation and taking measures to remedy any consequences if detecting that such supervisor violates his/her assigned rights, obligations and responsibilities.

6. To timely report to the agency representing the company owner, other supervisors and relevant individuals, concurrently request the violator to cease the violation and take measures to remedy any consequences in the following cases:

a) If detecting that a member of the Members' Council, the company president, director or director general and other manager breaches the provisions on his/her rights, obligations and responsibilities, or is likely to act against such provisions;

b) If detecting illegal acts, acts against the company charter or the company's internal management regulations.

7. Other responsibilities provided in this Law and the company charter.

Article 108. Relief of duty, dismissal of the head of the Supervisory Board or supervisor

1. A head of Supervisory Board, a supervisor shall be relieved of duty in the following cases:

a) No longer meeting the criteria and conditions as provided in Article 103 of this Law;

b) Having submitted an application for resignation approved by the agency representing the owner;

c) Being seconded or assigned to perform another task by the agency representing the owner or another competent agency;

d) Other cases provided by the company charter.

2. The head of the Supervisory Board, a supervisor shall be dismissed in the following cases:

a) Failing to perform his/her assigned obligations, tasks and jobs for 03 consecutive months, except in force majeure circumstances;

b) Failing to fulfill his/her assigned obligations, tasks and jobs for 01 year;

c) Committing multiple or serious violations of the rights, obligations and responsibilities of the head of Supervisory Board and supervisors provided in this Law and the company charter;

d) Other cases provided by the company charter.

Article 109. Periodical information disclosure

1. The company shall periodically disclose the following information on the websites of the company and of the agency representing the owner:

a) Basic information of the company and its charter;

b) Overall objective; specific objectives and targets of the annual business plans;

c) Full and summarized annual financial statements audited by an independent audit organization within 150 days since the end of the financial year; including the parent company's financial statements and consolidated financial statements (if any);

d) Full and summarized semi-annual financial statements audited by an independent audit organization; the deadline for disclosure is July 31 annually; including the parent company's financial statements and consolidated financial statements (if any);

dd) Evaluation report on the results of implementation of the annual production and business plans;

e) Report on the results of performance of public tasks assigned according to plans or bidding (if any) and other social responsibilities;

g) Report on the situation of the company’s governance and organizational structure.

2. Report on the situation of company governance must contain the following information:

a) Information on the agency representing the owner and its head and deputy heads;

b) Information on the company's managers, including professional qualifications, working experience, managerial positions held, methods of being appointed, assigned management work, salary, remuneration, bonuses and other benefits, and methods of paying wages, remuneration, bonuses and other benefits; affiliated persons of the company manager;

c) Related decisions of the agency representing the owner; resolutions and decisions of the Members' Council or company president;

d) Information on the Supervisory Board, supervisors and their activities;

dd) Conclusion reports of inspection agencies (if any) and reports of the Supervisory Board and supervisors;

e) Information on related persons of the company, contracts and transactions of the company with related persons;

g) Other information as provided in the company charter.

3. The information to be disclosed must be complete, accurate and timely according to law.

4. The at-law representative or the person authorized to disclose information shall perform the information disclosure. The at-law representative must be liable for the completeness, timeliness, truthfulness and accuracy of the disclosed information.

5. The Government shall detail regulations of this Article.

Article 110. Disclosure of irregular information

1. The company shall disclose on its website, publications (if any) and publicly disclose at its head office, business locations any irregular information within 36 hours after any of the following events occurs:

a) The company's account is frozen or unfrozen;

b) Some or all of its business operations have been suspended; its enterprise registration certificate, establishment license, establishment and operation license, operation license or another license concerning the company's operations has been revoked;

c) Its enterprise registration certificate, establishment license, establishment and operation license, operation license or another license concerning its operation has been modified and supplemented;

d) There are changes of members of the Members' Council, company president, director, deputy director or director general, deputy director general, chief accountant, head of finance - accounting division, head of the Supervisory Board or supervisors;

dd) There has been a decision on the disciplining, initiation of a criminal case against or a judgment or decision of the court against the company manager;

e) There has been a conclusion of an inspection agency or of a tax administration agency on the enterprise's violation of law;

g) There has been a decision on the change of the independent auditing organization, or a refusal to audit the financial statements;

h) There has been a decision on establishment, dissolution, consolidation, merger or transformation of a subsidiary, branch, representative office; a decision on investment, reduction or withdrawal of investment capital in other companies.

2. The Government shall detail regulations of this Article.

Chapter V
JOINT STOCK COMPANIES

Article 111. Joint stock companies

1. A joint stock company is an enterprise in which:

a) The charter capital is divided into equal portions called shares;

b) Shareholders may be organizations or individuals; the minimum number of shareholders is 03 and there is no restriction on the maximum number;

c) Shareholders shall only be liable for debts and other property obligations of the enterprise only within their amounts of capital contributed to the enterprise;

d) Shareholders may freely assign their shares to other persons, expect for cases specified in Clause 3, Article 120, and Clause 1, Article 127 of this Law.

2. A joint stock company has legal entity status from the date of grant of the enterprise registration certificate.

3. A joint stock company has the right to issue equities, bonds and other types of securities.

Article 112. Equity of joint stock companies

1. Charter capital of a joint stock company is the total par value of shares

of different types. Charter capital of a joint stock company at the time of enterprise establishment is the total par value of the shares of different types already registered for purchase and recorded in the company charter.

2. Sold shares mean shares allowed to be offered for which shareholders have fully paid up to the company. When registering for enterprise establishment, sold shares means the aggregate number of shares of different types that have been registered for purchase.

3. Shares allowed to be offered of a joint stock company means the aggregate number of shares of different types that the General Meeting of Shareholders has decided to offer for capital raising. The number of shares allowed to be offered at the time of registration for enterprise establishment means the aggregate number of shares of different types that a company shall offer for for capital raising; including shares that have been registered for purchase and shares that have not been registered for purchase.

4. Unsold shares means shares allowed to be offered and not yet paid for the company. When registering for enterprise establishment, unsold shares means the aggregate number of shares of different types that have not been registered for purchase.

5. A company may reduce its charter capital in the following cases:

a) Under a decision of the General Meeting of Shareholders, the company returns part of the contributed capital to shareholders in proportion to their share ownership in the company if the company has been continuously operating for 02 years or more counting from the registration time for enterprise establishment while ensuring payment of all debts and other property obligations after returning part of the contributed capital to shareholders;

b) The company redeems its sold shares according to Articles 132 and 133 of this Law;

c) Its charter capital has not yet been paid up fully and on time according to Article 113 of this Law.

Article 113. Payment for shares already registered for purchase upon enterprise establishment registration

1. Shareholders shall make full payment for the shares they have registered to purchase within 90 days since the date the enterprise registration certificate is granted, unless a shorter period is provided in the company charter or the share purchase registration contract. If a shareholder contributes capital by assets, the time for transportation and import, carrying out administrative procedures for transfer the ownership of such assets shall not be counted into the capital contribution time limit. The Board of Directors shall supervise and urge shareholders to fully and timely pay for the shares registered for purchase.

2. During the period from the date the company is granted the enterprise

registration certificate to the deadline for full payment for the shares already registered for purchase provided in Clause 1 of this Article, the number of votes of a shareholder shall be determined based on the number of ordinary shares already registered for purchase, unless otherwise provided in the company charter.

3. If after the deadline specified in Clause 1 of this Article, there is any shareholder who has not paid for or only partially paid for the shares registered for purchase, the following provisions shall apply:

a) A shareholder who has not paid for the registered shares shall naturally no longer be a shareholder of the company and may not transfer such share purchase right to another;

b) A shareholder who has only partially paid for the registered shares shall have the voting right, receive profits and have other rights in proportion to the number of paid-up shares; and may not transfer the purchase right regarding the unpaid shares to another;

c) The unpaid shares shall be considered unsold shares and the Board of Directors shall have the right to sell such shares;

d) The company shall register for adjustment of charter capital to be the total par value of shares which have been fully paid for, unless the unpaid shares have been sold within such period; change of founding shareholders within 30 days from the deadline for making full payment for the shares registered for purchase provided in Clause 1 of this Article.

4. Shareholders who have not paid for or have only partially paid for the registered shares must be liable in proportion to the total par value of the registered shares for the financial obligations of the company arising during the period before the company registers for adjustment of charter capital prescribed at Point d, Clause 3 of this Article. Members of the Board of Directors and the at-law representative must be jointly liable for the damages incurred due to the non-compliance with or improper implementation of Clause 1 and Point d, Clause 3 of this Article.

5. Except for cases provided in Clause 2 of this Article, capital contributors shall be the company's shareholders from the time of payment for purchasing shares and shareholders information prescribed at Points b, c, d and dd, Clause 2, Article 122 of this Law is recorded in the register of shareholders.

Article 114. Types of shares

1. A joint stock company must have ordinary shares. Owners of ordinary shares are ordinary shareholders.

2. In addition to ordinary shares, a joint stock company may have preference shares. Owners of preference shares are called preference shareholders. Preference shares include the following types:

a) Dividend preference shares;

b) Redeemable preference shares;

c) Voting preference shares;

d) Other preference shares according to company charter and law on securities.

3. Persons entitled to purchase dividend preference shares, redeemable preference shares and other preference shares shall be provided in the company charter or decided by the General Meeting of Shareholders.

4. Each share of the same type shall entitle its holder to the same rights, obligations and interests.

5. Ordinary shares may not be converted into preference shares. Preference shares may be converted into ordinary shares pursuant to a resolution of the General Meeting of Shareholders.

6. Ordinary shares used as foundation assets to issue non-voting depositary receipt shall be called basic ordinary shares. Non-voting depositary receipt have economic benefits and obligations corresponding to basic ordinary shares, except voting rights.

7. The Government shall provide regulations on non-voting depositary receipt.

Article 115. Rights of ordinary shareholders

1. An ordinary shareholder has the following rights:

a) To attend, express opinions at the General Meeting of Shareholders' meetings and to exercise the right to vote directly or through an authorized representative or in other forms provided by the company charter and law. Each ordinary share must carry one vote;

b) To receive dividends at the rate decided by the General Meeting of Shareholders;

c) To be given priority in purchasing new shares in proportion to the number of ordinary shares that each shareholder holds in the company;

d) To freely transfer his/her/its shares to other persons, except in the cases specified in Clause 3, Article 120, and Clause 1, Article 127 of this Law and other regulations of relevant laws;

dd) To examine, look up and extract information about name and addresses in the list of shareholders with voting rights and to request modification of incorrect information;

e) To examine, look up, extract or copy the company charter, the minutes of meetings of the General Meeting of Shareholders and resolutions of the

General Meeting of Shareholders;

g) Upon dissolution or bankruptcy of the company, to receive part of the residual assets in proportion to his/her/its number of shares in the company.

2. A shareholder or a group of shareholders holding at least 05% of the total ordinary shares, or holding a smaller percentage provided in the company charter shall have the following rights:

a) To examine, look up and extract the book of minutes and resolutions, decisions of the Board of Directors, mid-year and annual financial statements, reports of the Supervisory Board, contracts and transactions required approval of the Board of Directors and other documents, except for documents related to commercial secret and the company's business secret;

b) To request convening of a General Meeting of Shareholders in the case specified in Clause 3 of this Article;

c) To request the Supervisory Board to inspect each particular issue related to the management and administration of the operation of the company when finding it necessary. Such request must be made in writing and including the following contents: Full name, contact address, nationality, serial number of legal document for an individual shareholder; name, identification number of an enterprise or legal document of an organization, address of the head office for an institutional shareholder; number of shares and time of registration of shares of each shareholder, total number of shares of the group of shareholders and the percentage of ownership in the total number of shares of the company; issues to be inspected and purposes of the inspection;

d) Other rights provided in this Law and the company charter.

3. A shareholder or a group of shareholders provided in Clause 2 of this Article has the right to request convening of a General Meeting of Shareholders in the following cases:

a) The Board of Directors commits a serious breach of the rights of shareholders or obligations of managers or issues a decision which falls outside its assigned competence;

b) Other cases provided by the company charter.

4. A request for convening of a General Meeting of Shareholders prescribed in Clause 3 of this Article must be made in writing and containing the following contents: Full name, contact address, nationality, serial number of legal document for an individual shareholder; name, identification number of an enterprise or legal document of an organization, address of the head office for an institutional shareholder; number of shares and time of registration of shares of each shareholder, total number of shares of the group of shareholders and the percentage of ownership in the total number of shares of the company; ground and reasons for convening of a General Meeting of Shareholders. The request

shall be accompanied by documents and evidence on the violation of the Board of Directors and its seriousness, or on the decision which falls outside its competence.

5. A shareholder or a group of shareholders holding at least 10% of the total ordinary shares, or holding a smaller percentage provided in the company charter shall have the right to nominate candidates to the Board of Directors or the Supervisory Board. Unless otherwise provided in the company charter, the nomination of candidates to the Board of Directors and the Supervisory Board shall be carried out as follows:

a) Ordinary shareholders who form a group to nominate candidates to the Board of Directors and the Supervisory Board shall notify the group formation to attending shareholders before the opening of the General Meeting of Shareholders;

b) Based on the number of members of the Board of Directors and the Supervisory Board, the shareholders or group of shareholders provided in this Clause 2 have the right to nominate one or more candidates to the Board of Directors and the Supervisory Board as decided by the General Meeting of Shareholders. If the number of candidates nominated by shareholders or group of shareholders is lower than the number of candidates they are entitled to nominate as decided by the General Meeting of Shareholders, the remaining candidates shall be nominated by the Board of Directors, the Supervisory Board and other shareholders.

6. Other rights provided in this Law and the company charter.

Article 116. Voting preference shares and rights of shareholders owning voting preference shares

1. A voting preference share is an ordinary share which carries more votes than another ordinary share. The number of votes per voting preference share shall be provided in the company charter. Only organizations authorized by the Government and founding shareholders have the right to hold voting preference shares. The voting preference of founding shareholders must be valid for 03 years from the date of grant of the enterprise registration certificate of the company. Voting rights and the voting preference period for a voting preference share hold by an organization authorized by the Government shall be provided in the company charter. After the voting preference period, voting preference shares shall be converted into ordinary shares.

2. Shareholders owning voting preference shares shall have the following rights:

a) To vote on matters which fall within the competence of the General Meeting of Shareholders with the number of votes provided in Clause 1 of this Article;

b) Other rights as ordinary shareholders, except the case provided in Clause 3 of this Article.

3. Shareholders owning voting preference shares may not transfer their shares to other persons; except for cases of transfer according to the effective judgment or decision of a court or inheritance.

4. The Government shall detail regulations of this Article.

Article 117. Dividend preference shares and rights of shareholders owning dividend preference shares

1. A dividend preference share is a share for which dividend shall be paid at a rate higher than that paid for an ordinary share or at an annual fixed rate. Annually paid dividends include fixed dividends and bonus dividends. Fixed dividends must not depend on the business results of the company. The specific rate of fixed dividend and method for determining bonus dividends shall be stated in dividend preference share certificates.

2. Dividend preference shareholders shall have the following rights:

a) To receive dividends specified in Clause 1 of this Article;

b) Upon dissolution or bankruptcy of the company, to receive part of the residual assets in proportion to their number of shares in the company after the company has fully paid its debts and redeemable preference shares;

c) Other rights as ordinary shareholders, except the case specified in Clause 3 of this Article.

3. Shareholders owning dividend preference shares do not have the right to vote, the right to attend General Meetings of Shareholders and the right to nominate candidates to the Board of Directors and the Supervisory Board, except for cases specified in Clause 6, Article 148 of this Law.

Article 118. Redeemable preference shares and rights of shareholder owning redeemable preference shares

1. A redeemable preference share is a share which shall be redeemed by the company upon demand of its owner or under the conditions stated in the redeemable preference share certificate and provided in the company charter.

2. Redeemable preference shareholders have rights as ordinary shareholders, except the case specified in Clause 3 of this Article.

3. Redeemable preference shareholders do not have the right to vote, the right to attend General Meetings of Shareholders and the right to nominate candidates to the Board Directors and the Supervisory Board, except for cases specified in Clause 5, Article 114 and Clause 6, Article 148 of this Law.

Article 119. Obligations of shareholders

1. To pay in full for the shares registered to purchase.

2. Not to withdraw the capital contributed by ordinary shares from the company in any form, unless their shares are redeemed by the company or other persons. A shareholder who withdraws part or the whole of the contributed share capital not according to this Clause must, together with stakeholders in the company, be jointly liable for the debts and other property obligations of the company within the value of withdrawn shares and the damages incurred.

3. To comply with the charter and the internal management regulations of the company.

4. To observe resolutions and decisions of the General Meeting of Shareholders and the Board of Directors.

5. To protect confidential information provided by the company according to the company charter and laws; only use provided information to perform and protect their legal rights and benefits; acts of spreading or copying, sending information provided by the company to other organizations and individuals shall be strictly prohibited.

6. Other obligations provided by this Law and the company charter.

Article 120. Ordinary shares of founding shareholders

1. A newly established joint stock company must have at least 03 founding shareholders. A joint stock company that has been converted from a state enterprise or a limited liability company or divided or separated from or consolidated or merged with another joint stock company are not required to have founding shareholders. In such cases, the charter of the joint stock company included in the enterprise registration application dossier must bear the signature of the at-law representative or ordinary shareholders of such company.

2. Founding shareholders shall together register to purchase at least 20% of the total number of ordinary shares allowed to be offered at the time of registering for enterprise establishment.

3. Within 03 years from the date the enterprise registration certificate is granted to the company, the founding shareholders' ordinary shares shall be freely transferred to other founding shareholders and may only be transferred to persons other than founding shareholders if it is approved by the General Meeting of Shareholders. In this case, founding shareholders intending to transfer ordinary shares may not vote on the transfer of such shares.

4. Restrictions prescribed in Clause 3 of this Article shall not apply to the following ordinary shares:

a) New shares that the founding shareholder holds after registering for enterprise establishment;

b) Shares have been transferred to another person other than a founding shareholder.

Article 121. Share certificates

1. Share certificate means a certificate issued by a joint stock company, a book entry or electronic data certifying the ownership of one or more shares of such company. A share certificate must contain the following principal details:

a) Name, enterprise identification number and head office address of the company;

b) Number of shares and types of shares;

c) Par value of each share and total par value of shares indicated on the share certificate;

d) Full name, contact addresses, nationality, serial number of legal documents for individual shareholders; name, enterprise identification numbers or serial number of legal documents of organizations, and head office addresses for institutional shareholders;

dd) Signature of the company's at-law representative;

e) Registration number in the register of shareholders of the company and the date of grant of the share certificate;

g) A preference share certificate must also include other details as provided in Articles 116, 117 and 118 of this Law.

2. Errors in the content and form of a share certificate issued by the company must not affect the rights and interests of the share certificate owner. The company's at-law representative must be liable for any damage caused by such errors.

3. If a share certificate is lost, damaged, or otherwise destroyed, the shareholder shall be re-issued another share certificate at the request of such shareholder. A request of a shareholder must contain the following details:

a) Information about lost, damaged or destroyed share certificates;

b) Commitments to take responsibility for any disputes arising from the re-issue of a new share certificate.

Article 122. Register of shareholders

1. A joint stock company shall make and maintain a register of shareholders from the date it is granted the enterprise registration certificate. A register of shareholders may be a paper document, electronic file recording information about the number of shares of the company shareholders.

2. A register of shareholder must contain the following principal details:

a) Name and head office address of the company;

b) Total number of shares allowed to be offered for sale, types of shares allowed to be offered for sale and number of shares of each type allowed to be offered for sale;

c) Total number of shares of each type already sold and value of share capital already contributed;

d) Full name, contact addresses, nationality, serial number of legal documents for individual shareholders; name, enterprise identification numbers or serial number of legal documents of organizations, and head office addresses for institutional shareholders;

dd) Number of shares of each type of each shareholder and date of share registration.

3. A register of shareholders shall be stored at the company head office or other organizations with a function of storing register of shareholders. A shareholder shall have the right to check, look up, extract and copy name and contact addresses of shareholders stated in the register of shareholders.

4. If a shareholder changes his/her/its contact address, he/she/it shall promptly notify it to the company for updating in the register of shareholders. The company shall not be responsible for its failure to contact the shareholder because it is not notified of the change in the shareholder's contact address.

5. A company must promptly update changes of shareholders stated in the register of shareholders upon request of related shareholders according to the company charter.

Article 123. Share offering

1. Share offering means the increase of the number of shares and types of shares allowed to be offered to increase its charter capital.

2. Shares may be offered in the following forms:

a) Share offering to existing shareholders;

b) Private offering;

c) Public offering.

3. Public share offering and share offering by public companies and other organizations must comply with the law on securities.

4. Within 10 days after completing the sale of shares, the company shall register for the change in charter capital.

Article 124. Share offering to existing shareholders

1. Share offering to existing shareholders is the case the company increases its number of shares and types of shares allowed to be offered and sell such shares to all shareholders in proportion to their respective shareholding ratio in the company.

2. The share offering to existing shareholders by a non-public joint stock company shall be carried out as follows:

a) The company shall send a written notice to shareholders by a method that guarantees the notice reaches their contact addresses recorded in the register of shareholders at least 15 days before the deadline for registration to purchase shares;

b) The notice must contain full name, contact address, nationality, serial number of legal documents of the individual shareholder; or name, enterprise identification number or serial number of legal documents and head office address of the institutional shareholder; number of shares and the shareholding ratio of a shareholder in the company; total number of shares intended to be offered and number of shares which the shareholder is entitled to purchase; offering price of shares; time limit for registration to purchase; full name and signature of the company's at-law representative. The notice shall be enclosed with a share purchase registration form issued by the company. If a share purchase registration form is not sent to the company within the notified time limit, such shareholder shall be regarded as having rejected the pre-emptive purchase right;

c) Shareholders have the right to transfer their pre-emptive purchase right to others.

3. If the number of shares intended to be offered is not fully registered to purchase by shareholders and transferees of the pre-emptive purchase right, the Board of Directors may sell the remaining number of shares allowed to be offered to shareholders of the company or to other persons under conditions not more favorable than the conditions offered to shareholders, unless otherwise approved by the General Meeting of Shareholders or provided by law on securities.

4. Shares shall be regarded to have been sold upon full payment and full entry of the information of the purchasers provided in Clause 2, Article 122 of this Law in the register of shareholders; from such point of time, the purchaser of shares shall become a shareholder of the company.

5. After shares are fully paid, the company shall issue and deliver share certificates to the purchaser. In case of failure to deliver share certificates, the information of shareholders provided in Clause 2, Article 122 of this Law shall be recorded in the register of shareholders to certify the ownership of shares of such shareholders in the company.

Article 125. Private offering

1. The private offering by a non-public joint stock company must comply with the following provisions:

a) Not to offer via mass media;

b) To offer for sale to less than 100 investors, excluding professional securities investors or only offer for sale to professional securities investors.

2. A non-public company shall carry out private offering according to the following regulations:

a) The company shall decide a plan on private offering according to this Law;

b) Its shareholders shall perform their pre-emption rights in purchasing shares according to Clause 2, Article 124 of this Law, except for the case of consolidation, merger;

c) If shareholders and transferees of pre-emption rights do not purchase in full, the remaining shares shall be sold for others according to the plan of private offering under conditions not more favorable than the conditions offered to shareholders, unless otherwise approved by the General Meeting of Shareholders.

3. A foreign investor purchasing shares offered for sale according to this Article must carry out procedures for share purchase according to the Law on Investment.

Article 126. Sale of shares

The Board of Directors shall determine the time and method of sale and the selling price of shares. The selling price of shares must not be lower than the market price at the time of sale or the latest value recorded in the book value of shares, except the following cases:

1. Shares initially sold to persons other than founding shareholders;

2. Shares sold to all shareholders according to their shareholding ratio in the company;

3. Shares sold to brokers or underwriters. In this case, the specific amount of discount or rate of discount shall be approved by the General Meeting of Shareholders, unless otherwise provided in the company charter;

4. Other cases and the rates of discount in such cases shall be provided in the company charter or resolutions of the General Meeting of Shareholders.

Article 127. Transfer of shares

1. Shares may be freely transferred, except the cases specified in Clause 3, Article 120 of this Law and cases of transfer restriction provided in the company charter. If the transfer restriction is provided in the company charter, such provision shall only be effective if it is clearly mentioned in the share certificates of the relevant shares.

2. The transfer shall be carried out under contracts or transactions in the securities market. If the transfer is carried out under a contract, transfer papers

shall be signed by the transferor and transferee or their authorized representatives. In case of transaction in the securities market, the order and procedures for such transfer shall comply with the law on securities.

3. If an individual shareholder dies, his/her heir by testament or by law shall become a shareholder of the company.

4. If an individual dies without any heir or his/her heir disclaims the inheritance or his/her right to inherit is deprived, shares of such shareholder shall be dealt with according to the civil law.

5. Shareholders have the right to donate some or all of their shares in the company to other individuals and organizations; and the right to use shares for debt repayment. Donated individuals and organizations or those receiving the debt repayment with shares shall become shareholders of the company.

6. Individuals and organizations receiving shares in the cases provided in this Article shall become shareholders of the company only since the time their information provided in Clause 2, Article 122 of this Law is fully entered into the register of shareholders.

7. A company must register for changes of its shareholders in the register of shareholders upon request of related shareholders within 24 hours from the time of receiving such request as provided in the company charter.

Article 128. Private offering of bonds

1. A non-public joint stock company shall privately offer for sale of bonds according to this Law and other regulations of relevant laws. The private offering of bonds of public companies, other organizations and public offering of bonds shall comply with the law on securities.

2. Private offering of bonds of a non-public joint stock company means offer for sale for less than 100 investors, excluding professional securities investors not via mass media; and satisfying conditions on subjects of purchasing private bonds as follows:

a) Strategic investors for private convertible bonds and bonds attached to private covered warrants;

b) A professional securities investor for private convertible bonds, bonds attached to private covered warrants and private bonds of other types.

3. A non-public company privately offering for sale of bonds must satisfy the following conditions:

a) The company has fully paid both the principal and interest of the offered bonds and has matured to pay or fully pay due debts for 03 consecutive years before the bond offering (if any), except for case of bond offering for creditors being selected financial institutions.

b) Having financial statements of the year preceding the issuing year to be audited;

c) Ensuring conditions on ratio of financial security and security in its operations according to law provisions;

d) Other conditions as prescribed by relevant laws.

Article 129. Order, procedures for private offering of bonds and transfer of such bonds

1. The company shall decide on plans of private offering of bonds according to this Law.

2. The company shall make information disclosure before each bond offering to investors registered for purchasing bonds and notify the bond offering to the Stock Exchange at least 01 working day before the date intended to organize a bond offering.

3. The company shall announce information on the result of the bond offering to investors purchased bonds and notify the bond offering result to the Stock Exchange within 10 days after closing the bond offering.

4. Bonds privately offered shall be transferred among investors satisfying conditions on purchasing private bonds prescribed in Clause 2, Article 128 of this Law, except for cases of implementing effective Court's judgment and decisions, effective arbitral award or inheritance according to law regulations.

5. Based on this Law and the Law on Securities, the Government shall provide detailing provisions on types of bonds, dossier, order, procedures for issuance and transaction of private bonds; information disclosure; and issuance of bonds to international market.

Article 130. Decision on private offering of bonds

1. The company shall decide on private offering of bonds according to the following regulations:

a) The General Meeting of Shareholders shall decide on types, total value of bonds and time of offering for convertible bonds and bonds attached to covered warrants. The voting to accept a resolution on private offering of bonds of a company shall comply with Article 148 of this Law;

b) Unless otherwise provided in the company charter and Point a of this Clause, the Board of Directors shall have the right to decide on the type of bonds, total value of bonds and time of offering, but must report them to the General Meeting of Shareholders at its nearest meeting. Such a report must enclose with documents and dossiers on offer for sale of bonds.

2. Within 10 days after completing the conversion of bonds into shares, the company shall register for the change in charter capital.

Article 131. Purchase of shares and bonds

Shares and bonds of joint stock companies may be paid for in Vietnam dong, freely convertible foreign currency, gold, land use rights, intellectual property rights, technology, technical know-how, or other assets provided in the company charter, and shall be fully paid in a lump sum.

Article 132. Redemption of shares at the request of shareholders

1. A shareholder who has voted not to pass the resolution on reorganization of the company or a change in the rights and obligations of shareholders provided in the company charter may request the company to redeem its/his/her shares. Such request shall be made in writing and must specify the name and address of the shareholder, the number of shares of each type, the intended selling price, and the reason for requesting redemption by the company. Such request shall be sent to the company within 10 days after the General Meeting of Shareholders passes a resolution on matters referred to in this Clause.

2. The company must redeem shares at the request of a shareholder as provided in Clause 1 of this Article with the market price or a price determined according to the principle provided in the company charter within 90 days after receiving the request. If the parties fail to reach agreement on a price, they may request valuation by a valuation organization. The company shall recommend at least 03 valuation organizations for the shareholder to select from and such selection is the final decision.

Article 133. Redemption of shares pursuant to a decision of the company

A company may redeem no more than 30% of the total number of ordinary shares sold, and some or all of the dividend preference shares sold according to the following provisions:

1. The Board of Directors shall have the right to decide on redemption of no more than 10% of the total number of shares of each type already sold within 12 months. In other cases, redemption of shares shall be decided by the General Meeting of Shareholders;

2. The Board of Directors shall decide on the price for redemption of shares. The price for redemption of ordinary shares must not be higher than the market price at the time of redemption, except the case specified in Clause 3 of this Article. For shares of other types, unless otherwise provided in the company charter or agreed between the company and the relevant shareholders, the price for redemption must not be lower than the market price;

3. The company may redeem shares of each shareholder in proportion to their shareholding ratio in the company according to the following order and procedures:

a) The decision to redeem shares of the company shall be notified by a method that guarantees the decision may reach all shareholders within 30 days after such decision is passed. The notice must contain the name and head office address of the company, total number of shares and type of shares to be redeemed, price for redemption or principle for determination of the price for redemption, procedures and time limit for payment, and procedures and time limit for shareholders to offer for sell their shares to the company.

b) A shareholder who agrees to have his/her/its share redeemed shall send a writing agreement to sell his/her/its shares by a method that guarantees the offer may reach the company within 30 days from the date of notification. Such a writing agreement on selling shares must include full name, contact address and serial number of legal documents for an individual shareholder; name, enterprise identification number or serial number of legal documents for an institutional shareholder; number of owned shares and number of shares agreed to sold; payment method; signature of a shareholder or his/her/its at-law representative. The company shall only redeem shares within the above-mentioned time limit.

Article 134. Conditions for payment and handling of redeemed shares

1. A company may only pay shareholders for redeemed shares according to Articles 132 and 133 of this Law if, after such redeemed shares are paid for, the company is still able to ensure full payment of its debts and other property obligations.

2. All shares redeemed according to Articles 132 and 133 of this Law shall be considered unsold shares according to Clause 4, Article 112 of this Law. The company must register for a decrease in charter capital equivalent to the total par value of shares redeemed by the company within 10 days after completing the payment for the redeemed shares, unless otherwise prescribed by the law on securities.

3. Share certificates certifying the ownership of redeemed shares shall be destroyed immediately after the corresponding shares are fully paid for. The chairperson of the Board of Directors and the director or director general must be jointly liable for any damage caused by failure to destroy or delayed destruction of shares.

4. After the redeemed shares are fully paid for, if the total value of assets recorded in the accounting books of the company is reduced by more than 10%, the company shall notify all creditors thereof within 15 days after the redeemed shares are fully paid for.

Article 135. Payment of dividends

1. Dividends paid for preference shares must comply with the conditions applied separately to each type of preference shares.

2. Dividends paid for ordinary shares shall be determined on the basis of the net profit realized and the payment for dividends shall be sourced from profits retained by the company. A joint stock company may only pay dividends of ordinary shares upon fully satisfying all the following conditions:

a) The company has fulfilled its tax obligations and other financial obligations according to law;

b) It has set up all funds of the company and offset previous losses according to law and the company charter;

c) Immediately upon full payment of all dividends, the company still ensures the full payment of its debts and other property obligations which become due.

3. Dividends may be paid in cash or by shares of the company or other assets as provided in the company charter. For case of payment in cash, it must be paid in Vietnam dong by methods as prescribed by law.

4. Dividends shall be fully paid within 6 months after concluding the annual General Meeting of Shareholders. The Board of Directors shall prepare a list of shareholders to be paid dividends and determine the rate of the dividend paid for each share and the time limit and the method of payment no later than 30 days prior to each payment of dividends. The notice of payment of dividends shall be sent by a method guaranteed to reach the shareholders at their address registered in the register of shareholders no later than 15 days prior to the actual payment of dividends. Such a notice must include the following contents:

a) Name and head office address of the company;

b) Full name, contact address, nationality, serial number of legal documents for an individual shareholder;

c) Name, enterprise identification number or serial number of legal documents and head office address of the institutional shareholder;

d) The number of shares of each type held by such shareholder, the dividend rate for each type of share and the total dividends to be paid to such shareholder;

dd) The time and method for payment of dividends;

e) Full names and signatures of the chairperson of the Board of Directors and the company's at-law representative.

5. In case shares are transferred between the time of completion of the list of shareholders and the time of payment of dividends, the transferor shall receive dividends from the company.

6. In case of payment of dividends by shares, the company shall not be required to carry out the procedures for share offering provided in Articles 123, 124 and 125 of this Law. The company shall register for an increase in charter

capital equivalent to the total par value of shares used to pay dividends within 10 days after completing the payment of the dividends.

Article 136. Recovery of payments for redeemed shares or dividends

In case a payment for redeemed shares is made in violation of Clause 1, Article 134 of this Law or dividends are paid in violation of Article 135 of this Law, shareholders must return to the company the money or other assets they have received; if they cannot return to the company, all members of the Board of Directors must be jointly liable for the debts and other property obligations of the company within the scope of the money or assets which have been paid to shareholders but have not been returned.

Article 137. Organizational and managerial structure of joint stock companies

1. Unless otherwise provided by law on securities, a joint stock company may select a managing and operating structure according to any of the two models as follows:

a) General Meeting of Shareholders, Board of Directors, Supervisory Board and director or director general. If a joint stock company has fewer than 11 shareholders and the institutional shareholders own less than 50% of the total number of shares of the company, a Supervisory Board is not compulsory;

b) General Meeting of Shareholders, Board of Directors and director or director general. In this case at least 20% of the members of the Board of Directors must be independent members and an Independent Audit Committee shall be required in the Board of Directors. Organizational structure, function, tasks of the Audit Committee shall be specified in the company charter or operational regulation of the Audit Committee provided by the Board of Directors.

2. If there is only one at-law representative in the company, the chairperson of the Board of Directors or director or director general shall be the company's at-law representative. If it is not mentioned in the company charter, the chairperson of the Board of Directors shall be the company's at-law representative. If there is more than one at-law representative in the company, the chairperson of the Board of Directors and director or director general shall naturally be the company's at-law representatives.

Article 138. Rights and obligations of the General Meeting of Shareholders

1. The General Meeting of Shareholders includes all shareholders that have the right to vote and is the highest decision-making body of a joint stock company.

2. The General Meeting of Shareholders shall have the following rights and obligations:

a) To pass the development orientations of the company;

b) To decide on the types of shares and total number of shares of each type which may be offered for sale; to decide on the rate of annual dividends for each type of shares;

c) To elect, remove from office or dismiss members of the Board of Directors and supervisors;

d) To make investment decisions or decisions on sale of assets valued at 35% or more of the total value of assets recorded in the latest financial statements of the company unless another percentage or value is provided in the company charter;

dd) To decide on amendments and supplements to the company charter;

e) Approval of annual financial statements;

g) To decide on redemption of more than 10% of the total number of shares of each type already sold;

h) To consider and handle violations committed by members of the Board of Directors and supervisors which cause damage to the company and its shareholders;

i) To decide on reorganization and dissolution of the company;

k) To decide on budget or total revenue, bonus and other benefits for the Board of Directors and Supervisory Board;

l) To approve the internal management regulation; regulation on operating of the Boards of Directors, Supervisory Board;

m) To approve the List of independent auditing companies; to decide on which independent auditing company shall inspect the company operations, relief from duty, dismissal of independent auditors when necessary;

n) Other rights and obligations provided in this Law and in the company charter.

Article 139. The meeting of the General Meeting of Shareholders

1. The annual meeting of the General Meeting of Shareholders must take place at least once a year. In addition to the annual meeting, the General Meeting of Shareholders may meet on an extraordinary basis. The venue of a meeting of the General Meeting of Shareholders shall be determined as the venue where the chairperson attends and it must be within the territory of Vietnam.

2. The General Meeting of Shareholders shall hold an annual meeting within 04 months from the end of the financial year. Unless otherwise provided in the company charter, the Board of Directors shall decide to extend the annual meeting of the General Meeting of Shareholders if necessary, but not exceeding

06 months from the end of the financial year.

3. An annual meeting of the General Meeting of Shareholders must debate and pass the following issues:

a) Annual business plans of the company;

b) Annual financial statements;

c) Report of the Board of Directors on the governance and results of operation of the Board of Directors and performance of each member of the Board of Directors;

d) Report of the Supervisory Board on business results of the company, results of performance of the Board of Directors and director or director general;

dd) Self-evaluation reports on the operation of the Supervisory Board and performance of supervisors;

e) Rate of dividend payable on each type of share;

g) Other matters falling within its competence.

Article 140. Convocation of meetings of the General Meeting of Shareholders

1. The Board of Directors shall convoke an annual and extraordinary meeting of the General Meeting of Shareholders. The Board of Directors shall convene an extraordinary meeting of the General Meeting of Shareholders in the following cases:

a) The Board of Directors considers it necessary to do so for the company interests;

b) The number of the remaining members of the Board of Directors or Supervisory Board is fewer than the number of the minimum members required by law;

c) Upon request of a shareholder or a group of shareholders as provided in Clause 2, Article 115 of this Law;

d) At the request of the Supervisory Board;

dd) Other cases provided by law and the company charter.

2. Unless otherwise provided in the company charter, the Board of Directors shall convene a meeting of the General Meeting of Shareholders within 30 days from the date on which cases specified at Point b, Clause 1 of this Article occur or from the date of the receipt of the request of convoking a meeting provided at Points c and d, Clause 1 of this Article. If the Board of Directors fails to convene a General Meeting of Shareholders as provided, the chairperson of the Board of Directors and members of the Board of Directors

must compensate for any damage arising to the company.

3. If the Board of Directors fails to convene a meeting of the General Meeting of Shareholders as provided in Clause 2 of this Article, within the following 30 days, the Supervisory Board shall replace the Board of Directors in convening the General Meeting of Shareholders according to this Law. If the Supervisory Board fails to convene a meeting as prescribed, the Supervisory Board must pay compensation for any damage arising to the company.

4. If the Supervisory Board fails to convene a meeting as provided in Clause 3 of this Article, the requesting shareholder or group of shareholders provided in Clause 2, Article 115 of this Law shall have the right to represent the company to convene the General Meeting of Shareholders according to this Law.

5. The convener of the General Meeting of Shareholders must perform the following works:

a) To prepare a list of shareholders entitled to attend;

b) To provide information and settle complaints relating to the list of shareholders;

c) To prepare the program and agenda of the meeting;

d) To prepare documents for the meeting;

dd) To draft the resolution of the General Meeting of Shareholders; the list and detailed information of candidates in the case of election of members of the Board of Directors, supervisors;

e) To determine the time and venue of the meeting;

g) To send the meeting invitation to each shareholder entitled to attend the meeting according to this Law;

h) Other activities to serve the meeting.

6. The expenses for convening and conducting a meeting of the General Meeting of Shareholders as provided in Clauses 2, 3 and 4 of this Article shall be reimbursed by the company.

Article 141. List of shareholders entitled to attend the meeting of the General Meeting of Shareholders

1. The list of shareholders entitled to attend the meeting of the General Meeting of Shareholders shall be prepared based on the register of shareholders of the company. The list of shareholders entitled to attend the meeting of the General Meeting of Shareholders shall be prepared no more than 10 days prior to the date of sending the meeting invitation to the General Meeting of Shareholders, unless a shorter period is provided in the company charter.

2. The list of shareholders entitled to attend the meeting of the General

Meeting of Shareholders must include full name, contact address, nationality and serial number of legal documents, of each individual shareholder, and the name, enterprise identification number or serial number of legal documents and head office address of each institutional shareholder; and the number of shares of each type, and the number and date of registration of each shareholder.

3. Shareholders shall have the right to inspect, look up, extract, copy the name and contact addresses of a shareholder provided in the List of shareholders entitled to attend the meeting of the General Meeting of Shareholders; to request for correction of wrong information or addition of necessary information about themselves in this List. The company managers shall provide timely information on the register of shareholders, amend and supplement the erroneous information at the request of the shareholders; compensate for the damages incurred due to the failure to provide or to provide untimely or inaccurate information on the register of shareholders as requested. The order and procedures for requesting provision of information on the register of shareholders shall comply with the provisions in the company charter.

Article 142. Program and agenda of the General Meeting of Shareholders

1. The convener of the General Meeting of Shareholders shall prepare the agenda and contents of the meeting.

2. The shareholder or group of shareholders provided in Clause 2, Article 115 of this Law may recommend items to be included in the agenda of the General Meeting of Shareholders. The recommendation shall be made in writing and sent to the company no later than 03 working days prior to the date of opening, unless the company charter stipulates another time limit. The recommendation must specify the name of shareholder(s), the number of shares of each type of shareholder, and the items recommended to be included in the agenda.

3. In case the convener of the General Meeting of Shareholders refuses to give recommendation prescribed in Clause 2 of this Article, he/she must reply in writing and clearly state the reason 02 working day at the latest before the opening date of the meeting of the General Meeting of Shareholders. The convener of the General Meeting of Shareholders may only refuse the recommendation in any of the following cases:

a) The recommendation is sent contrary to Clause 2 of this Article;

b) The item recommended does not fall within the decision-making competence of the General Meeting of Shareholders;

c) Other cases provided in the company charter.

4. The convener of the General Meeting of Shareholders must accept and include the recommendations provided in Clause 2 of this Article into the

tentative program and agenda for the meeting, except in the cases provided in Clause 3 of this Article; the recommendation shall be officially added to the program and agenda for the meeting if the General Meeting of Shareholders so agrees.

Article 143. Invitation to the meeting of the General Meeting of Shareholders

1. The convener of the General Meeting of Shareholders must send a meeting invitation to all shareholders on the list of shareholders entitled to attend the meeting no later than 21 days prior to the date of opening, unless a longer time limit is provided in the company charter. The meeting invitation must include name, head office address, enterprise identification number; name, contact address of shareholder, time and venue of the meeting, and other requirements for participants.

2. The invitation shall be sent by a method guaranteeing it to reach the contact address of shareholders and posted on the company's website; published on a central or local daily, if it is deemed necessary as provided in the company charter.

3. The invitation shall be enclosed with the following documents:

a) Meeting agenda, documents used in the meeting and draft resolutions on each of the items on the agenda;

b) Voting slip.

4. If the company has its website, the sending of meeting documents and notice on meeting invitation prescribed in Clause 3 of this Article may be substituted by posting on its website. In such case, the notice on meeting invitation must clearly state the website and methods of downloading documents.

Article 144. Exercise of the right to attend the meeting of the General Meeting of Shareholders

1. Shareholders, representatives authorized by institutional shareholders may directly attend the meeting or authorize in writing another person or other individuals, organizations to attend the meeting or attend by one of the methods provided in Clause 3 of this Article.

2. The authorization for another person or organization to attend the meeting of the General Meeting of Shareholders must be made in writing. The authorization letter must be made according to the civil law and must clearly state name of the authorized individual or organization and number of authorized shares. Any person or organization authorized to attend a meeting of the General Meeting of Shareholders shall submit his/her/its authorization letter when making registration before entering the meeting room.

3. Shareholders shall be considered attending and voting at a meeting of the General Meeting of Shareholders in the following cases:

a) They attend and directly vote at the meeting;

b) Authorizing other individuals and organizations to attend and vote at the meeting;

c) Attending and voting by video conferencing, electronic voting or another electronic form;

d) Sending the vote to the meeting by mail, fax or e-mail;

dd) Sending the vote by other means as provided in the company charter.

Article 145. Conditions for conducting the meeting of the General Meeting of Shareholders

1. The meeting of the General Meeting of Shareholders shall be conducted if the number of attending shareholders represents is more than 50% of the total votes; the specific percentage shall be provided in the company charter.

2. If the first meeting cannot take place because the condition provided in Clause 1 of this Article is not satisfied, the second time meeting invitation notice may be sent within 30 days from the date of intending to open the first meeting, unless otherwise provided in the company charter. The meeting of the General Meeting of Shareholders shall be conducted for the second time if the number of attending shareholders represents at least 33% of the total votes; the specific percentage shall be provided in the company charter.

3. If a second meeting cannot take place because the condition provided in Clause 2 of this Article is not satisfied, the third time meeting invitation notice must be sent within 20 days from the date of the intended opening of the second meeting, unless otherwise provided in the company charter. The meeting of the General Meeting of Shareholders shall be conducted for the third time, irrespective of the number of attending shareholders and the percentage of votes of attending shareholders.

4. Only the General Meeting of Shareholders may decide on the changes to the agenda accompanying the meeting invitation as provided in Article 142 of this Law.

Article 146. Procedures for conducting and voting at the meeting of the General Meeting of Shareholders

Unless otherwise provided in the company charter, the procedures for conducting and voting at the meeting of the General Meeting of Shareholders shall be carried out as follows:

1. Prior to the opening of a meeting, registration of shareholders attending the meeting of the General Meeting of Shareholders shall be made;

2. The election of the meeting chairperson, secretary and vote counting committee is prescribed as follows:

a) The chairperson of the Board of Directors shall act as the chairperson or authorize another member of the Board of Directors to act as a chairperson of meetings of the General Meeting of Shareholders which are convened by the Board of Directors; if the chairperson is absent or is temporarily unable to work, the remaining members of the Board of Directors shall elect, with the majority principle, one of them to act as the chairperson of the meeting; if they fail to elect one who is able to act as a chairperson, the head of the Supervisory Board shall arrange for the General Meeting of Shareholders to elect the chairperson of the meeting and the person with the highest number of votes shall act as the chairperson of the meeting;

b) Except for cases specified at Point a of this Clause, the person who signed the document convening the meeting of the General Meeting of Shareholders shall arrange for the General Meeting of Shareholders to elect the meeting chairperson and the person with the highest number of the votes shall act as the chairperson of the meeting;

c) The meeting chairperson shall nominate one or a number of persons to act as the secretary(ies) of the meeting;

d) The General Meeting of Shareholders shall elect one or a number of persons to the vote counting committee at the proposal of the meeting chairperson;

3. The agenda and contents of the meeting shall be passed by the General Meeting of Shareholders in the opening session. The agenda must specify the time applicable to each issue in the agenda of the meeting;

4. The meeting chairperson shall have the right to take necessary and reasonable measures to direct the conduct of the meeting in an orderly manner, complying with the approved agenda and reflecting the wishes of the majority of attendees;

5. The General Meeting of Shareholders shall discuss and vote on each issue in the agenda of the meeting. Voting shall be conducted by voting for agreement, disagreement and abstention. The meeting chairperson shall announce the voting results immediately prior to the closing of the meeting, unless otherwise provided by the company charter;

6. A shareholder or person authorized to attend the meeting who arrives after the opening of the meeting has the right to register and participate in the voting immediately after registration; in such a case, the effect of the previously voted items must not change;

7. The convener or the chairperson of the meeting of the General Meeting of Shareholders shall have the following rights:

a) To require all people attending the meeting to be checked or subject to other lawful and reasonable security measures;

b) To request a competent body to maintain order during the meeting; to expel from the meeting of the General Meeting of Shareholders anyone who fails to comply with the chairperson's right to control the meeting, who intentionally disrupts or prevents normal progress of the meeting or who fails to comply with a request to undergo a security check;

8. The chairperson may adjourn the meeting of the General Meeting of Shareholders for which sufficient attendees have registered for a maximum of 03 working days from the date on which the meeting is intended to open, and may adjourn or change the venue of the meeting only in the following cases:

a) The venue of the meeting does not have sufficient comfortable seating for all the attendees;

b) Means of communication at the venue fail to ensure the participation, discussion, and voting by all attending shareholders;

c) An attendee obstructs the meeting or disrupts order, with a risk that the meeting might not be conducted fairly and legally;

9. If the chairperson adjourns or postpones a meeting of the General Meeting of Shareholders contrary to the provisions in Clause 8 of this Article, the General Meeting of Shareholders shall elect another person from the attendees to replace the chairperson in conducting the meeting until its completion; all the resolutions adopted in such meeting shall be effective.

Article 147. Forms of passing resolutions of the General Meeting of Shareholders

1. The General Meeting of Shareholders shall pass resolutions which fall within its power by voting in the meeting or collecting written opinions.

2. Unless otherwise provided by the company charter, a resolution of the General Meeting of Shareholders on the following matters shall be adopted by voting at the meeting of the General Meeting of Shareholders:

a) Amendment and supplement to the company charter;

b) The development orientation of the company;

c) Types of shares and the total number of shares of each type;

d) Appointment, discharge or removal from office of members of the Board of Directors and Supervisory Board;

dd) To make investment decisions or decisions on sale of assets valued at 35% or more of the total value of assets recorded in the latest financial statements of the company, unless another percentage or value is provided in the company charter;

e) Approval of annual financial statements;

g) Reorganization or dissolution of the company.

Article 148. Conditions for approval of General Meeting of Shareholders' resolutions

1. A resolution on the following contents shall be adopted when approved by a number of shareholders representing at least 65% of the total votes of all attending shareholders, except for cases provided in Clauses 3, 4 and 6 of this Article; the specific percentage shall be provided in the company charter:

a) Types of shares and total number of shares of each type;

b) Change in business sectors, trades and fields;

c) Change in organizational and management structure of the company;

d) Investment projects or sale of assets with a value of at least 35% of the total value of assets recorded in the latest financial statements of the company, unless another percentage or value is provided in the company charter;

dd) Reorganization or dissolution of the company;

e) Other issues provided by the company charter.

2. Resolutions shall be adopted when approved by a number of shareholders owning more than 50% of the total votes of all attending shareholders, except the cases specified in Clauses 1, 3, 4 and 6 of this Article; the specific percentage shall be provided in the company charter.

3. Unless otherwise provided in the company charter, the voting to elect members of the Board of Directors and of the Supervisory Board shall be implemented by the method of cumulative voting, whereby each shareholder has his/her/its total number of the votes equal to the total number of shares he/she/it owns multiplied by the number of members to be elected to the Board of Directors or Supervisory Board, and each shareholder may accumulate all or part of his/her/its votes for one or more candidates. The elected members of the Board of Directors or the Supervisory Board shall be determined according to the number of votes for from high to low, starting from the candidate with the highest number of votes for until sufficient members as provided in the company charter are elected. If 02 or more candidates gain the same number of votes for the last member of the Board of Directors or Supervisory Board, re-election shall be carried out among the candidates with the same number of votes or the selection shall be carried out according to the election rules or the company charter.

4. If adopted by collecting written opinions, a resolution of the General Meeting of Shareholders shall be adopted when it is approved by the number of shareholders owning more than 50% of the total number of votes of all shareholders entitled to vote for approval. The specific percentage shall be

provided in the company charter.

5. Resolutions of the General Meeting of Shareholders shall be notified to shareholders entitled to attend the meeting of the General Meeting of Shareholders within 15 days from the date of adoption thereof; for a company that has a website, the sending of resolutions may be replaced by posting them on the company's website.

6. The General Meeting of Shareholders' resolution on the content that adversely changes the rights and obligations of shareholders owning preference shares shall only be approved if it is approved by the number of preference shareholders of the same type attending the meeting who own from 75% of the total preferred shares of that type or more or approved by favored by preference shareholders of the same type who own from 75% of the total preferred shares of that type or more in case of adopting resolution in the form of collecting written opinions.

Article 149. Competence and procedures for collecting written opinions in order to pass resolutions of the General Meeting of Shareholders

Unless otherwise provided by the company charter, the competence and procedures for collecting written opinions in order to pass a resolution of the General Meeting of Shareholders shall be implemented according to the following provisions:

1. The Board of Directors may collect written opinions from shareholders in order to pass a resolution of the General Meeting of Shareholders at any time if considered necessary for the interests of the company, except for cases specified in Clause 2, Article 147 of this Law;

2. The Board of Directors shall prepare the written opinion form, a draft of the resolution of the General Meeting of Shareholders, documents explaining the draft resolution and send to all shareholders with voting rights at least 10 days before the deadline for submitting opinions, unless a longer period is required in the company charter. The preparation of the list of shareholders to whom written opinion forms shall be sent must comply with Clauses 1 and 2, Article 141 of this Law. The request and method of sending the written opinion form together with documents must comply with Article 143 of this Law;

3. The written opinion form must contain the following principal details:

a) Name, head office address and enterprise identification number;

b) Purpose of collecting written opinions;

c) Full name, contact address, nationality, serial number of legal documents for an individual shareholder; name, enterprise identification number or serial number of legal documents, head office address for an institutional shareholder or full name, contact address, nationality, serial number of personal legal documents for the institutional shareholder's representative; the number of shares of each type and number of voting of each shareholder;

d) Issue on which it is necessary to solicit opinions in order to pass a resolution;

dd) Voting options including agreement, disagreement and no opinion;

e) Deadline for returning the completed written opinion form to the company;

g) Full name and signature of the chairperson of the Board of Directors;

4. Shareholders may send their completed written opinion form to the company by post, fax or e-mail according to the following regulations:

a) If sending by post, the completed written opinion form must bear the signature of the individual shareholder, or of the authorized representative or the at-law representative of the institutional shareholder. The written opinion form returned to the company must be in a sealed envelope and nobody is permitted to open the envelope prior the counting of the votes;

b) If sending by fax or e-mail, the written opinion form returned to the company must be kept secret until the time of counting votes;

c) Any completed written opinion form which is returned to the company after the deadline specified in the written opinion form or which has been opened in the case of sending by post or revealed in the case of sending by fax or e-mail shall be considered to be invalid. A written opinion form which is not sent back shall be considered "not voting";

5. The Board of Directors shall organize the counting of the votes and shall prepare minutes of the counting of the votes in the presence and supervision of the Supervisory Board or of a shareholder who does not hold a managerial in the company. The minutes of counting of votes must contain the following principal details:

a) Name, head office address and enterprise identification number;

b) Purpose of collection of written opinions and issues on which it is necessary to solicit written opinions in order to pass a resolution;

c) Number of shareholders with total numbers of votes who have participated in the vote, classifying the votes into valid and invalid, and method of vote sending, including an appendix being a list of the shareholders who participated in the vote;

d) Total number of votes for, against and abstentions on each matter voted upon;

dd) Issues which have been passed and respective percentages of votes;

e) Full names and signatures of the chairperson of the Board of Directors, the person supervising the counting of votes and the person counting the votes.

Members of the Board of Directors, person counting the votes and the person supervising the counting of votes must be jointly liable for the truthfulness and accuracy of the minutes of counting of votes, and must be jointly liable for any damage arising from a decision which is passed due to an untruthful or inaccurate counting of votes;

6. The minutes of vote counting results and resolutions shall be sent to shareholders within 15 days from the date the vote counting ends. For a company that has a website, the sending of minutes of vote counting results and resolutions may be replaced by posting them on the company's website;

7. Written opinion forms which are returned, the minutes of counting of votes, the adopted resolution and related documents sent with written opinion forms shall be archived at the company's head office;

8. A resolution which is adopted by the form of collecting written opinions of shareholders shall have the same validity as a resolution adopted by the General Meeting of Shareholders.

Article 150. Minutes of the meeting of the General Meeting of Shareholders

1. The meeting of the General Meeting of Shareholders shall be recorded in minutes and may be sound-recorded or recorded and stored in other electronic forms. The minutes shall be prepared in Vietnamese and may be in a additional foreign language, and contain the following principal details:

a) Name, head office address and enterprise identification number;

b) Time and venue of the meeting of the General Meeting of Shareholders;

c) Agenda and contents of the meeting;

d) Full names of the chairperson and secretary;

dd) Summary of proceedings of the meeting and of opinions presented in the General Meeting of Shareholders on each matter set out in the meeting agenda;

e) Number of shareholders and total number of votes of attending shareholders, appendix listing registered shareholders and representatives of shareholders attending the meeting with the total number of their shares and the corresponding total number of votes;

g) Total number of votes for each issue voted on, specifying the voting method, numbers of valid, invalid votes, votes for and against, and abstention votes; and their respective percentages to the total number of votes of shareholders attending the meeting;

h) Issues which have been passed and respective percentages of votes;

i) Full names and signatures of the chairperson and secretary.

In case the chairperson, secretary refuses to sign in the meeting minutes, such minutes shall be valid if it is signed by all other attending members of the Board of Directors and fully contains contents as prescribed in this Clause. The meeting minutes must clearly specify such refusal.

2. The minutes of the meeting of the General Meeting of Shareholders shall be completed and approved prior to the closing of the meeting.

3. The chairperson and secretary of the meeting or other person signing in the meeting minutes must be jointly liable for the truthfulness and accuracy of the contents of the minutes.

4. Minutes in Vietnamese and minutes in the foreign language shall be equally valid. If there are any discrepancies between the Vietnamese and the foreign language versions, the Vietnamese version shall be applied.

5. The minutes of the meeting of the General Meeting of Shareholders shall be sent to all shareholders within 15 days from the date of the closing of the meeting. The sending of minutes of vote counting results may be replaced by posting them on the company's website.

6. The meeting minutes of the General Meeting of Shareholders, the appendix listing the shareholders registered to attend the meeting, adopted resolutions and other relevant documents sent together with the meeting invitation shall be archived at the company's head office.

Article 151. Request for revocation of resolutions of the General Meeting of Shareholders

Within 90 days from the date of receiving the resolution or the meeting minutes of the General Meeting of Shareholders or the minutes of vote counting results regarding the solicitation of opinions from the General Meeting of Shareholders, shareholders or groups of shareholders provided in Clause 2, Article 115 of this Law shall have the right to request a court or arbitration to consider and revoke the whole or part of a resolution of the General Meeting of Shareholders in the following cases:

1. The order, procedures for convening and issuing resolutions of the General Meeting of Shareholders seriously violates regulations of this Law and the company charter, except for cases prescribed in Clause 2, Article 152 of this Law;

2. The resolution content violates the law or the company charter.

Article 152. Effect of the General Meeting of Shareholders' resolutions

1. The General Meeting of Shareholders' resolutions shall take effect

after their adoption or from the effective date stated in such resolutions.

2. The General Meeting of Shareholders' resolutions adopted by 100% of the total number of voting shares shall be valid and become effective even when the order and procedures for passing such resolutions violates this Law and the company charter;

3. If a shareholder or a group of shareholders requests a court or an arbitration to revoke a General Meeting of Shareholders' resolution according to Article 151 of this Law, such resolution still continues to be effective until the effective date of a court, arbitration's decision on cancellation of such resolution, except the case of application of a provisional urgent measure under a competent agency's decision.

Article 153. The Board of Directors

1. The Board of Directors is the body managing the company and has full competence to make decisions in the name of the company and to exercise the rights and perform the obligations of the company which do not fall within the competence of the General Meeting of Shareholders.

2. The Board of Directors has the following rights and obligations:

a) To decide on medium term development strategies and plans and annual business plans of the company;

b) To recommend the types of shares and total number of shares of each type which may be offered;

c) To decide on offering unsold shares within the number of shares of each type which may be offered for sale; to decide on raising additional funds in other forms;

d) To decide on the selling prices of shares and bonds of the company;

dd) To decide on redemption of shares according to Clauses 1 and 2, Article 133 of this Law;

e) To decide on investment plans and investment projects within the competence and limits prescribed by law;

g) To decide on solutions for market expansion, marketing and technology;

h) To approve contracts for purchase, sale, borrowing and lending and other contracts, transactions valued at 35% or more of the total value of assets recorded in the latest financial statements of the company, unless another percentage or value is provided in the company charter, and such contracts, transactions are under the management competence of the General Meeting of Shareholders specified at Point d, Clause 2, Article 138, Clauses 1 and 3, Article 167, of this Law;

i) To appoint, remove from office or dismiss the chairperson of the Board of Directors; to appoint, remove from office and sign contracts or terminate contracts with the director or director general and other key managers of the company as provided in the company charter; to decide on salaries, remuneration, bonuses and other benefits of such managers; to appoint an authorized representative to participate in the Members' Council or the General Meeting of Shareholders in another company, and decide on the level of remuneration and other benefits of such persons;

k) To supervise and direct the director or director general and other managers in their work of conducting the daily business of the company;

l) To decide on the organizational structure and internal management regulations of the company, to decide on the establishment of subsidiaries, branches and representative offices and the capital contribution, purchase of shares from other enterprises;

m) To approve the agenda and contents of documents for the meeting of the General Meeting of Shareholders; to convene the General Meeting of Shareholders or to solicit written opinions for the General Meeting of Shareholders to pass resolutions;

n) To submit annual financial statements to the General Meeting of Shareholders;

o) To recommend dividend rates to be paid; to decide on the time limit and procedures for payment of dividends or for dealing with losses incurred in the business operation;

p) To recommend reorganization, dissolution of the company; to request bankruptcy of the company;

q) Other rights and obligations provided in this Law and the company charter.

3. The Board of Directors shall pass resolutions, decisions by voting at meetings, soliciting written opinions or by other methods provided in the company charter. Each member of the Board of Directors shall have one vote.

4. If the Board of Directors passes a resolution or decision which is contrary to the law, General Meeting of Shareholders' resolutions, company charter, causing damage to the company, the members who agreed to pass such resolution, decision must be jointly liable for that resolution, decision and shall compensate the company for the damage; any member who opposed the passage of such resolution, decision shall be exempted from liability. In such case, the company's shareholders may request a court to suspend the implementation or cancel such resolution, decision.

Article 154. Term of office and numbers of members of the Board of Directors

1. The Board of Directors must have between 03 and 11 members. The specific number of members of the Board of Directors shall be provided in the company charter.

2. The term of office of Board of Directors’ members must not exceed 05 years and such members may be re-elected for an unlimited number of terms. Each member may only be elected to be an independent member of the Board of Directors for a company for no more than 02 consecutive terms.

3. If all members of the Board of Directors terminate their term of office at the same time, they shall continue to act as members of the Board of Directors until new members are elected and take over their work, unless otherwise provided in the company charter.

4. The specific number, rights, obligations and method of organization and coordination of activities of independent members of the Board of Directors shall be provided in the company charter.

Article 155. Organizational structure, criteria and conditions of members of the Board of Directors

1. Members of the Board of Directors must satisfy the following criteria and conditions:

a) Not being persons prescribed in Clause 2, Article 17 of this Law;

b) Possessing professional qualifications and experience in business administration or in fields, sectors or business lines of the company and not necessarily being a shareholder of the company, unless otherwise provided in the company charter;

c) A member of the Board of Directors of the company may concurrently act as a member of the Board of Directors of another company;

d) With regard to State enterprises specified at Point b, Clause 1, Article 88 of this Law and their subsidiaries prescribed in Clause 1, Article 88 of this Law, members of the Board of Directors must not be a person in family relationship with a director, director general and another manager of the company; of a manager or person with competence to appoint managers of the parent company.

2. Independent members of the Board of Directors provided at Point b, Clause 1, Article 137 of this Law must meet the following criteria and conditions, unless otherwise prescribed by the law on securities:

a) Not working for the same company, parent company or a subsidiary of the company; not used to work for the same company, parent company or a subsidiary of the company during at least 03 previous consecutive years;

b) Not currently being entitled to salaries and remuneration from the company, except the allowance enjoyed by members of the Board of Directors under regulations;

c) Not being a person whose spouse, natural father, adoptive father, natural mother, adoptive mother, natural child, adopted child or sibling is a large shareholder of the company; is a manager of the company or of a subsidiary of the company;

d) Not being a person directly or indirectly owning at least 1% of the total number of voting shares of the company;

dd) Not being a person who used to be a member of the Board of Directors, Supervisory Board of the company during at least 05 previous consecutive years; except for case of being consecutively appointed for 02 terms.

3. Independent members of the Board of Directors must notify the Board of Directors of the fact that they no longer meet the criteria and conditions provided in Clause 2 of this Article and shall naturally no longer be independent members of the Board of Directors when no longer meeting the criteria and conditions. The Board of Directors shall notify the independent members of the Board of Directors no longer meeting the criteria and conditions at the nearest meeting of the General Meeting of Shareholders or convene a meeting of the General Meeting of Shareholders to additionally elect or replace the independent members of the Board of Directors within 06 months after receiving the notice of the concerned independent members of the Board of Directors.

Article 156. Chairperson of the Board of Directors

1. The Board of Directors shall elect a member of the Board of Directors to act as chairperson, remove from office or dismiss such chairperson.

2. The chairperson of the Board of Directors of a public company and joint stock company prescribed at Point b, Clause 1, Article 88 of this Law shall not be a director or director general at the same time.

3. The chairperson of the Board of Directors has the following rights and obligations:

a) To prepare working plans and programs of the Board of Directors;

b) To prepare agendas, contents and documents for meetings; to convene, preside and chair meetings of the Board of Directors;

c) To organize the adoption of resolutions, decisions of the Board of Directors;

d) To monitor the implementation of resolutions, decisions of the Board of Directors;

dd) To chair meetings of the General Meeting of Shareholders;

e) Other rights and obligations provided in this Law and the company charter.

4. If the chairperson of the Board of Directors is absent or unable to perform his/her duties, he/she must authorize in writing another member to exercise the rights and perform the obligations of the chairperson of the Board of Directors according to the principles provided in the company charter. If no one is authorized or the chairperson of the Boards of Directors is dead, missing, put in temporary detention, serving an imprisonment sentence or administrative measure of a compulsory drug rehabilitation center, compulsory education institution, absconds from his/her place of residence, has his/her civil act capacity restricted or lost, having difficulties in cognition and behavior control, banned from conducting business, holding certain posts or performing certain jobs by courts, the remaining members shall elect one of them on the majority principle to hold the position of the chairperson of the Board of Directors until a new decision of the Board of Directors is issued.

5. If it is necessary, the Board of Directors may decide on appointing the company's secretary. The company secretary has the following rights and obligations:

a) To assist in the convening of meetings of the General Meetings of Shareholders, the Board of Directors; to record the meeting minutes;

b) To assist members of the Board of Directors in exercising vested rights and performing assigned obligations;

c) To assist the Board of Directors in applying and implementing the company governance principles;

d) To assist the company in developing shareholder relations and protecting the lawful rights and interests of shareholders; observing obligations of information provision, publicizing information and administrative procedures;

dd) Other rights and obligations provided in the company charter.

Article 157. Meetings of the Board of Directors

1. The chairperson of the Board of Directors shall be elected in the first meeting of the Board of Directors within 07 working days after the completion of the election of the Board of Directors. This meeting shall be convened and chaired by the member who gains the highest number or the highest percentage of votes. If two or more members gain the same highest number or the same highest percentage of votes, all members shall elect by a majority principle to vote a person amongst them to convene the meeting.

2. Meetings of the Board of Directors may be held at least once a quarter or on an extraordinary basis.

3. The chairperson of the Board of Directors shall convene a meeting of the Board of Directors in the following cases:

a) At the request of the Supervisory Board or an independent member of the Board of Directors;

b) At the request of the director or director general or at least 05 other managers;

c) At the request of at least 02 members of the Board of Directors;

d) Other cases provided in the company charter.

4. The request specified in Clause 3 of this Article must be made in writing, specify the purpose and issues to be discussed and decided within the competence of the Board of Directors.

5. The chairperson of the Board of Directors shall convene a meeting of the Board of Directors within 07 working days after receiving a request provided in Clause 3 of this Article. In case of failure to convene a meeting of the Board of Directors as requested, the chairperson of the Board of Directors must be liable for any damages caused to the company; the person making the request has the right to convene a meeting of the Board of Directors on behalf of the chairperson of the Board of Directors.

6. The chairperson of the Board of Directors or the convener of the meeting of the Board of Directors shall send a meeting invitation at least 03 working days prior to the date of meeting, unless otherwise provided by the company charter. The invitation must specify the time and venue of the meeting, the agenda and issues to be discussed and decided. The notice shall be enclosed with documents to be used at the meeting and voting slips for the members.

The invitation notice to the Board of Directors' meeting may be sent by invitation letter, telephone, fax, electronic means or other means as provided in the company charter, and guarantee that it reaches the contact address of each member of the Board of Directors registered with the company.

7. The chairperson of the Board of Directors or the convener shall send the meeting invitation together with attached documents to supervisors in the same manner as to the members of the Board of Directors.

Supervisors have the right to attend meetings of the Board of Directors and to discuss issues but not to vote.

8. A meeting of the Board of Directors shall be conducted if it is attended by three quarters or more of the total members. If a meeting convened under this Clause does not include sufficient attending members as required, the second meeting shall be convened within 07 days from the date of intending to open the first meeting, unless a shorter period is provided in the company

charter. In this case, the meeting shall be conducted if it is attended by more than half of the members of the Board of Directors.

9. The members of the Board of Directors shall be considered attending and voting at a meeting in the following cases:

a) They attend and directly vote at the meeting;

b) They authorize another to attend and vote under Clause 11 of this Article;

c) Attending and voting by video conferencing, electronic voting or another electronic form;

d) They send the vote to the meeting by post, fax or e-mail.

dd) Sending the vote by other means as provided in the company charter.

10. If sent by post to the meeting, the vote shall be enclosed in a sealed envelope and delivered to the chairperson of the Board of Directors at least 01 hour prior to the opening of the meeting. Written votes shall only be opened in the presence of all the people attending the meeting.

11. Members shall attend all meetings of the Board of Directors. A member may authorize another person to attend a meeting and vote if a majority of members of the Board of Directors agree.

12. Unless a higher ratio is provided in the company charter, a resolution or decision of the Board of Directors may be adopted only when it is approved by the majority of the attending members; in the case of a tied vote, the final decision shall be made in favor of the vote of the chairperson of the Board of Directors.

Article 158. Minutes of meetings of the Board of Directors

1. All meetings of the Board of Directors must be recorded in minutes and may be sound-recorded, recorded and stored in other electronic forms. Minutes shall be prepared in Vietnamese and may be in an additional foreign language and include the following principal contents:

a) Name, head office address and enterprise identification number;

b) Time and venue of the meeting;

c) Purpose, agenda and contents of the meeting;

d) Full name of each member attending the meeting or the person authorized to attend meeting and method of attending; full name of members not attending and reasons for not attending;

dd) Issues discussed and voted in the meeting;

e) Summary of opinions of each member attending the meeting during the process of the meeting;

g) Voting results indicating members who agree, who disagree and members who abstain from voting;

h) Issues which have been passed and respective percentages of votes;

i) Full name and signatures of the chairperson and minutes recorder, except for cases specified in Clause 2 of this Article.

2. If the chairperson, minutes recorder refuses to sign in the meeting minutes, but such minutes is signed by the remaining members of the Board of Directors and contains sufficient contents according to Points a, b, c, d, dd, e, g and h of this Article, it shall be valid.

3. The chairperson, the minute's recorder and others signing in the minutes must be jointly liable for the accuracy and trustfulness of the minutes of meetings of the Board of Directors.

4. Minutes of meetings of the Board of Directors and documents used in the meetings shall be archived at the company's head office.

5. Minutes in Vietnamese and minutes in a foreign language shall be equal validity. If there are any discrepancies between the Vietnamese and foreign language versions, the Vietnamese version shall be applied.

Article 159. Rights of members of the Board of Directors to be provided with information

1. Members of the Board of Directors may request the director, deputy director or the director general, deputy director general and other managers in the company to provide information and documents on the financial situation and business operations of the company and of units in the company.

2. A requested manager shall promptly, adequately and accurately provide information and documents as requested by members of the Board of Directors. The order and procedures for requesting and providing information shall be provided in the company charter.

Article 160. Relief of duty, removal from office, replacement and addition of the Board of Directors' members

1. A member of the Board of Directors shall be relieved of duty by the General Meeting of Shareholders in the following cases:

a) Not fully satisfying the criteria and conditions provided in Article 155 of this Law;

b) Having submitted a resignation letter which is approved;

c) Other cases provided in the company charter.

2. A member of the Board of Directors shall be removed from office by the General Meeting of Shareholders in the following cases:

a) Having not participated in activities of the Board of Directors for 06 consecutive months, except force majeure cases;

b) Other cases provided in the company charter.

3. In addition to cases specified in Clauses 1 and 2 of this Article, if it is necessary, the General Meeting of Shareholders shall decide on replacing a member of the Board of Directors; relieving of duty, removing from office with a member of the Board of Directors.

4. The Board of Directors must convene the General Meeting of Shareholders to elect additional members of the Board of Directors in the following cases:

a) The number of members of the Board of Directors is reduced by more than one-third of the number provided in the company charter. In this case, the Board of Directors shall convene the meeting of the General Meeting of Shareholders within 60 days from the date the number of members is reduced by more than one-third;

b) The number of independent members of the Board of Directors is reduced, not meeting the percentage provided at Point b, Clause 1, Article 137 of this Law;

c) Except for cases provided at Points a and b of this Clause, the General Meeting of Shareholders shall elect new members of the Board of Directors to replace members of the Board of Directors who have been relieved of duty or removed from office in the latest meeting.

Article 161. The Audit Committee

1. The Audit Committee is the professional agency of the Board of Directors. There are 02 members or more in the Audit Committee, the chairperson of the Audit Committee must be a member of the Board of Directors. Other members of the Audit Committee must be non-executive members of the Board of Directors.

2. The Audit Committee shall pass decisions by voting at meetings, soliciting written opinions or by other methods provided in the company charter or operational regulation of the Audit Committee. Each member of the Audit Committee shall have one vote. Unless a higher ratio is provided in the company charter or operational regulation of the Audit Committee, a decision of the Audit Committee may be adopted only when it is approved by the majority of the attending members; in the case of a tied vote, the final decision shall be made in favor of the vote of the chairperson of the Audit Committee.

3. The Audit Committee shall have the following rights and obligations:

a) To supervise the honesty of the company's financial statement and official announcement related to the company's financial results;

b) To review the internal control and risk management system;

c) To review transactions with related persons within the approving competence of the Board of Directors or General Meeting of Shareholders and give recommendations on transactions required approval from the Board of Directors or General Meeting of Shareholders;

d) To supervise the internal audit department of the company;

dd) To recommend the independent auditing company and relevant provisions in the contract with the auditing company so that the Board of Directors approve before submitting to the annual General Meeting of Shareholders for approval;

e) To monitor and evaluate the independence, objectiveness of the auditing company and the effectiveness of the auditing, especially when the company uses non-auditing services provided by the auditing company;

g) To supervise to ensure that the company complies with laws, requirements of the managing agency and other internal regulations of the company.

Article 162. Director, director general of the company

1. The Board of Directors shall appoint one of its members or hire another person as the director or director general.

2. The director or director general shall manage day-to-day business operations of the company; submit to supervision by the Board of Directors; and be responsible before the Board of Directors and law for the exercise of his/her vested rights and the performance of his/her assigned obligations.

The term of office of the director or director general must not exceed 05 years; the director or director general may be re-appointed for an unlimited number of terms.

3. The director or director general has the following rights and obligations:

a) To decide on issues relating to day-to-day business operations of the company which do not fall within the Board of Directors competence;

b) To organize the implementation of resolutions, decisions of the Board of Directors;

c) To organize the implementation of business plans and investment plans of the company;

d) To propose the organizational structure and internal management regulations of the company;

dd) To appoint, relieve of duty and remove from office managers in the company, except those within the competence of the Board of Directors;

e) To decide on wages and other interests for employees in the company, including managers under the appointing competence of the director or director general;

g) To recruit employees;

h) To propose methods of paying dividends and dealing with loss in business;

i) Other rights and obligations provided by law, the company charter and resolutions, decisions of the Board of Directors.

4. The director or director general must manage day-to-day business operations of the company according to law, the company charter, labor contracts signed with the company and resolutions, decisions of the Board of Directors. If his/her management is inconsistent with this Clause, causing damage to the company, the director or director general must be responsible before law and compensate the company for the damage.

5. For public companies, State enterprises specified at Point b, Clause 1, Article 88 of this Law and State enterprises' subsidiaries specified in Clause 1, Article 88 of this Law, the director or director general must meet the following criteria and conditions:

a) Not being persons prescribed in Clause 2, Article 17 of this Law;

b) Not being a person in family relationship with the company's managers, supervisors of the company and parent company; a person representing State capital, person representing enterprise's capital in the company and parent company;

c) Possessing professional qualifications, experiences in business administration of the company.

Article 163. Wages, remuneration, bonuses and other benefits of members of the Board of Directors, the director, director general

1. The company may pay remuneration, bonuses to members of the Board of Directors and pay wages, bonuses to the director or director general and other managers based on business results and efficiency.

2. Unless otherwise provided in the company charter, the remuneration, wages, bonuses and other benefits of members of the Board of Directors, the director or director general shall be paid according to the following provisions:

a) Members of the Board of Directors are entitled to remuneration for work and bonuses.

Remuneration for work shall be calculated based on the number of working days which are necessary to fulfill the duties of the members of the Board of Directors and the per diem rate of remuneration. The Board of Directors shall estimate the remuneration for each member on the principle of agreement. The total amount of remuneration and bonuses for the Board of Directors shall be decided by the annual General Meeting of Shareholders;

b) Members of the Board of Directors shall be entitled to reimbursement of meal, accommodation, travel and other reasonable expenses in order to fulfill their assigned duties;

c) The director or director general shall be entitled to wages and bonuses. The wages and bonuses of the director or director general shall be decided by the Board of Directors.

3. The remuneration of each member of the Board of Directors and the wages of the director or director general and other managers shall be included in the business expenses of the company according to the law on enterprise income tax, recorded as a separate item in annual financial statements of the company, and reported to the annual meeting of the General Meeting of Shareholders.

Article 164. Public disclosure of related interests

Unless more strictly provided in the company charter, the public disclosure of related interests and affiliated persons of the company shall be carried out as follows:

1. The company shall prepare and update the list of affiliated persons of the company as provided in Clause 23, Article 4 of this Law and their respective contracts, transactions with the company;

2. Members of the Board of Directors, supervisors, the director or director general and other managers of the company shall declare their related interests to the company, including:

a) Name, enterprise identification number, head office address and business lines of the enterprise that they are owners or in which they own capital contributions or shares; ratio and time of being owners or time of ownership of such capital contributions or shares;

b) Name, enterprise identification number, head office address and business lines of the enterprise that their affiliated persons are owners or in which their affiliated persons jointly or separately own capital contributions or shares of more than 10% of charter capital;

3. The declaration provided in Clause 2 of this Article shall be conducted within 07 working days from the date on which the related interest arises; any amendment, supplementation shall be notified to the company within 07 working days from the date of amendment, supplementation;

4. The retention, public disclosure, looking up, extraction and copying of the list of affiliated persons and related interests under Clauses 1 and 2 of this Article shall be carried out as follows:

a) The company shall notify the list of affiliated persons and related interests to the General Meeting of Shareholders at its annual meetings;

b) The list of affiliated persons and related interests shall be kept in the enterprise's head office; when necessary, part or the whole of the above list may be kept at its branches;

c) Shareholders, authorized representatives of shareholders, members of the Board of Directors, the Supervisory Board, director or director general and other managers shall have the right to look up, extract and copy part or the whole of the declared contents;

d) The company must create conditions for the persons mentioned at Point c of this Clause to access, look up, extract and copy the list of affiliated persons and related interests in the quickest and most convenient manner; obstructing or causing difficulties to them in exercising this right is prohibited. The order and procedures for looking up, extracting, copying the declared contents regarding affiliated persons and related interests shall comply with the company charter.

5. Members of the Board of Directors, director or director general who perform work in all forms on behalf of themselves or others within the scope of business operations of the company shall explain the nature and content of that work to the Board of Directors and Supervisory Board, and may only perform this work if it is approved by the majority of the remaining members of the Board of Directors; if they perform the work without reporting to or approval from the Board of Directors, all incomes earned from that work must belong to the company.

Article 165. Responsibilities of managers of the company

1. Members of the Board of Directors, director or director general and other managers have the following responsibilities:

a) To exercise their vested rights and perform their assigned obligations according to this Law, other relevant laws, the company charter, and resolutions of the General Meeting of Shareholders;

b) To exercise their vested rights and perform their assigned obligations in an honest, prudent and best manner to ensure the best lawful interests of the company;

c) To be loyal to the interests of the company and shareholders; to refrain from abusing their positions and posts, and using business information, know-how and opportunities and other assets of the company for their own personal benefits or for the benefits of other organizations, individuals;

d) To promptly, fully and accurately notify to the company about contents specified in Clause 2, Article 164 of this Law;

dd) Other responsibilities provided in this Law and the company charter.

2. Members of the Board of Directors, director or director general and other managers that violate Clause 1 of this Article shall be liable for or jointly liable for compensating lost interests, returning received interests and compensating the company and the third party for all damages.

Article 166. Right to initiate lawsuits against members of the Board of Directors, director, director general

1. A shareholders, a group of shareholders owning at least 1% of the number of ordinary shares shall have the right, in their own name or on behalf of the company, to initiate lawsuits with regard to personal liability, jointly liability against members of the Board of Directors, director or director general and request for returning interests or compensating the company or other persons for damages in the following cases:

a) Violating responsibilities of the company managers prescribed in Article 165 of this Law;

b) Failing to exercise, failing to fully, timely exercise or exercising contrary to the law or company charter, resolutions, decisions of the Board of Directors regarding the vested rights and assigned obligations;

c) Abusing their positions and posts, and using business information, know-how, opportunities and other assets of the company for their own personal benefits or for the benefits of other organizations, individuals;

d) Other cases provided by law and the company charter.

2. The order and procedures for initiating lawsuits shall comply with the civil procedure law. Legal costs in case shareholders, groups of shareholders initiate a lawsuit on behalf of the company shall be included in the company's expenses, unless such lawsuit claim is rejected.

3. Shareholders, groups of shareholders specified in this Article may review, look up, extract necessary information under a court and arbitration's decision prior or during the lawsuit.

Article 167. Approval of contracts and transactions between the company with affiliated persons

1. The General Meeting of Shareholders or Board of Directors shall approve contracts, transactions between the company and the following affiliated persons:

a) Shareholders, authorized representatives of institutional shareholders holding more than 10% of the total ordinary shares of the company, and their affiliated persons;

b) Members of the Board of Directors, director or director general and their affiliated persons;

c) Enterprises in which members of the Board of Directors, supervisors, the director or director general and other managers of the company must declare under Clause 2, Article 164 of this Law.

2. The Board of Directors shall approve contracts and transactions specified in Clause 1 of this Article and having value at less than 35% of the total value of the company's assets as recorded in the latest financial statement or a smaller percentage or value provided in the company charter. In this case, the person representing the company to sign the contract, transaction shall notify the members of the Board of Directors and supervisors of the persons related to such contract, transaction; the notice shall be enclosed with the draft contract or main contents of the transaction. The Board of Directors shall decide on the approval of the contract, transaction within 15 days after receiving the notice, unless another time limit is provided in the company charter; members of the Board of Directors with interests related to parties of the contract, transaction shall not have the right to vote.

3. The General Meeting of Shareholders shall approve the following contracts, transactions:

a) Other contracts, transactions other than those prescribed in Clause 2 of this Article;

b) Contracts, transactions on lending, borrowing, purchasing assets with value at more than 10% of the total value of the enterprise's assets recorded in the latest financial statement between the company and shareholders owning 51% or more of the total voting shares or such shareholders' affiliated persons.

4. In case of approval of a contract, transaction under Clause 3 of this Article, the person representing the company to sign the contract, transaction shall notify the Board of Directors and supervisors of the persons related to such contract, transaction; the notice shall be enclosed with the draft contract or main contents of the transaction. The Board of Directors shall submit the draft contract, transaction or explain the main contents of the contract, transaction at the meeting of the General Meeting of Shareholders or collect written opinions from shareholders. In such case, shareholders with interests related to parties of the contract, transaction shall not be allowed to vote; contracts, transactions shall be approved according to Clauses 1 and 4, Article 148 of this Law, unless otherwise provided by the company charter.

5. Contracts and transactions which have been signed not according to this Article shall be invalid according to the court's decision and handled according to law. The persons signing the contract, transaction, concerned shareholders, members of the Board of Directors or director or director general must be jointly liable for compensating for the arising damage and return to the company any benefits gained from the performance of such contract, transaction.

6. The company must publicize related contracts, transactions according

to relevant laws.

Article 168. The Supervisory Board

1. The Supervisory Board has between 03 and 05 members. The term of office of supervisors must not exceed 05 years and supervisors may be re-elected with an unlimited number of terms.

2. The Supervisory Board shall elect one from supervisors to be the head of the Supervisory Board. The election, relief of duty, dismissal shall be carried out according to the majority principle. The rights and obligations of the head of the Supervisory Board shall be provided in the company charter. The Supervisory Board must have more than half of supervisors permanently residing in Vietnam. Head of Supervisory Board must possess a university or higher degree in one of the following majors: economy, finance, accounting, audit, law, business administration or specialized majors related to the business operation of enterprises, unless otherwise higher standards are provided in the company charter.

3. If the term of office of supervisors expires at the same time but supervisors of the new term have not been elected, the supervisors whose term has expired shall continue to exercise their rights and perform their obligations until supervisors of the new term are elected and take over their duties.

Article 169. Criteria and conditions for supervisors

1. Supervisors must meet the following criteria and conditions:

a) Not being persons specified in Clause 2, Article 17 of this Law;

b) Being trained in one of the following majors: economy, finance, accounting, audit, law, business administration or specialized majors in conformity with business operations of such enterprises;

c) Not being a person in family relationship with members of the Board of Directors, director or director general and other managers;

d) Not being the company manager; not necessarily being a shareholder or an employee of the company, unless otherwise provided in the company charter;

dd) Other criteria and conditions provided in relevant laws and the company charter.

2. In addition to criteria, conditions prescribed in Clause 1 of this Article, supervisors of a public company, State enterprise specified at Point b, Clause 1, Article 88 of this Law shall not be persons in family relationship with managers of the company and parent company; person representing the capital of enterprise, person representing the State capital in the parent company and the company.

Article 170. Rights and obligations of the Supervisory Board

1. The Supervisory Board shall supervise the Board of Directors, director or director general in the management and administration of the company.

2. To inspect the reasonableness, legality, truthfulness and prudence in the management and administration of business operations; the systematicity, consistency and appropriateness of accounting and statistical work and preparation of financial statements.

3. To appraise the completeness, legality and truthfulness of the company's business reports and annual and biannual financial statements, and reports evaluating management work of the Board of Directors; and to submit appraisal reports at the annual meeting of the General Meeting of Shareholders. To review contracts, transactions with affiliated persons within the approving competence of the Board of Directors or the General Meeting of Shareholders and give recommendations about contracts, transactions required approval of the Board of Directors or the General Meeting of Shareholders.

4. To review, inspect and evaluate the effect and efficiency of internal control, internal audit, risk management and early warning systems of the company.

5. To review accounting books, accounting entries and other documents of the company, and examine management and administration activities of the company when finding it necessary or pursuant to a resolution of the General Meeting of Shareholders or as requested by a shareholder or a group of shareholders as provided in Clause 2, Article 115 of this Law.

6. At the request of a shareholder or a group of shareholders as provided in Clause 2, Article 115 of this Law, the Supervisory Board shall carry out an inspection within 07 working days after receiving the request. Within 15 days after completing inspection, the Supervisory Board must submit a report on matters requested for inspection to the Board of Directors and the requesting shareholder or group of shareholders. The Supervisory Board's inspection provided in this Clause must neither disrupt the normal operation of the Board of Directors nor interrupt the administration of the company's business operations.

7. To propose the Board of Directors or the General Meeting of Shareholders measures to modify, supplement and improve the organizational structure for the management, supervision and administration of the company's business operations.

8. When detecting that a member of the Board of Directors, the director or director general violates the provisions of Article 165 of this Law, to immediately send a written notice to the Board of Directors and request the violator to stop his/her violation and take remedial measures.

9. To participate in and discuss at meetings of the General Meeting of

Shareholders, the Board of Directors and other meetings of the company.

10. To use independent consultants, internal audit department of the company to fulfill its assigned tasks.

11. To consult the Board of Directors before submitting reports, conclusions and recommendations to the General Meeting of Shareholders.

12. Other rights and obligations as provided in this Law, the company charter and resolutions of the General Meeting of Shareholders.

Article 171. Right of the Supervisory Board to be provided with information

1. Documents and information must be sent to supervisors at the same time and by the same methods as to members of the Board of Directors, including:

a) Notice of invitation for meeting, forms of opinion collection from members of the Board of Directors and attached documents;

b) Resolutions, decisions and meeting minutes of the General Meeting of Shareholders, Board of Directors;

c) Reports of director or director general submitted to the Board of Directors or other documents issued by the company.

2. Supervisors have the right to access the company's files and documents kept at the head office, branches and other locations; have the right to access workplaces of managers and employees of the company during working hours.

3. The Board of Directors, members of the Board of Directors, the director or director general and other managers shall fully, accurately and promptly provide information and documents relating to the management, administration and business operations of the company at the request of supervisors or the Supervisory Board.

Article 172. Wages, remuneration, bonuses and other benefits of supervisors

Unless otherwise provided in the company charter, wages, remuneration, bonuses and other benefits of supervisors must comply with the following provisions:

1. Supervisors shall be entitled to salaries, remuneration, bonuses and other benefits as decided by the General Meeting of Shareholders. The General Meeting of Shareholders shall decide on the annual total salaries, remuneration, bonuses, other benefits and annual operating budget of the Supervisory Board;

2. Supervisors shall be paid expenses for meals, accommodation, travel and use of independent consultancy services at reasonable rates. The total

amount of such expenses must not exceed the total annual operating budget of the Supervisory Board as approved by the General Meeting of Shareholders, unless otherwise decided by the General Meeting of Shareholders;

3. Salaries and operating expenses of the Supervisory Board shall be included in business expenses of the company according to the law on enterprise income tax and other relevant laws, and shall be recorded as a separate item in annual financial statements of the company.

Article 173. Responsibilities of supervisors

1. To comply with law, the company charter, resolutions of the General Meeting of Shareholders and professional ethics in exercising vested rights and performing assigned obligations.

2. To exercise vested rights and perform assigned obligations in an honest, prudent and best manner in order to ensure the maximum lawful interests of the company.

3. To be loyal to the interests of the company and shareholders; refrain from abusing their positions and posts and using business information, know-how, opportunities and other assets of the company for their own personal benefits or for the benefits of other organizations, individuals.

4. Other obligations provided by this Law and the company charter.

5. If violating the provisions of Clauses 1, 2, 3 and 4 of this Article and causing damage to the company or to other persons, supervisors must bear personal or joint responsibility for compensating for such damage. To return incomes and other benefits they have earned from such violations to the company.

6. If detecting that a supervisor commits a violation during the exercise of vested rights and performance of assigned obligations, a written notice thereof must be sent to the Supervisory Board; requesting the violator to stop his/her violation and take remedial measures.

Article 174. Relief of duty and removal from office of supervisors

1. A supervisor shall be relieved of duty by the General Meeting of Shareholders in the following cases:

a) No longer meeting the criteria and conditions to act as a supervisor as provided in Article 169 of this Law;

b) Having submitted a resignation letter which is approved;

c) Other cases provided in the company charter.

2. A supervisor shall be removed from office by the General Meeting of Shareholders in the following cases:

a) Failing to fulfill his/her assigned tasks, jobs;

b) Not exercising his/her rights and performing his/her obligations for 06 consecutive months, except in force majeure cases;

c) Committing serious, multiple violations of the obligations of supervisors provided in this Law and the company charter;

d) Other cases as provided in the General Meeting of Shareholders' resolution.

Article 175. Submission of annual reports

1. Ending of the fiscal year, the Board of Directors must submit the following reports to the General Meeting of Shareholders:

a) Report on business results of the company;

b) Financial statement;

c) Evaluation report on the company's management and administration;

d) Appraisal report of the Supervisory Board.

2. For joint stock companies which are required by law to be audited, their annual financial statements must be audited before being submitted to the General Meeting of Shareholders for consideration and approval.

3. Reports specified at Points a, b and c, Clause 1 of this Article must be sent to the Supervisory Board for appraisal no later than 30 days before the opening date of the annual meeting of the General Meeting of Shareholders, unless otherwise provided in the company charter.

4. Reports specified in Clauses 1, 2 and 3 of this Article, the Supervisory Board's appraisal reports and audit reports must be kept at the company's head office no later than 10 days before the opening date of the annual meeting of the General Meeting of Shareholders, unless a longer time limit is provided in the company charter. A shareholder owning shares of the company for at least 01 consecutive year is entitled to examine the reports provided in this Article by himself/herself or together with a lawyer or an accountant or auditor possessing a practice certificate.

Article 176. Disclosure of information

1. Joint stock companies shall submit annual financial statements approved by the General Meeting of Shareholders to competent state agencies according to the accounting law and other relevant laws.

2. Joint stock companies shall disclose on their websites the following information:

a) Company charter;

b) Curriculum vitae, educational qualifications and working experience of members of the Board of Directors, supervisors and director or director general of the company;

c) Annual financial statements approved by the General Meeting of Shareholders;

d) Annual operation evaluation reports of the Board of Directors and the Supervisory Board.

3. Joint stock companies which are not listing companies must notify the business registration agencies of the localities where their head offices are located within 03 working days after having the information or making any change in information on full name, nationality, passport number, contact address, number and types of shares of a foreign individual shareholder; name and enterprise identification number, head office address, number and types of shares of a foreign institutional shareholder, and full name, nationality, passport number and contact address of the authorized representative of a foreign institutional shareholder.

4. Public companies shall disclose and publicize information according to the law on securities. Joint stock companies specified at Point b, Clause 1, Article 88 shall disclose, publicize information under Points a, c, dd and g, Clause 1, Article 109 and Article 110 of this Law.

Chapter VI

PARTNERSHIPS

Article 177. Partnerships

1. A partnership is an enterprise in which:

a) There must be at least 02 members being co-owners of the partnership who jointly conduct business under one common name (hereinafter referred to as general partners). Apart from general partners, the company may have limited partners;

b) General partners must be individuals who are liable for the obligations of the partnership with all of their assets;

c) Limited partners must be organizations, individuals and only be liable for the debts of the partnership within the limit of the capital amount they have committed to contribute to the partnership.

2. A partnership has the legal entity status from the date it is granted an enterprise registration certificate.

3. Partnerships may not issue securities of any type.

Article 178. Capital contribution and grant of capital contribution

certificates

1. General partners and limited partners must contribute capital in full and on time as committed.

2. A general partner who fails to contribute capital in full and on time as committed, causing damage to the partnership, must compensate the partnership for the damage.

3. If a limited partner fails to contribute capital in full and on time as committed, the unpaid amount shall be regarded as a debt owed by that partner to the partnership; in this case, the limited partner concerned may be excluded from the partnership under a decision of the Members' Council.

4. Upon payment of capital contribution in full as committed, the partner shall be granted a capital contribution certificate, which must contain the following principal details:

a) Name, enterprise identification number and head office address of the company;

b) Charter capital of the partnership;

c) Name, contact address, nationality, serial number of personal legal documents for an individual partner; name, enterprise identification number or serial number of legal documents, head office address for an institutional partner; type of partner;

d) Value of capital contribution and types of assets contributed as capital by the partner;

dd) Serial number and date of grant of the capital contribution certificate;

e) Rights and obligations of the holder of the capital contribution certificate;

g) Full name and signature of the holder of the capital contribution certificate and of general partners of the partnership.

5. If a capital contribution certificate is lost, broken or otherwise damaged, the partnership shall re-grant a new capital contribution certificate to the partner.

Article 179. Assets of a partnership

Assets of a partnership include:

1. Assets contributed as capital by partners of which ownership has been transferred to the partnership;

2. Assets created in the name of the partnership;

3. Assets derived from business operations conducted by general partners in the name of the partnership and from business operations of the partnership

conducted by general partners in their personal name;

4. Other assets as prescribed by law.

Article 180. Restrictions on rights of general partners

1. A general partner may not act as the private enterprise owner; a general partner of another partnership, unless he/she obtains the consent from other general partners.

2. A general partner may not in his/her own name or in the name of another person, conduct the same business lines as those of the partnership for his/her personal benefits or for the interests of other organizations, individuals.

3. A general partner may not transfer part or the whole of his/her capital contribution in the partnership to another organization or individual without the consent of other general partners.

Article 181. Rights and obligations of general partners

1. A general partner has the following rights:

a) To attend meetings, discuss and vote on matters of the partnership; each general partner has one vote or another number of votes as provided in the partnership's charter;

b) To conduct in the name of the partnership its business lines; to negotiate and sign contracts, transactions or agreements with terms that he/she considers the most favorable for the partnership;

c) To use assets of the partnership for its business lines; if he/she advances his/her own money for the partnership, he/she may request the partnership to refund the principal and interest at the market interest rate on the advanced amount;

d) To claim compensation from the partnership for damage arising from business operations within its the assigned tasks if such damage is not caused by his/her personal mistake;

dd) To request the partnership and other general partners to provide information on the business situation of the partnership; to inspect assets, accounting books and other documents of the partnership when necessary;

e) To be distributed with profits in proportion to his/her capital contribution or as agreed in the partnership's charter;

g) Upon dissolution or bankruptcy of the partnership, to be distributed with the residual value of the partnership's assets in proportion to his/her capital contribution in the partnership, unless another ratio is provided in the partnership's charter;

h) If a general partner dies, his/her heir shall be entitled to the value of the assets in the partnership after deduction of debts and other asset obligations for which such partner is responsible. The heir may become a general partner if the Members' Council of the partnership approves;

i) Other rights provided in this Law and the company charter.

2. A general partner shall have the following obligations:

a) To manage and conduct business operations in an honest, prudent and best manner in order to ensure the best lawful interests of the partnership;

b) To manage and conduct business operations according to law, the partnership's charter and resolutions, decisions of the Members' Council; to pay compensation for any damage caused to the partnership by his/her violation of this Point;

c) To refrain from using the partnership's assets for his/her personal benefits or for the benefits of other organizations, individuals;

d) To return to the company any amount of money, assets received and compensate for any damage caused to the partnership in case he/she receives such money or assets from the business operations of the partnership in the name of the company or in his/her name or in the name of another person, but fails to pay such money, assets to the company;

dd) To be jointly liable to pay in full outstanding debt of the partnership in case the partnership's assets are insufficient for the payment of its debts;

e) To bear the amount of losses in proportion to his/her capital contribution in the partnership or as agreed in the partnership's charter in case the partnership suffers losses in its business;

g) To submit truthful and accurate monthly reports on his/her business activities and results to the partnership; to provide information on his/her business activities and results to any partner upon request;

h) Other obligations provided by this Law and the company charter.

Article 182. The Members' Council

1. The Members' Council includes all partners. The Members' Council shall elect a general partner as the chairperson of the Members' Council, who may concurrently act as the director or director general of the partnership, unless otherwise provided by the partnership's charter.

2. A general partner has the right to request convening a meeting of the Members' Council to discuss and decide on business affairs of the partnership. Partner requesting for convening a meeting must prepare agenda, content and documents for the meeting.

3. The Members' Council has the right to decide on all business affairs of the partnership. Unless provided by the partnership's charter, decision on the following matters must be approved by at least three-quarters of the total

number of general partners:

a) Development orientations and strategies of the partnership;

b) Amendment and supplementation of the partnership's charter;

c) Admission of a new partner;

d) Approval for a general partner to withdraw from the partnership or decision on exclusion of a partner;

dd) Decision on investment projects;

e) Decision on borrowing and raising capital in other forms, providing loans with value at 50% of the charter capital of the partnership or more, unless a higher percentage is provided in the partnership's charter;

g) Decision on sale, purchase of assets equivalent to or larger than the charter capital of the partnership, unless a higher percentage is provided in the partnership's charter;

h) Approval of annual financial statements, total amounts of profits and amount of profits to be distributed to each partner;

i) Decision on dissolution; requesting for bankruptcy of the company.

4. Decision on other matters not prescribed in Clause 3 of this Article shall be approved by consent of at least two-thirds of the total number of general partners; the specific ratio shall be provided in the partnership's charter.

5. The right to vote of limited partners shall comply with this Law and the partnership's charter.

Article 183. Convening meetings of the Members' Council

1. The chairperson of the Members' Council may convene a meeting of the Members' Council when deeming it necessary or at the request of a general partner. If the chairperson of the Members' Council fails to convene a meeting at the request of a general partner, such partner shall convene the meeting.

2. Meeting invitations to the meeting of the Members' Council may be sent by post, telephone, fax, electronic means or other means as provided in the partnership's charter. Meeting invitations must clearly indicate the purpose, requirements and contents of the meeting; agenda and venue of the meeting, and the name of the partner who requests convening the meeting.

Documents used for discussion to decide on the matters specified in Clause 3, Article 182 of this Law shall be sent to all partners in advance; such advance period shall be specified in the partnership's charter.

3. The chairperson of the Members' Council or the requesting partner shall chair the meeting. The meeting shall be recorded in the minute book with the following principal details:

a) Name, enterprise identification number and head office address;

b) Time and venue of the meeting;

c) Purpose, agenda and contents of the meeting;

d) Full name of the person chairing and partners attending the meeting;

dd) Opinions of the partners attending the meeting;

e) Approved resolutions, decisions, number of partners who agree, disagree, no opinion and principal contents of such resolutions, decisions;

g) Full name and signatures of the partners attending the meeting.

Article 184. Management of business of a partnership

1. General partners shall be the partnership's at-law representatives and shall organize management of day-to-day business of the partnership. All restrictions on general partners in conducting day-to-day business of the partnership shall only be effective to a third party if such party is aware of such restrictions.

2. In management of business operations of the partnership, general partners shall assign among them the tasks of management and control of the partnership.

When a number or all of general partners together carry out a number of business operations, decisions shall be approved by a majority principle.

Activities carried out by a general partner beyond the scope of business lines of the partnership shall not fall within the partnership's liability, unless such activities are approved by the other partners.

3. The partnership may open one or a number of bank account(s). The Members' Council shall appoint a partner who is authorized to deposit and withdraw money from such account(s).

4. The chairperson of the Members' Council, director or director general has the following obligations:

a) To manage and administer day-to-day business activities of the partnership as a general partner;

b) To convene and organize meetings of the Members' Council; to sign resolutions, decisions of the Members' Council;

c) To assign tasks and coordinate business activities among the general partners;

d) To arrange and store fully and truthfully accounting books, invoices, vouchers and other documents of the partnership according to law;

dd) To represent the partnership as a requester for settlement of a civil matter, plaintiff, defendant, person with related interests or obligations before the Court, Arbitration; to represent the partnership in performing other rights and obligations according to law provisions;

e) Other obligations provided in the partnership's charter.

Article 185. Termination of general partner status

1. General partner status shall be terminated in the following cases:

a) A general partner voluntarily withdraws capital from the partnership;

b) Being dead, missing, having his/her civil act capacity restricted or lost, having difficulties in cognition and behavior control;

c) Being excluded from the partnership;

d) Serving an imprisonment sentence or banned from conducting business or performing certain jobs by courts according to law provisions;

dd) Other cases provided in the partnership's charter.

2. A general partner has the right to withdraw capital from the partnership if the Members' Council agrees. In this case, the partner who wants to withdraw capital from the partnership shall notify in writing about the capital withdrawal request no later than 06 months prior the date of capital withdrawal. He/she may only withdraw capital at the end of a fiscal year and after the financial statement of such fiscal year has been approved.

3. A general partner shall be excluded from the partnership in the following cases:

a) Being unable to contribute capital or failing to contribute capital as committed after the partnership makes a request for the second time;

b) Violating Article 180 of this Law;

c) Failing to carry out the business activities truthfully or prudently or taking other inappropriate acts causing serious damage to the interests of the partnership and other partners;

d) Failing to properly perform the obligations of a general partner.

4. In case of termination of partner status of a partner who has his/her civil act capacity restricted lost, has difficulties in cognition and behavior control, his/her capital contribution shall be returned fairly and satisfactorily.

5. Within 02 years after termination of general partner status as provided at Points a, c, d and dd, Clause 1 of this Article, such partner shall still be jointly liable with all his/her assets for the partnership's debts which arise prior to the date of termination of partner status.

6. After termination of general partner status, if the name of such partner has been used as part or whole of the partnership's name, such partner or his/her heir or at-law representative may request the partnership to cease the use of

such name.

Article 186. Admission of new partners

1. A partnership may admit new general partners or limited partners; admission of new partners shall be approved by the Members' Council of the partnership.

2. A general partner or limited partner shall contribute capital in full as committed to the partnership within 15 days after being approved to do so, unless another time limit is decided by the Members' Council.

3. The new general partner shall be jointly liable for the debts and other property obligations of the company with all his/her assets, unless otherwise agreed by such partner and other partners.

Article 187. Rights and obligations of limited partners

1. A limited partner has the following rights:

a) To attend meetings, discuss and vote at the Members' Council on amendment and supplementation of the partnership's charter; change and supplementation of the rights and obligations of limited partners; reorganization and dissolution of the partnership; and other contents of the partnership's charter which are directly related to his/her rights and obligations;

b) To be annually distributed with profits in proportion to his/her capital contribution in the charter capital of the partnership;

c) To be provided with the partnership's annual financial statements; to request the chairperson of the Members' Council and general partners to fully and honestly provide information on the business situation and results of the partnership; to look up accounting books, minutes, contracts, transactions, files and other documents of the partnership;

d) To transfer his/her capital contribution in the partnership to another person;

dd) To conduct the business lines of the partnership in his/her own name or in the another's name;

e) To dispose of his/her capital contribution by bequeathing, donating, mortgaging, pledging or otherwise doing according to law and the partnership's charter; in case he/she dies, his/her heir shall replace him or her as a limited partner of the partnership;

g) To be distributed with part of the residual value of the partnership's assets in proportion to his/her capital contribution in the partnership upon its dissolution or bankruptcy;

h) Other rights provided in this Law and the company charter.

2. A limited partner has the following obligations:

a) To be liable for the debts and other property obligations of the partnership within the limit of his/her committed capital contribution;

b) To refrain from managing the partnership and conducting business activities in the name of the partnership;

c) To comply with the partnership's charter, resolutions and decision of the Members' Council;

d) Other obligations provided by this Law and the company charter.

Chapter VII
PRIVATE ENTERPRISES

Article 188. Private enterprises

1. A private enterprise is an enterprise owned by an individual who is liable for all activities of the enterprise with all his/her assets.

2. Private enterprises may not issue securities of any type.

3. Each individual may establish only one private enterprise. The private enterprise owner must not concurrently be a business household owner, a general partner in a partnership.

4. Private enterprises may not contribute capital for the establishment of, or purchase shares, capital contributions in, a partnership, limited liability company or joint stock company.

Article 189. Investment capital of private enterprise owners

1. The private enterprise owner shall himself/herself register his/her investment capital. The private enterprise owner shall be obliged to register accurately the total investment capital, specifying the amounts in Vietnam dong, freely convertible foreign currencies, gold and other assets; for the amount in other assets, types of assets, quantity and residual value of each type of assets shall also be specified.

2. All capital and assets, including loans and leased assets, which are used for the business operations of an enterprise, must be recorded fully in its accounting books and financial statements according to law.

3. In the course of operation, the private enterprise owner may increase or reduce his/her capital amount invested in the business operations of the enterprise. Such increase or reduction shall be recorded fully in the accounting books. The private enterprise owner may reduce the investment capital below the amount of investment capital registered only after registration with the business registration agency.

Article 190. Management of private enterprises

1. The private enterprise owner has total discretion in making all business decisions of the private enterprise; in deciding the use of profits after payment of taxes and performance of other financial obligations as prescribed by law.

2. The private enterprise owner may directly manage and administer the business operations or employ another person to be the director or director general to do so. In such case, the private enterprise owner shall remain responsible for all business operations of the enterprise.

3. The private enterprise owner shall be the at-law representative, represent the private enterprise as a requester for settlement of a civil matter, plaintiff, defendant, person with related interests or obligations before the Arbitration, Court, represent the private enterprise in performing other rights and obligations according to law provisions.

Article 191. Lease of private enterprises

The private enterprise owner may lease his/her whole private enterprise provided that a written notice and a notarized copy of the lease contract shall be sent to the business registration agency and the tax agency within 03 working days after the lease contract becomes effective. During the lease term, the private enterprise owner shall remain responsible before law as the private enterprise owner. Rights, obligations and responsibilities of the owner and the lessee with respect to the business operations of the private enterprise shall be provided in the lease contract.

Article 192. Sale of private enterprises

1. The private enterprise owner may sell his/her private enterprise to another individual or organization.

2. After selling his/her enterprise, the private enterprise owner shall remain liable for all debts and other property obligations of the private enterprise incurring before the date of handing over the enterprise, unless otherwise agreed by the private enterprise owner, the purchaser, and creditors of the private enterprise.

3. The private enterprise owner, the purchaser of the private enterprise must comply with the law on labor.

4. The purchaser of a private enterprise must register for the change of the private enterprise owner according to this Law.

Article 193. Exercise of the rights of the private enterprise owner in some special cases

1. If a private enterprise owner is put in temporary detention, serving an imprisonment sentence, an administrative measure at a compulsory drug rehabilitation center, compulsory education institution, he/she may authorize

another person to exercise his/her rights and perform his/her obligations.

2. If a private enterprise owner dies, his/her heir or one of his/her heirs according to the testament or law shall be the private enterprise owner under an agreement among his/her heirs. If his/her heirs fail to reach an agreement, such private enterprise shall be registered and transformed into a company or dissolved.

3. In case the private enterprise owner dies without any heir or his/her heir disclaims the inheritance or is deprived of the right to inherit, the owner's assets shall be handled according to the civil law.

4. If a private enterprise owner has his/her civil act capacity restricted or lost, has difficulties in cognition and behavior control, his/her rights and obligations shall be performed by the representative.

5. If a private enterprise owner is banned from conducting business or performing certain jobs within the enterprise's business lines, the private enterprise owner shall suspend, stop conducting related business lines according to the court's decision or transfer such private enterprise for another individual or organization.

Chapter VIII
CORPORATE GROUPS

Article 194. Economic groups, corporations

1. An economic group or a corporation of any economic sector is a group of companies having relations through ownership of shares, capital contributions or other linkages. An economic group or a corporation is not an enterprise, does not have legal person status and is not required to register its establishment according to this Law.

2. An economic group or a corporation comprises parent company, subsidiaries and other member companies. The parent company, subsidiary and each member company in an economic group or a corporation have the rights and obligations of an independent enterprise according to law.

Article 195. Parent companies, subsidiaries

1. A company shall be regarded as parent company of another company in one of the following cases:

a) Holding over 50% of the charter capital or total ordinary shares of such company;

b) Having the right to directly or indirectly decide on the appointment of a majority or all of members of the Board of Directors, director or director general of such company;

c) Having the right to decide on the amendment and supplementation of the charter of such company.

2. A subsidiary may not purchase shares o, contribute capital to the parent company. The subsidiaries of the same parent company may neither contribute capital nor purchase shares to cross-own one another.

3. The subsidiaries of the same parent company in which the State owns at least 65% of its capital may not together contribute capital to, purchase shares of another enterprise or to establish a new enterprise according to this Law.

4. The Government shall detail Clauses 2 and 3 of this Article.

Article 196. Rights, obligations and responsibilities of a parent company to its subsidiaries

1. Depending on the legal form of a subsidiary, the parent company shall exercise its rights and perform its obligations as a member, owner or shareholder in the relation with the subsidiary according to relevant provisions of this Law and other relevant laws.

2. Contracts, transactions and other relations between the parent company and a subsidiary shall be made and performed independently and equally according to the terms applicable to independent legal entities.

3. If the parent company interferes beyond the competence of the owner, member or shareholder and compels a subsidiary to conduct business operations inconsistently with normal business practices or conduct non-profitable activities without reasonable compensation in a relevant fiscal year, thus causing damage to the subsidiary, the parent company must be responsible for such damage.

4. The manager of the parent company which is responsible for the interference compelling the subsidiary company to conduct the business operations specified in Clause 3 of this Article must be jointly liable with the parent company for such damage.

5. If the parent company fails to compensate the subsidiary according to Clause 3 of this Article, the creditors or members, shareholders holding at least 1% of the charter capital of the subsidiary may on their own behalf or on behalf of the subsidiary request that parent company pay compensation to the subsidiary.

6. If the business operations referred to in Clause 3 of this Article are conducted by the subsidiary and bring any benefit to another subsidiary of the same parent company, the benefiting subsidiary and the parent company must be jointly responsible for returning such benefit to the subsidiary suffering damage.

Article 197. Financial statements of parent companies and subsidiaries

1. At the end of a fiscal year, in addition to the statements and documents prescribed by law, a parent company must prepare the following statements:

a) Consolidated financial statement of the parent company according to the law on accounting;

b) General report on annual business results of the parent company and subsidiaries;

c) General report on management and administration of the parent company and subsidiaries.

2. Upon request of the parent company's at-law representative, subsidiaries' at-law representatives must provide necessary reports, documents and information under regulations for preparation of the consolidated financial statement and general reports of the parent company and subsidiaries.

3. A person in charge of preparing statement and reports of the parent company is not suspicious about any wrong, incorrect or forged information included in the statement specified in Clause 2 of this Article that are prepared and submitted by subsidiaries, he/she may use such statement to prepare the consolidated financial statement and general reports of the parent company and subsidiaries.

4. The person who is responsible for preparing the statement and reports specified in Clause 1 of this Article shall not be allowed to prepare and submit such statement and reports if he/she has not received financial statements from all subsidiaries. If the managers of the parent company have taken all necessary measures within their competence but have not received the necessary reports, documents and information under regulations from a subsidiary, they shall still prepare and submit the consolidated financial statement and general reports of the parent company and subsidiaries. Such statement and reports may or may not include information from such subsidiary but must contain necessary explanations to avoid any misunderstanding or incorrect understanding.

5. Annual final financial statement and documents, consolidated financial statement, general reports of the parent company and subsidiaries shall be kept at the parent company's head office. Copies of statement and documents specified in this Clause must be kept at branches of the parent company in Vietnam.

6. In addition to statements and documents prescribed by law, a subsidiary must prepare a general report on purchases, sales and other transactions with their parent company.

Chapter IX

REORGANIZATION, DISSOLUTION AND BANKRUPTCY OF ENTERPRISES

Article 198. Division of companies

1. Limited liability companies, joint stock companies may divide their current assets, rights and obligations, members, shareholders (hereinafter referred to as divided companies) assets to establish two or more new companies.

2. Procedures for division of limited liability companies, joint stock companies are provided as follows:

a) The Members' Council, the owner or the General Meeting of Shareholders of the divided company shall adopt a resolution, decision on division of the company according to this Law and the company charter. The resolution, decision on division of the company must contain key contents as follows: The name, head office address of the divided company; names of companies to be established; principles, methods and procedures for division of assets of the company; plan for employment of employees; method of division, time limit and procedures for conversion of capital contributions, shares, bonds of the divided company to the newly established companies; principles for dealing with the obligations of the divided company; the time limit for division of the company. Such resolution, decision must be sent to all creditors and notified to employees within 15 days from the date of its adoption or issuance;

b) Members, owners or shareholders of newly established companies shall approve the charter, elect or appoint the chairperson of the Members' Council, company president, the Board of Directors, director or director general and carry out enterprise registration according to this Law. In this case, the new company's registration dossier must comprise the resolution, decision on division of the company specified at Point a of this Clause.

3. The number of members, shareholders and number, ownership ratios of shares, capital contributions of the members, shareholders and charter capital of the new companies shall be recorded corresponding to the method of division and conversion of capital contributions, shares of the divided company into new companies according to the resolution, decision on company division.

4. The divided company shall cease to exist after the new companies are granted enterprise registration certificates. New companies must be jointly liable for obligations, unpaid debts, labor contracts and other property obligations of the divided company or shall reach agreement with creditors, customers and employees for one of such companies to perform these obligations. New companies shall naturally take over all lawful rights,

obligations and interests divided according to the resolution, decision on company division.

5. The business registration agency shall update the legal status of the divided companies in the national enterprise registration database when granting enterprise registration certificates to new companies. When a new company has its head office located outside the province or centrally run city where the divided company's head office is based, the business registration agency of the locality where the new company's head office is based must notify the registration of the new company to the business registration agency of the locality where the divided company's head office is based in order to update the legal status of the divided company in the national enterprise registration database.

Article 199. Separation of companies

1. Limited liability companies, joint stock companies may be separated by transferring part of the assets, rights, obligations, members, shareholders of the existing company (hereinafter referred to as the separated company) to establish one or more new limited liability company(ies), joint stock company(ies) (hereinafter referred to as the separating company(ies)) without terminating the existence of the separated company.

2. The separated company must register for a change in charter capital, number of members, shareholders corresponding to the reduced capital contributions, shares and number of members, shareholder (if any) at the same time with the registration of the separating company(ies).

3. Procedures for the separation of limited liability companies and joint stock companies are provided as follows:

a) The Members' Council, the owner or the General Meeting of Shareholders of the separated company shall adopt a resolution, decision on the separation of the company according to this Law and the company charter. Such resolution, decision on separation of the company must contain the following principal contents: Name, head office address of the separated company; name(s) of the separating company(ies) to be established; plan for employment of employees; methods of separation of the company; value of assets, rights and obligations to be transferred from the separated company to the separating company(ies); and time limit for the separation of the company. Such resolution, decision shall be sent to all creditors and notified to employees within 15 days after the date of its adoption or issuance;

b) Members, owner(s) or shareholders of the separating company(ies) shall approve a charter, elect or appoint a chairperson of the Members' Council, company president, the Board of Directors and director or director general, and carry out enterprise registration according to this Law.

4. After enterprise registration, the separated company and separating company(ies) must be jointly liable for obligations, unpaid debts, labor contracts and other property obligations of the separated company, unless otherwise agreed among the separated company, separating company(ies), creditors, customers and employees. Separating companies shall naturally take over all lawful rights, obligations and interests divided according to the resolution, decision on company separation.

Article 200. Consolidation of companies

1. Two or more companies (hereinafter referred to as consolidated companies) may be consolidated into a new company (hereinafter referred to as the consolidating company), at the same time terminating the existence of the consolidated companies.

2. Procedures for consolidation of companies are provided as follows:

a) Consolidated companies shall prepare a consolidation contract and a draft charter of the consolidating company. A consolidation contract must contain the following principal contents: Names, head office addresses of consolidated companies; name, head office address of the consolidating company; procedures and conditions for consolidation; the plan for employment of employees; the time limit, procedures and conditions for conversion of assets, capital contributions, shares, bonds of the consolidated companies into capital contributions, shares, bonds of the consolidating company; the time limit for consolidation;

b) Members, owners or shareholders of the consolidated companies shall approve the consolidation contract and the charter of the consolidating company, elect or appoint the chairperson of the Members' Council, company president, the Board of Directors, the director or director general of the consolidating company and register the consolidating company according to this Law. The consolidation contract must be sent to all creditors and notified to employees within 15 days from the date of its approval.

3. Consolidated companies must comply with the Law on Competition regarding company consolidation.

4. Consolidated companies shall cease to exist after the consolidating company is registered; the consolidating company shall enjoy the lawful rights and interests and must be liable for obligations, unpaid debts, labor contracts and other property obligations of the consolidated companies. The consolidating company shall naturally take over all lawful rights, obligations and interests of consolidated companies according to the consolidation contract.

5. The business registration agency shall update the legal status of the consolidated companies in the national enterprise registration database when granting an enterprise registration certificate to the consolidating company.

When a consolidated company has its head office located outside the province or centrally run city where the consolidating company's head office is based, the business registration agency of the locality where the consolidating company's head office is based shall notify such enterprise registration to the business registration agency of the locality where the consolidated company's head office is based in order to update the legal status of the consolidated company in the national enterprise registration database.

Article 201. Merger of companies

1. One or more company(ies) (hereinafter referred to as merged company(ies)) may be merged into another company (hereinafter referred to as merging company) by transferring all lawful assets, rights, obligations and interests to the merging company and at the same time, terminating the existence of the merged company(ies).

2. Procedures for merger of companies are provided as follows:

a) Relevant companies shall prepare a merger contract and a draft charter of the merging company. A merger contract must have the following principal contents: Name, head office address of the merging company; name(s) and head office address(es) of the merged company(ies); procedures and conditions for the merger; plan for employment of employees; methods, procedures, time limit and conditions for transfer of assets, conversion of capital contributions, shares, bonds of the merged company(ies) into capital contributions, shares, bonds of the merging company; and the time limit for merger;

b) Members, owners or shareholders of related companies shall approve the merger contract and the charter of the merging company and register the merging company according to this Law. The merger contract must be sent to all creditors and notified to employees within 15 days from the date of its approval;

c) After the merging company is registered, merged companies shall cease to exist; the merging company shall enjoy the lawful rights and interests and must be liable for obligations, unpaid debts, labor contracts and other property obligations of the merged companies. Merging companies shall naturally take over all lawful rights, obligations and interests of merged companies according to merger contracts.

3. Companies carrying out the merger must comply with the Law on Competition regarding company merger.

4. The business registration agency shall update the legal status of the merged companies in the national enterprise registration database and change the enterprise registration contents of the merging company. If a merged company has its head office address outside the province or centrally city where the head office of the merging company is located, the business registration

agency of the locality where the merging company's head office is based shall notify the enterprise registration to the business registration agency of the locality where the merged company's head office is based in order to update the legal status of the merged company in the national enterprise registration database.

Article 202. Conversion of limited liability companies into joint stock companies

1. The conversion of a state enterprise into a joint stock company must comply with regulations of relevant laws.

2. Limited liability companies may be converted into joint stock companies by the following methods:

a) Neither mobilizing other organizations, individuals to contribute additional capital nor selling the capital contributions to other organizations, individuals;

b) Mobilizing other organizations and individuals to contribute additional capital;

c) Selling all or part of the capital contributions to one or a number of other organization(s) and individual(s);

d) Combination of the methods provided at Points a, b and c of this Clause and other methods.

3. The company shall register for the company conversion with the business registration agency within 10 days after completing the conversion. Within 03 working days from the date on which the conversion dossier is received, the business registration agency shall re-grant the enterprise registration certificate and update the company's legal status on the national enterprise registration database.

4. The conversing company shall naturally take over all lawful rights and interests and must be liable for obligations, debts, including outstanding tax, labor contracts and other obligations of the converted company.

Article 203. Conversion of joint stock companies into single-member limited liability companies

1. Joint stock companies may be converted into single-member limited liability companies by the following methods:

a) A shareholder acquires all the corresponding shares of all the remaining shareholders;

b) An organization or individual that is not a shareholder acquires all the shares of all shareholders of the company;

c) There's only one shareholder left in the company.

2. The transfer or acquisition of investment capital prescribed in Clause 1 of this Article must conform to the market prices, prices determined by asset valuation, discounted cash flow, or another method.

3. Within 15 days from the date on which there is only one shareholder left in the company or after completing the share transfer according to Points a and b, Clause 1 of this Article, the company shall send the conversion dossier to the business registration agency of locality where such enterprise has registered. Within 03 working days after receiving the conversion dossier, the business registration agency shall grant an enterprise registration certificate and update the company's legal status in the national enterprise registration database.

4. The conversing company shall naturally take over all lawful rights and interests and must be liable for obligations, debts, including outstanding tax, labor contracts and other obligations of the converted company.

Article 204. Conversion of joint stock companies into limited liability companies with two or more members

1. Joint stock companies may be converted into limited liability companies with two or more members by the following methods:

a) Neither mobilizing nor transferring shares to other organizations and individuals;

b) Conversing into limited liability companies with two or more members, at the same time with mobilizing other organizations and individuals to contribute capital;

c) Conversing into limited liability companies with two or more members, at the same time with transferring all or part of shares to other capital-contributing organizations and individuals;

d) There are only 02 shareholders left in the company;

dd) Combination of the methods provided at Points a, b and c of this Clause and other methods.

2. The company shall register for the company conversion with the business registration agency within 10 days after completing the conversion. Within 03 working days after receiving the conversion dossier, the business registration agency shall grant an enterprise registration certificate and update the company's legal status in the national enterprise registration database.

2. The conversing company shall naturally take over all lawful rights and interests and must be liable for obligations, debts, including outstanding tax, labor contracts and other obligations of the converted company.

Article 205. Conversion of private enterprises into limited liability companies, joint stock companies, partnerships

1. A private enterprise may be converted into a limited liability company,

joint stock company or a partnership under a decision of the private enterprise owner upon satisfying all the following conditions:

a) The converting enterprise must satisfy all conditions provided in Clause 1, Article 27 of this Law;

b) The private enterprise owner commits in writing that he/she is personally liable with his/her own assets to all the unpaid debts and commits to making full repayment of the debts when they are due;

c) The private enterprise owner agrees in writing with the parties to the contracts not yet liquidated that the converting company shall receive and continue to perform such contracts;

d) The private enterprise owner commits or agrees in writing with the other capital-contributing members to receive and employ existing employees of the private enterprise.

2. Within 03 working days after receiving the dossier, the business registration agency shall consider and grant an enterprise registration certificate if all the conditions provided in Clause 1 of this Article are satisfied and update the enterprise's legal status in the national enterprise registration database.

3. Converting companies shall naturally take over rights and obligations of the private enterprise from the date on which enterprise registration certificates are granted. The private enterprise owner shall be personally liable with all his/her assets for all debts arising before the date on which the converting company is granted the enterprise registration certificate.

Article 206. Suspension, cessation of operation and termination of business

1. An enterprise must notify in writing to the business registration agency at least 03 working day before suspending its business or continuing its business prior to the notified time limit.

2. The business registration agency, competent State agency shall request an enterprise for suspending, ceasing its operation, terminating its business in the following cases:

a) Suspension or termination of conducting conditional business lines, sectors and trades subject to market access conditions for foreign investors when detecting that such enterprises fails to meet corresponding conditions according to law provisions;

b) Suspension of business at request of the related agencies according to regulations of the law on tax administration, environment and other relevant laws;

c) Cessation of operation, termination of business in one or more business line(s) or in a number of sectors according to the court's decision.

3. During business suspension, the enterprise must fully pay any outstanding tax, social insurance, health insurance, unemployment insurance; continue to pay debts and complete the performance of contracts already signed with customers and employees, unless otherwise agreed by the enterprise, creditors, customers and employees.

4. The Government shall detail the order, procedures for coordination between the business registration agency and competent State agencies in cases provided in Clause 2 of this Article.

Article 207. Cases of and conditions for dissolution of enterprises

1. An enterprise shall be dissolved in the following cases:

a) The operation duration stated in the company charter expires and there is no decision to extend it;

b) According to resolutions, decisions of enterprise owner, for a private enterprise; of Members' Council, for a partnership; of the Members' Council, the company owner, for a limited liability company; of the General Meeting of Shareholders, for a joint stock company;

c) The company no longer has the minimum number of members provided in this Law for 06 consecutive months without carrying out the procedures for the conversion of the form of enterprise;

d) The enterprise has its enterprise registration certificate revoked, unless otherwise provided in the Law on Tax Administration.

2. An enterprise shall only be dissolved when it ensures to pay all debts, other property obligations and it is not currently involved in a dispute resolution process at a court or an arbitration. The related managers and enterprise prescribed at Point d, Clause 1 of this Article must be jointly liable for the enterprise's debts.

Article 208. Order and procedures for dissolution of enterprises

The dissolution of enterprises in cases specified at Points a, b and c, Clause 1, Article 207 of this Law shall be carried out according to the following provisions:

1. A resolution, decision on dissolution of an enterprise shall be approved. Such resolution, decision must have the following principal details:

a) Name, head office address of the enterprise;

b) Reasons for dissolution;

c) Time limit, procedures for contract liquidation and payment of the enterprise's debts;

d) Plan for dealing with obligations arising from labor contracts;

dd) Full names, signatures of the private enterprise owner, the company owner, chairperson of the Members' Council, chairperson of the Board of Directors;

2. The private enterprise owner, the Members' Council or company owner, the Board of Directors shall directly organize the liquidation of assets of the enterprise, unless the establishment of a separate liquidation organization is provided by the company charter;

3. Within 07 working days from the date of approval, the resolution, decision on dissolution and the meeting minutes must be sent to the business registration agency, tax agency and employees in the enterprise. Such resolution, decision must be post on the national enterprise registration portal and publicly listed at its head office, branches and representative offices.

If the enterprise has outstanding financial obligations, a debt settlement plan shall be sent together with the dissolution decision or resolution to the creditors and persons with related rights, interests and obligations. The debt settlement plan must state the name and address of the creditor; the amount of the debt, time limit, location and method of payment of such debt; the method and time limit for settling complaints of the creditor.

4. The business registration agency must notify the situation of the enterprise that is carrying out the dissolution procedures on the national enterprise registration portal immediately after receiving the decision or resolution on the dissolution of the enterprise. Apart from the notification, the dissolution decision or resolution and debt settlement plan (if any), shall be posted.

5. Debts of the enterprise shall be settled in the following preferential order:

a) Unpaid amounts of wages, redundancy payments, social insurance, health insurance, unemployment insurance premiums according to law and other benefits of employees pursuant to the signed collective labor agreements and labor contracts;

b) Outstanding tax;

c) Other debts;

6. After paying all costs of the enterprise dissolution and debts, the remainder shall be divided to the private enterprise owner, members, shareholders, or to the company owner in proportion to their capital contribution, share ownership ratios.

7. The enterprise's at-law representative shall send a dossier of request for dissolution to the business registration agency within 05 working days after all debts of the enterprise are fully paid.

8. Past the time limit of 180 days after receiving the dissolution decision or resolution as provided in Clause 3 of this Article without receiving any written comments on or rejection to the dissolution from the enterprise or stakeholders or within 05 working days after receiving the dissolution dossier, the business registration agency shall update the legal status of the enterprise on the national enterprise registration database.

9. The Government shall stipulate in detail the order and procedures for dissolution of enterprises.

Article 209. Dissolution of enterprises in case the enterprise registration certificate is revoked or as decided by a court

The dissolution of enterprises in case the enterprise registration certificate is revoked or as decided by a court shall be carried out under the following order and procedures:

1. The business registration agency must notify the situation of the enterprise that is carrying out the dissolution procedures on the national enterprise registration portal at the same time with the issuance of the decision on revoking the enterprise registration certificate or immediately after receiving the legally effective dissolution decision from the court. Apart from the notification, the decision on revoking the enterprise registration certificate or the legally effective court decision shall be posted;

2. Within 10 days after receiving the decision on revocation of the enterprise registration certificate or the legally effective court decision, the enterprise must convene a meeting to decide on the dissolution. The dissolution decision, resolution and a copy of the decision on revocation of the enterprise registration certificate or the legally effective court decision must be sent to the business registration agency, tax agency and employees of the enterprise and be publicly posted at the head office, branches, representative offices of the enterprise. If it is required by law for posting on newspapers, the enterprise dissolution decision, resolution shall be posted on at least 01 paper newspaper or electronic newspaper in 03 consecutive editions.

If the enterprise has outstanding financial obligations, the debt settlement plan shall be sent together with the enterprise dissolution decision, resolution to the creditors and persons with related interests and obligations. The notification must state the creditor's name and address; the debt amount, the time limit, location and method of payment of such debts; the method and time limit for settling complaints of the creditor;

3. The payment of the enterprise's debts must comply with Clause 5, Article 208 of this Law.

4. The enterprise's at-law representative shall send a dossier of request for dissolution to the business registration agency within 05 working days after

all debts of the enterprise are fully paid.

5. Past the time limit of 180 days after notifying the situation of the enterprise that is carrying out dissolution procedures according to Clause 1 of this Article without receiving any rejection in writing from stakeholders or within 05 working days after receiving the dissolution dossier, the business registration agency shall update the enterprise's legal status on the national enterprise registration database.

6. The related company's managers must be personally liable for any damage due to their failure to comply, or improper compliance, with the provisions of this Article.

Article 210. Enterprise dissolution dossier

1. An enterprise dissolution dossier must comprise the following papers:

a) Notice of the enterprise dissolution;

b) Report on the liquidation of the enterprise's assets; list of creditors and amount of paid debts, including the payment of all the outstanding tax and social insurance, health insurance, unemployment insurance premiums for employees, after deciding on the dissolution of the enterprise (if any).

2. Members of the Board of Directors of a joint stock company, members of the Members' Council of a limited liability company, company owner, and owner of a private enterprise, the director or director general, general partners, at-law representatives of an enterprise shall be responsible for the truthfulness and accuracy of the enterprise dissolution dossier.

3. If the dissolution dossier is inaccurate and forged, the persons specified in Clause 2 of this Article must be jointly liable for the payment of unsettled interests for employees, outstanding tax, other outstanding debts and must be personally responsible before law for the consequences arising within 05 years after submitting the enterprise dissolution dossier to the business registration agency.

Article 211. Prohibited activities from the date of issuing the dissolution decision

1. As from the date of issuing the decision on dissolution of an enterprise, the enterprise and its managers shall be prohibited from carrying out the following activities:

a) Concealing or dispersing any asset;

b) Waiving or reducing the right to claim debts;

c) Converting any unsecured debts into debts secured with assets of the enterprise;

d) Signing any new contract, except for the purpose of dissolution of the enterprise;

dd) Pledging, mortgaging, donating or leasing out any asset;

e) Terminating the performance of any contract which has taken effect;

g) Raising capital in any forms.

2. Depending on the nature and severity of violation, any person who violates Clause 1 of this Article may be administratively sanctioned or examined for penal liability; and compensate for any damage caused.

Article 212. Revocation of enterprise registration certificates

1. The enterprise registration certificate of an enterprise shall be revoked in the following cases:

a) The contents stated in the enterprise registration dossier are forged;

b) The enterprise was established by persons who are prohibited from establishing enterprises under Clause 2, Article 17 of this Law;

c) The enterprise has suspended business operations for 01 year without notifying to the enterprise registration agency and tax agency;

d) The enterprise fails to send reports prescribed at Point c, Clause 1, Article 216 of this Law to the business registration agency within 06 months since the deadline for sending such reports or after receiving a written request;

dd) Other cases as decided by a court or upon request of the competent agency according to law provisions.

2. The Government shall stipulate the order and procedures for revocation of enterprise registration certificates.

Article 213. Termination of operation of branches, representative offices, business locations

1. A branch, a representative office, a business location of the enterprise may terminate its operation under a decision of the enterprise itself or under a decision on revoking the branch or representative office operation registration certificate of a competent State agency.

2. The enterprise's at-law representative and the head of the branch or representative office to be terminated from operation shall be jointly responsible for the truthfulness and accuracy of the operation termination dossier of such branch, representative office or business location.

3. The enterprise with a branch terminating its operation shall perform the contracts, repay debts, including outstanding tax of the branch and continue to employ the employees or to settle all the lawful interests for employees working in such branch according to law.

4. The Government shall detail regulations of this Article.

Article 214. Bankruptcy of enterprises

The bankruptcy of enterprises shall be carried out according to the law on bankruptcy.

Chapter X

IMPLEMENTATION PROVISIONS

Article 215. Responsibilities of state management agencies

1. The Government shall perform the uniform state management of enterprises.

2. Ministries and ministerial-level agencies must be responsible before the Government for performing their assigned tasks in the state management of enterprises.

3. Provincial-level People's Committees shall perform the state management of enterprises within their respective localities.

4. Ministries, ministerial-level agencies and related agencies, provincial-level People's Committees, within the ambit of their assigned tasks and powers, shall be responsible for establishing a connection, inter-agency and sharing the following information with the national enterprise registration database

a) Information about the business licenses, certificates of eligibility for business, practice certificates, certificates or written approvals of business conditions already granted to the enterprises and decisions on sanction against enterprises' administrative violations;

b) Information on the operation and tax payment of enterprises, based on the latter's tax reports; enterprises' financial statements;

c) Coordinating, sharing information on enterprises' operations for raising the effect of state management.

5. The Government shall detail regulations of this Article.

Article 216. Business registration agencies

1. A business registration agency has the following tasks and powers:

a) To carry out enterprise registration and grant enterprise registration certificates according to law;

b) To coordinate in building and managing a national system of information on enterprise registration; to publicize, provide information to state agencies, organizations and persons upon request according to law;

c) To request enterprises to report on their compliance with the provisions of this Law when necessary; to urge the performance of reporting obligations of enterprises;

d) To directly examine, or request competent State agencies to examine, monitor enterprises with regard to the matters in the enterprise registration dossiers;

dd) To be responsible for the validity of enterprise registration dossiers; not take responsibility for any violations of enterprises occurring before and after the enterprise registration;

e) To handle violations of the law regulations on enterprise registration; to revoke enterprise registration certificates and request enterprises to carry out the dissolution procedures according to this Law;

g) Other tasks and powers according to this Law and other relevant laws.

2. The Government shall stipulate the organizational system of business registration agencies.

Article 217. Implementation provisions

1. This Law takes effect on January 01, 2021.

2. The Law on Enterprises No. 68/2014/QH13 shall cease to be effective from the effective date of this Law.

3. To replace the phrase "State enterprise" by the phrase "enterprise with 100% State-owned charter capital" in Point m, Clause 1, Article 35 and Point k, Clause 1, Article 37 of the Law on State budget No. 83/2015/QH13; Point a, Clause 3, Article 23 of the Law on Irrigation No. 08/2017/QH14, amended and supplemented by the Law No. 35/2018/QH14; Point b, Clause 2, Article 74 of the Civil Procedure Code No. 92/2015/QH13 amended and supplemented by the Law No. 45/2019/QH14; Point a, Clause 2, Article 43 of the Law on Management and Use of Weapons, Explosives and Supporting Tools No. 14/2017/QH14, amended and supplemented by the Law No. 50/2019/QH14; Article 19 of the Law on Denunciations; Articles 3, 20, 30, 34, 39 and 61 of the Anti-Corruption Law No. 36/2018/QH14.

4. The Government shall stipulate the registration and operation of business households.

5. Pursuant to the provisions of this Law, the Government shall stipulate in detail the management organization and operation of State enterprises directly serving national defense, security or both economic and national defense, security objectives.

Article 218. Transitional provision

1. Companies without shares or capital contributions held by the State which carry out capital contribution, share purchase before July 01, 2015, shall not be required to comply with the provisions of Clause 2, Article 195 of this

Law, but may not increase the cross-ownership ratios.

2. Company managers, supervisors and authorized representatives failing to fully satisfy criteria and conditions specified at Point b, Clause 5, Article 14; Clause 3, Article 64; Clause 3, Article 93; Clause 3, Article 101; Points a, b and c, Clause 3, Article 103; Point d, Clause 1, Article 155; Point b, Clause 5, Article 162 and Clause 2, Article 169 of this Law shall continue to perform their duties during the remaining time of their terms.

This Law was passed on June 17, 2020, by the XIVth National Assembly of the Socialist Republic of Vietnam at its 9th session.

CHAIRWOMAN OF THE NATIONAL ASSEMBLY

Nguyen Thi Kim Ngan